

San Francisco Bay Regional Water Quality Control Board

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Mustards Grill
Attention: Sean Knight
7399 St. Helena Highway
Napa, CA 94558
Sent electronically to seanaknight@cindypawlcyn.com

Subject: Mustards Grill, Napa – Enrollment under General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems, Order WQ 2014-0153-DWQ

Dear Mr. Knight:

This letter enrolls Mustards Grill (Facility) under the General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems, Order WQ 2014-0153-DWQ (General Order). This enrollment authorizes the use of the facility wastewater treatment and discharge systems to manage domestic and kitchen wastewater generated by Mustards Grill, a restaurant at 7399 St. Helena Highway, Napa, owned by 3W & C LLC and operated by Mustards Grill and Heritage Systems Inc., and on-site residential units (collectively Discharger).

On behalf of the Discharger, RSA+ Civil Engineers (RSA) submitted a Technical Information Form for Transitioning to the General Order for Small Domestic Wastewater Treatment Systems for Mustards Grill (Facility Technical Information Form) on December 1, 2021, an updated Facility Technical Information Form on May 6, 2022, and the following documents, submitted on April 14, 2023, revised on November 7, 2023, in response to Regional Water Board staff comments, revised again on March 21, 2024, to include a current wastewater discharge limit, and revised again on May 6, 2024, in response to Napa County's comments regarding Phase 3:

- Phase 1 Alternative Sewage Treatment System Repair Plans (ASTS) Record Drawings;
- Phase 2 Wastewater Design Report;
- Phase 2 ASTS Repair Plans;

ALEXIS STRAUSS HACKER, CHAIR | EILEEN M. WHITE, EXECUTIVE OFFICER

- Phase 3 Wastewater Design Report; and
- Phase 3 ASTS Repair Plans.

Together, the documents listed above constitute the Facility's report of waste discharge (ROWD). Based on the information presented in the ROWD, the wastewater treatment system and discharges are consistent with the requirements of the General Order.

The San Francisco Bay Regional Water Quality Control Board (Regional Water Board) hereby finds that the General Order is applicable to the subject wastewater system and that the wastewater system is henceforth enrolled under and regulated by the General Order, as described in this letter. This letter serves as the Notice of Applicability (Notice) for enrollment under the General Order. A Monitoring and Reporting Program for the Facility is included as Attachment E of this Notice. Enrollment in the General Order replaces the existing waste discharge permit, Regional Water Board Order No. R2-2006-0071, as further described in section 1.3 below.

The General Order contains requirements that apply to all wastewater systems and requirements that apply only to specific types of treatment and disposal systems. Applicable requirements and effluent limits are discussed in section 3 and summarized in Tables 1 and 2 of this Notice. The General Order contains additional requirements that are not summarized in Tables 1 and 2. The Discharger is responsible for all applicable requirements in the General Order, this Notice, and the ROWD, as described in further detail below.

The General Order is enclosed in Attachment D and is made part of this Notice by reference. The General Order is also available at the following internet address:

www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

1. OVERVIEW OF FACILITY AND DISCHARGE

1.1. Location and Layout of Facility

Mustards Grill (Facility) is an existing 60-seat commercial restaurant facility located in unincorporated Napa County north of the Town of Yountville. The area is not served by a municipal sanitary sewer. All development in the area is served by individual onsite wastewater treatment and dispersal systems.

Mustards Grill is located on a 6.4-acre parcel, Napa County Accessors Parcel Number (APN) 27-500-14.

Mustards Grill is a commercial business facility with uses regulated by a Napa County Use Permit. The permitted use is a 60-seat commercial restaurant. The Facility is currently regulated under Use Permit #U-418384, approved by the Napa County Conservation, Development, and Planning Commission on March 21, 1984, and two subsequent modifications approved by the Napa County Zoning Administrator: #94261-MOD approved on April 21, 1995, and #95092-MOD approved on October 20, 1995. The

Mustards Grill wastewater system is permitted under Use Permit #03460-UP, approved by the Napa County Planning Commission on May 4, 2005, and effective as of May 18, 2005. There is a pending application with Napa County for Use Permit P22-00004 to increase total seating to 100 from 60 seats, add outdoor dining, and increase the peak wastewater flows to 5,310 gallons per day (gpd) from 4,000 gpd. The maximum wastewater discharge authorized is 4,000 gpd until the Use Permit is approved.

To accommodate the planned future increases in seating and peak flow, upgrades to the Facility have been proposed and will occur in three phases. The Phase 1 upgrades were completed in 2023 and the proposed Phase 2 and 3 upgrades include modernizing the existing treatment train and dispersal field, as described in section 1.5.

A map of Mustards Grill and its vicinity is attached to this Notice as Attachment A and a site map of Mustards Grill is attached as Attachment B.

1.2. Wastewater Collection

Wastewater is generated from the Mustards Grill restaurant as kitchen wastewater from food preparation and service, and sanitary wastewater from employee and customer restroom use.

A separate 360 gpd evapotranspiration/infiltration (ETI) system previously existed on the same parcel and served a 2-bedroom single-family residence and 1-bedroom guest cottage. As part of the transition to the General Order, the ETI system will be abandoned and the two residential units will be connected to the restaurant's wastewater treatment system.

Once the kitchen and residential wastewater streams have been combined, the resultant wastewater influent will be approximately 93% restaurant and 7% residential by volume. This volumetric breakdown is explained in section 1.4, Discharge Description.

Flows are continuously monitored by an onsite supervisory control and data acquisition (SCADA) system. Alarms are received in real time by a licensed operator, who provides twice-monthly service visits for field observations and sampling.

The collection system was installed in 2005. Upgrades to the collection system to eliminate groundwater inflow and infiltration (I/I) occurred during Phase 1 in 2023 and included abandoning the existing concrete grease interceptors, septic tanks, and lift station adjacent to the restaurant and replacing them with new fiberglass tanks, including a 15,000-gallon combined septic and pump tank (5,000-gallon septic and 10,000-gallon pump tanks) and a 7,000-gallon grease interceptor. The risers of the restaurant sludge tanks and residential septic tanks were also replaced and resealed to further reduce I/I. For the upgrades, the existing 4-inch Schedule 40 polyvinyl chloride (PVC) piping conveying kitchen and domestic wastewater to the old tanks was removed and replaced with new 4-inch Schedule 40 PVC piping conveying kitchen wastewater to the grease interceptor and domestic wastewater to the combination septic/pump tank. The combination septic/pump tank connects to the existing 2-inch PVC sanitary sewer

force main that feeds the wastewater treatment system.

Effluent from the dosing compartment of the combination septic/pump tank will flow under pressure to the existing treatment tank for secondary treatment, which is described in section 1.5.2, via a 2-inch-diameter PVC pipe installed two feet below grade, about 500 feet in length, extending around the northeast and southeast edges of the dispersal area.

1.3. Old Wastewater Treatment Plant and Permit

The Facility wastewater treatment plant was previously regulated by Regional Water Board Order No. R2-2006-0071, adopted on October 11, 2006 (Individual Order). This Notice hereby transitions the Facility from Individual Order No. R2-2006-0071 to the General Order, effective on the date of this Notice. Coverage under Order No. R2-2006-0071 is rescinded as of the date of this Notice, pursuant to Regional Water Board Order No. R2-2021-0027 for rescinding certain individual waste discharge requirements upon enrollment in the General Order.

The Individual Order prescribed waste discharge requirements for the current existing system, which includes primary treatment in septic tanks and grease interceptor prior to treatment by a membrane bioreactor (MBR) unit, and discharges to land by a subsurface drip dispersal system discharging effluent from the MBR unit into soil. At the time the previous facility permit was drafted, the existing system was under construction.

Wastewater effluent leaves the restaurant in separate streams of sanitary and kitchen (grease) wastewater. Raw kitchen wastewater passes through a grease interceptor before entering the primary septic tank. Raw sanitary wastewater is routed directly to the septic tank, where it is combined with the grease interceptor effluent, and then into a common lift station. The lift station pumps the primary-treated effluent to the MBR treatment system located at the rear of the property.

The existing MBR unit combines biological treatment and membrane microfiltration in a single package system. The MBR tank is designed and manufactured for an ultimate capacity of up to 25,000 gpd. The internal aerators and MBR filter are designed for a peak flow of 5,500 gpd.

Sludge from the MBR is stored in four 5,000-gallon holding tanks. These sludge tanks are designed to be off hauled after two weeks of accumulation at a volume of 8,561 gallons. A total of 33 days of sludge storage are provided. The system has an alarm float that indicates when the tanks are half full.

The filtrate from the MBR is conveyed to a 5,000-gallon pump tank for timed dosing to a 40,000 square-foot (sf) GeoFlow subsurface drip dispersal field comprised of four 10,000 sf zones. Distribution between each zone is controlled by an existing Geoflow Headworks and Hydrotek valve system. The field was originally sized at an estimated application rate of 0.1 gpd/sf, allowing 4,000 gpd to be pumped into the 40,000 square

foot (sf) disposal field. No reserve area was required by the Individual Order.

The existing wastewater treatment system for the 2-bedroom single-family residence, and 1-bedroom guest cottage includes primary treatment via separate underground septic tanks, and dispersal to a separate ETI bed. As part of the transition to the General Order, the ETI system will be abandoned, and the two residential units connected to the restaurant wastewater treatment system.

1.4. Discharge Description

Mustards Grill has proposed to increase its restaurant seating capacity to 100 from 60 seats. which will result in an increase in peak wastewater flow from 4,000 gpd to 5,310 gpd as described below. However, the maximum wastewater discharge currently authorized is limited to 4,000 gpd and will remain until the pending Napa County Use Permit (P22-00004) is approved.

Following approval of the pending Use Permit, Mustards Grill will employ 30 staff and serve up to four and a half (4.5) table turns per day. Wastewater flows monitored by the onsite SCADA system indicate a unit flow rate of approximately 10 gallons per meal served. A standard flow rate of 15 gpd is assumed for employees.

$(30 \text{ employees} * 15 \text{ gpd}) + (100 \text{ seats} * 4.5 \text{ turns} * 10 \text{ gpd}) = 4,950 \text{ GPD}$ peak flow from restaurant wastewater.

Residential flows from the 2-bedroom single-family residence and 1-bedroom guest cottage are estimated at 120 GPD/bedroom, per Napa County standard, assuming low-flow fixtures.

$(3 \text{ bedrooms} * 120 \text{ gpd}) = 360 \text{ gpd}$ peak flow from residential units.

The future peak design flow for the WWTP is 5,310 gpd, based on the sum of restaurant wastewater and domestic wastewater above.

Mustards Grill wastewater data from 2007 to 2023 show restaurant primary treated effluent characteristics of biochemical oxygen demand (BOD) of 1,200 milligrams per liter (mg/L), total suspended solids (TSS) of 400 mg/L, and total nitrogen (TN) of 60 mg/L. Typical residential primary treated effluent characteristics provided by Orenco include BOD of 150 mg/L, TSS of 50 mg/L, and TN of 50 mg/L. Based on the design flows of 4,950 gpd for the restaurant and 360 gpd for the primary residence and guest house, the combined primary treated influent characteristics are estimated to be BOD of 1,129 mg/L, TSS of 376 mg/L, and TN of 59 mg/L.

Although limited to a maximum discharge of 4,000 gpd, the overall capacity of the proposed improvements to the wastewater treatment system is sufficient to accommodate the planned future increase in flow to 5,310 gpd. The improvements will occur during three phases as described in this Notice's next section.

A schematic of the Facility's wastewater treatment process is provided as Notice

Attachment C. The treatment train is summarized below.

1.5. Summary of New Wastewater Treatment and Disposal Process

1.5.1. Primary Treatment

Upgrades to septic tanks and grease traps occurred in 2023 during Phase 1. The Phase 1 upgrades to eliminate groundwater inflow and infiltration (I/I) in the collection system included abandoning and replacing the existing concrete grease interceptors, septic tanks, and lift station adjacent to the restaurant with new fiberglass tanks, including a 7,000-gallon Xerxes grease interceptor and a 15,000-gallon Xerxes combined septic and pump tank (5,000-gallon septic and 10,000-gallon pump tanks). The risers of the restaurant sludge tanks and residential septic tanks were also replaced and resealed to further reduce I/I.

The new grease interceptor tank and combined septic/pump tank from the Phase 1 upgrade will remain in place and continue to serve as primary treatment for the restaurant. The septic tanks and pump tanks for the existing residence (1,200-gallon septic tank and 500-gallon pump tank) and guesthouse (1,500-gallon septic tank and 810-gallon pump tank) will be inspected and remain in place and continue to serve as primary treatment for the residences.

Sanitary wastewater flows by gravity to the 15,000-gallon combined septic/pump tank. Kitchen wastewater flows by gravity first to the 7,000-gallon grease interceptor, then to the 15,000-gallon combined septic/pump tank where the kitchen wastewater combines with the sanitary wastewater.

Primary-treated effluent from the combined septic/pump tank and residential and guest house septic tanks is pumped to the existing treatment tank for secondary treatment, described in section 1.5.2.

The dosing compartment of the 15,000-gallon combination septic/pump tank is equipped with duplex submersible pumps (Goulds Model 3887 BHF No. WS1012BHF) as well as floats for pump controls and high water level alarm. The floats are connected to a SCADA system with an alert system and pump controls.

1.5.2. Secondary Treatment

The existing treatment train will be upgraded during Phase 2. The existing above ground MBR structure will be retained and repurposed. The MBR membranes, pumps, and diffusers will be removed and the MBR tank (treatment tank) will remain in place. Two new Orenco AdvanTex® AX100 treatment units (AX100 units), designed for blackwater and restaurant waste, will be installed above-ground. The combined septic tank effluent from the site will be pumped to the system, through an existing two-millimeter perforated screen. The screened influent will first enter the 7,000-gallon pre-anoxic chamber of the treatment tank. In addition to the septic tank effluent, a mixed liquor recirculation stream from the AX100 treatment units will also enter the anoxic zone for denitrification. Effluent from the pre-anoxic chamber of the treatment tank will flow over an existing weir inside

the treatment tank into the 13,000-gallon aeration chamber for biological oxygen demand (BOD) removal and nitrification.

The existing pump that transfers aeration chamber effluent to the membrane chamber will be removed. The existing 3,000-gallon membrane chamber of the treatment tank will remain as a primary post-aeration settling chamber. Effluent from the aeration chamber will be conveyed to this post-aeration settling chamber (the prior membrane chamber) via an existing overflow connection. Effluent from the settling chamber will be conveyed to the new Orenco AX100 system via an existing overflow connection to the sludge tanks.

The existing blower serving the aeration chamber will be replaced with a modern, high efficiency, low noise blower. The existing diffusers will be inspected and replaced if necessary. The aeration process will reduce BOD of the mixed liquor to less than 220 milligrams per liter (mg/L). This is the maximum mass loading for final treatment in two Orenco AX100 units, per specifications provided by Orenco.

The two new AX100 units will be installed above-ground, adjacent to the four existing 5,000-gallon sludge tanks. Two of the sludge tanks will be disconnected from the existing system, pumped, and tested for watertightness. One sludge tank will be repurposed as an additional settling tank for the secondary-treated effluent from the settling chamber of the treatment tank. This will allow suspended solids to settle out before gravity flowing to the second sludge tank, which will be repurposed as a recirculation tank for the AX100 units. A portion of the water pumped from the recirculation tank will be diverted back to the pre-anoxic chamber for advanced denitrification. The remainder will cycle through the AX100 units, which will provide additional BOD removal and denitrification. Distribution between the pre-anoxic chamber and the AX100 units will be controlled by balancing valves and monitored by flow meters. This will allow the operator to adjust the recirculation rate as needed. Recirculation will be controlled by two 50 gallon per minute, 0.75 Horsepower pumps.

Recirculation through the AX100 units will reduce BOD and total suspended solids (TSS) in the polished effluent to less than 30 mg/L, suitable levels for subsurface drip dispersal. The upgraded system is expected to reduce total nitrogen (TN) by a minimum of 50 percent.

Effluent from the AX100 units will pass through a recirculating splitter valve in the recirculation tank and be conveyed to the existing 5,000-gallon pump tank for timed dosing to the existing GeoFlow subsurface drip dispersal field. Pump tank effluent will pass through a new Sanitron® ultraviolet (UV) system for disinfection prior to dispersal to the existing field.

The two remaining 5,000-gallon sludge tanks will remain as emergency overflow tanks for the upgraded treatment system. The system has an alarm float that indicates when the tank is half full.

1.5.3. Disinfection System

Disinfection will be provided by a new 280-watt Sanitron® S5000C Ultraviolet (UV) unit. The Sanitron UV unit will be installed in-line between the dosing tank outlet and the Geoflow field, providing continuous disinfection for all flows to the field. The Sanitron UV unit is recommended for flows up to 30 gallons per minute.

1.5.4. Subsurface Dispersal System

Treated wastewater is discharged to land in a dedicated land dispersal area located on the facility site, behind, southwest of the restaurant building and associated adjacent vehicle parking area. The dispersal area is about 40,000 square feet (sf). The area was graded in 2004 to create an elevated constant-shallow-slope area for the dispersal system. Following initial grading, a bed of uncompacted imported loam soil of 18 to 36 inches deep was placed over native soil. The dispersal system pipe network was laid out within the imported soil. The area was seeded and mulched after construction. The finished area is a grass-vegetated field of constant shallow slope (0.5 percent), sloping from the southwest to the northeast, with associated steeper sloping edges. The effluent dispersal system is comprised of a subsurface pressurized pipe network of proprietary manufactured tubing with built-in 'drip' emitters (Geoflow™ Subsurface Dripline), installed within the dispersal area.

The subsurface drip dispersal system will be upgraded during Phase 3. Phase 3 upgrades include replacing the Geoflow subsurface drip tubing and adding soil to the existing dispersal field to increase separation to the seasonally high groundwater table. Two complete Geoflow dispersal fields will be built, one to serve as the primary dispersal field and one to serve as the reserve area (Reserve Area 1). Dispersal lines will be installed with two-foot spacing between adjacent lines below the finished surface grade. Emitters will be located at two-foot intervals along each line. The treated effluent from the AX100 units, as installed in Phase 2, will be discharged into the existing 5,000-gallon dosing tank which will then discharge into the proposed Geoflow subsurface disposal system.

A septic site evaluation conducted in 2021 found 24 inches of suitable soil above the limiting condition (mottling). Therefore, the new Geoflow subsurface drip tubing will be placed at existing grade. Nine inches of suitable fill soil will be added over the primary and reserve areas, to allow for settlement, and will result in a minimum of 30 inches of suitable soil per Napa County standards. Based on the limited depth of suitable soils found on site, the septic system will be an engineered subsurface drip system with pretreatment consistent with Napa County requirements. The new primary Geoflow dispersal system will be placed over test pits 1, 2, and 3 from the 2021 site evaluation. The 100 percent Reserve Area 1 will be placed over test pits 3, 4, and 6 from the 2021 site evaluation.

The subsurface dispersal field was originally sized at an estimated application rate of 0.1 gallon per day per square foot (gpd/sf), allowing 4,000 gpd to be pumped to into the 40,000-sf dispersal field, which was the overall design constraint of the capacity of the system. The 2021 site evaluation and 2023 percolation tests of the native subgrade

found the allowable application rate to be 0.4 gpd/sf, and that the actual capacity of the existing dispersal field is 16,000 gpd, which is four times greater than the original assumed application rate. The Phase 3 plans propose an increase in the soil application rate from 0.1 to 0.3 gpd/sf. Although higher than the original soil application rate, the proposed soil application rate of 0.3 gpd/sf is more conservative than the 0.4 gpd/sf maximum application rate determined at the 2021 site evaluation or found in the native subgrade during the percolation test.

As noted in section 1.3, no reserve area was required in the Individual Order. Although this Notice approves an increased application rate based on updated site evaluations, 100 percent reserve area is now required. The maximum discharge to the dispersal field is limited to 4,000 gpd and will remain until the pending Napa County Use Permit (P22-00004) is approved.

Based on Napa County requirements, a second 100 percent reserve area (Reserve Area 2) is identified in the Phase 3 plans, northwest of the subsurface dispersal field. This area will be prohibited from development by the pending Napa County Use Permit, but will not be constructed as part of the Phase 3 plans. If use of Reserve Area 2 is needed in the future, Discharger shall submit an updated Report of Waste Discharge as described in section 5.2.

Treated effluent will flow to the existing 5,000-gallon dosing tank, for final dispersal to the Geoflow dispersal field. The Geoflow system will be evenly time-dosed over the entire 24-hour day. The Vcom Control Panel supplied with the AX100 units will control distribution. Flow meters will be installed in the supply and return manifolds to measure the volume of flow discharged to the Geoflow system and the field flush flow returned to the dosing tank. The net discharge will be calculated as the difference between the two-meter readings.

Two monitoring wells will be installed within each zone of both the primary dispersal field and Reserve Area 1, consistent with Napa County standards. In addition, one monitoring well will be installed 25 feet away from all sides of the primary and reserve dispersal fields, for a total of 30 monitoring wells. Monitoring wells will be observed twice annually as noted in section 13(g)(2) of the Napa County Alternate Sewage Treatment System Monitoring Program. The depth to groundwater will be measured and evaluated. If groundwater is observed within 24 inches of the installed Geoflow lines, samples will be collected from all 30 wells for total and fecal coliform analysis. Monitoring requirements for the dispersal field monitoring wells are included in the Subsurface Disposal Area section of the MRP.

The existing monitoring wells, GW-1, GW-3, and GW-4A, shall be maintained for groundwater monitoring until the new monitoring wells are installed.

2. CALIFORNIA ENVIRONMENTAL QUALITY ACT (CEQA)

The transition of permit coverage for this existing Facility from the Individual Order to the General Order, with no expansion of capacity, is categorically exempt from the

CEQA pursuant to California Code of Regulations, title 14 (14 CCR), sections 15301 (ongoing or existing projects), 15302 (replacement or reconstruction of existing utility systems), and 15303 (new construction or conversion of small structures). There is a pending application for Use Permit P22-00004 with Napa County to increase total seating to 100 from 60 seats, add outdoor dining, and increase the peak wastewater flows to 5,310 gpd from 4,000 gpd. The County is currently performing further CEQA evaluation of the proposed project. Should the project be approved, this Notice will be updated.

Past CEQA actions at the Facility include:

- On June 3, 1987, the Napa County Conservation, Development and Planning Commission (NCCDPC) adopted a Negative Declaration for the proposed Crystal Valley Cellars (now Cosentino Winery) winery facility and the associated proposed wastewater pond system. The Negative Declaration found that the proposed project would not have a significant effect on the environment. The project was subsequently modified to include the Mustards Grill restaurant and wastewater facilities for both the winery and the restaurant.
- On March 22, 1989, the NCCDPC approved a Use Permit for the modified wastewater system project, and a finding that the project is categorically exempt from CEQA, pursuant to 14 CCR section 15302 (Class 2 Categorical Exemption - Replacement or Reconstruction of Existing Facilities).
- On May 4, 2005, the NCCDPC approved a Negative Declaration for the proposed project to dismantle parts of the existing joint wastewater system used by Mustards Grill and Cosentino Winery, and establish a new wastewater system for Mustard Grill (Mustards Grill Use Permit (#03460-UP) Negative Declaration). The Negative Declaration included mitigation measures and determinations that, with incorporation of those measures, environmental impacts of the project would be less than significant. A Notice of Determination, dated May 26, 2005, was filed by NCCDP Department (State Clearinghouse Number 2005042012). Water Board staff reviewed the Negative Declaration and found it to be acceptable prior to the Water Board issuing the Individual Permit in 2006.

3. SITE REQUIREMENTS AND EFFLUENT LIMITS

The wastewater treatment operator must be familiar with the requirements contained in the General Order, this Notice, and the Monitoring and Reporting Program. General Order Provision E.2.k. states that wastewater facilities shall be supervised and operated by persons possessing a wastewater treatment operator certificate of the appropriate grade. The Facility will be operated and maintained in accordance with an Operation and Maintenance Manual and program for implementation including operation by state-certified wastewater operator(s), and contract assistance by qualified service providers as needed, in accordance with the requirements of California Water Code (Water Code) sections 13627 and 13628 and 23 CCR sections 3670 through 3719. The Discharger is the responsible party for the Facility and proper operations.

3.1. Requirements for All Wastewater Systems

The General Order contains prohibitions, flow limits, and setback requirements that apply to all wastewater systems. The Discharger is directed to review the requirements for all wastewater systems, which may be found in General Order sections A. Prohibitions (p. 15) and B.1. All Wastewater Systems (p. 16). These requirements are also summarized in Notice Table 1.

3.2. Site-Specific Requirements

3.2.1. Treatment System Requirements

The Facility uses an onsite wastewater treatment system (OWTS) with pre-anoxic and aerobic treatment tanks and Orenco AdvanTex® AX100 treatment units that discharge to an onsite Geoflow subsurface drip dispersal field, which is subject to General Order sections B.1 All Wastewater Systems (pp. 16-20), B.2 Septic Systems (pp. 20-21), B.3 Aerobic Treatment Unit Requirements (p. 21), B.6 Subsurface Disposal Systems (pp. 24-25), and B.8 Sludge/Solids/Biosolids Disposal (pp. 26-27). These sections of the General Order contain provisions regarding Facility submittal of a Sludge Management Plan, among other provisions.

3.3. Site-Specific Effluent Limits

The Facility is subject to effluent limits on Biological Oxygen Demand (BOD), Total Suspended Solids (TSS), and Total Nitrogen (TN) summarized in Table 2 of this Notice. The following sections describe how these limits were determined from General Order provisions.

3.3.1. Effluent Limits for Biological Oxygen Demand

Biological Oxygen Demand of the effluent shall not exceed a monthly average of 30 mg/L nor a 7-day average of 45 mg/L, in accordance with the requirements for facilities using activated sludge, MBR, or similar technology, described in General Order Table 4, Step 1.

3.3.2. Effluent Limits for Total Suspended Solids

Levels of Total Suspended Solids in the effluent shall not exceed a monthly average of 30 mg/L nor a 7-day average of 45 mg/L, in accordance with the requirements for facilities using activated sludge, MBR, or similar technology, described in General Order Table 4, Step 1.

3.3.3. Effluent Limits for Total Nitrogen

The General Order includes a process and criteria for evaluation of nitrogen effluent limits. For this Facility, the process identifies that nitrogen effluent limits are not required for wastewater flow rates less than 20,000 gpd (General Order, requirements section D, page 27).

However, the Phase 2 Wastewater Design Report of the ROWD describes that the treatment process is expected to decrease total nitrogen levels in wastewater effluent

by a minimum of 50 percent. Given the shallow depth to groundwater, a minimum of 50 percent total nitrogen removal is appropriate to protect groundwater. This Notice authorizes the wastewater discharge consistent with the ROWD, and therefore includes a nitrogen effluent limit of 50 percent reduction for total nitrogen in the effluent compared to the influent. The value represents the minimum percent reduction compared to the untreated wastewater value. Reduction shall be calculated on an annual basis. In no case shall the reduction result in an effluent limit lower than 10 mg/L total nitrogen.

4. MONITORING AND REPORTING PROGRAM

The Discharger shall comply with the attached Monitoring and Reporting Program, which is attached hereto and made part of this Notice by reference.

5. REPORTS TO BE SUBMITTED TO THE REGIONAL WATER BOARD

5.1. Technical Reports

The following technical reports are required pursuant to Water Code section 13267. All technical documents shall be signed by and stamped with the seal of a California licensed professional civil engineer.

The technical reports include the required information listed in General Order section E as well as additional information to assure adequate and reliable wastewater management for the life of the development served and ongoing compliance with waste discharge requirements.

The technical reports shall be acceptable to the Water Board's Executive Officer and shall be submitted as described below.

Operations and Maintenance Plan

By October 1, 2024, the Discharger shall submit a final *Operations and Maintenance Plan* (O&M Plan) for the wastewater treatment and disposal system. The O&M Plan shall be reviewed annually and revised as needed; at a minimum, an updated O&M Plan shall be submitted every five years. The O&M Plan shall address the following:

- **Operating personnel**, including the numbers of staff, certification levels, and responsibilities
- **Treatment system operations**, including compilation of equipment-specific operations and maintenance manuals
- **Monitoring and alarm systems** for each unit process, including specific alarm set points
- **Standard operating procedures**, including startup and shutdown procedures, directions for completing routine tasks, operator log sheets and checklists, and troubleshooting procedures

- **Preventative maintenance and capital improvement program** to ensure that all equipment is kept in a reliable operating condition and replaced before it fails.
- **Spill prevention and emergency response plan**, consistent with the requirements of General Order Provision E.1.a.¹
 - Operation and Control of Wastewater Treatment
 - Sludge Handling
 - Collection System Maintenance
 - Emergency Response
 - Notification Procedures
 - Sludge management plan, consistent with the requirements of General Order Provision E.1.c.¹
- **Climate change considerations**

Climate change is shifting precipitation and temperature patterns, exacerbating extreme weather events, and causing sea level rise and groundwater rise. These conditions have significant implications for wastewater collection, treatment, and discharge operations.

Existing site conditions, including seasonally high groundwater, already limit onsite wastewater disposal capacity. Future onsite wastewater disposal capacity could be further limited as a result of climate change. Therefore, the Discharger shall consider the Facility's vulnerability to climate change in the O&M Plan:

- **Groundwater Rise.** There is a risk of potential for groundwater rise. Please explain how the Discharger intends to monitor and manage rising groundwater as it relates to the operation of the wastewater disposal system. If the Discharger believes it is not susceptible to groundwater rise, explain the basis for the conclusion.
- **Changing Climate and Weather.** There is a potential for increased flooding risks for the wastewater disposal system due to greater rainfall intensity and other weather changes. Please explain how the Discharger intends to manage flooding risks as it relates to the operation of the wastewater disposal system. If the Discharger believes it is not susceptible to increased flooding risks, explain the basis for the conclusion.

At a minimum, subsurface disposal area and visual monitoring is required as specified in the MRP. Please include any other management measures needed to maintain, protect, and improve wastewater infrastructure in the O&M Plan,

¹ General Order Provisions E.1.a. and E.1.c. require preparation of a *Spill Prevention and Emergency Response Plan* and a *Sludge Management Plan*. These plans can be included in the overall O&M Plan as listed above or submitted as standalone plans.

which may include near-term measures, long-term design modifications and improvements, new monitoring, and updated emergency response planning.

Sampling and Analysis Plan

By October 1, 2024, the Discharger shall submit a *Sampling and Analysis Plan* consistent with the requirements of General Order Provision E.1.b. At a minimum, the Sampling and Analysis Plan shall describe the following:

- Sample chain-of-custody procedures and documentation
- Sampling locations
- Sampling frequencies
- Sample handling/preservation procedures
- Analytical methods
- Sample containers, preservatives, and holding times

5.2. Report of Waste Discharge

The ROWD is the primary technical documentation for description of wastewater system design, plans, and criteria.

1. Discharges of waste other than as described in the ROWD are not authorized.
2. The Discharger is responsible for assuring that the ROWD documentation on file with the Regional Water Board remains current and accurate.
3. The Discharger is required to submit a new Facility Report of Waste Discharge, or additional information supplementing a prior Facility Report of Waste Discharge, describing any anticipated major changes to the wastewater system or discharges, at least 120 days prior to the changes.

5.3. Report Availability

All reports are to be available to all relevant personnel involved with the wastewater system, including owners, operators, system design engineers, and regulators.

6. GEOTRACKER ELECTRONIC REPORTING REQUIREMENTS

The Discharger shall submit all technical reports and analytical monitoring results to [GeoTracker](#), a Water Boards internet-accessible database, by the dates listed in this Notice. Additional information and resources on GeoTracker are listed below.

The Discharger-specific GeoTracker Global ID is WDR100052312. In order to submit reports electronically, create a secure GeoTracker Electronic Submittal of Information (ESI) account and log in. The account will be connected to the Global ID. The Discharger can request a username and password [online](#), which is accessible from the 'Getting Started' section on the GeoTracker [ESI webpage](#).

Additional GeoTracker support information can be found at the following:

- a. 'Guides/Resources' document link in the "Tools" on the GeoTracker ESI account
- b. Resources on the GeoTracker ESI website, such as the [Beginner's Guide](#)
- c. General GeoTracker Help Desk contact information:

Phone: 1-866-480-1028

Email: geotracker@waterboards.ca.gov

7. ENFORCEMENT

Please review this Notice carefully to ensure that it completely and accurately reflects the discharge. If the discharge violates the terms or conditions listed, the Regional Water Board may take enforcement action, including assessment of administrative civil liability. Prior to allowing changes to the wastewater strength or generation rate, or if the method of waste disposal changes from that described in the ROWD, you must contact your Regional Water Board to determine if submittal of an updated Report of Waste Discharge is required.

The Discharger will generate the waste subject to the terms and conditions of the General Order, this Notice, and the ROWD and will maintain exclusive control over the discharge. As such, the Discharger is responsible for compliance with the General Order and this Notice.

8. ANNUAL FEES

The Discharger is responsible for payment of an annual fee, pursuant to Water Code section 13260 and the Annual Fee Schedule as stated in 23 CCR section 2200. The fee amount is determined by the type of order and the Threat to Water Quality (TTWQ) and Complexity (CPLX) rating. Staff will assess the discharge and assign the TTWQ and CPLX rating. The corresponding annual fee is based on the TTWQ and CPLX rating. The Water Quality Fee Schedule is subject to change annually and is accessible online at http://www.waterboards.ca.gov/resources/fees/water_quality/#wdr.

The fee is due and payable on an annual basis until coverage under the General Order is formally terminated. To terminate coverage, you must provide written notice if the wastewater discharge ceases so that we may terminate coverage and avoid unnecessary billing. To terminate coverage voluntarily, the Discharger must submit in writing a Notice of Termination that includes, at a minimum, the Discharger's name and contact information, Facility name and address, and reason for requesting termination of coverage. However, termination shall not be considered effective until the Regional Water Board provides written approval of the Notice of Termination.

9. AUTHORIZATION FOR COVERAGE UNDER ORDER WQ 2014-0153-DWQ

I hereby approve the Mustards Grill as described in the Facility Report of Waste Discharge to henceforth be regulated under the General Order. Failure to abide by the conditions of the General Order, this Notice, the Monitoring and Reporting Program, the Facility Report of Waste Discharge, could result in enforcement actions, as authorized by provisions of the California Water Code.

If you have any questions or comments, please contact Sarah Acker of my staff at (510) 622-2494 or Sarah.Acker@waterboards.ca.gov.

Sincerely,



Digitally signed by Keith H.
Lichten, Division Manager
Date: 2024.07.10 10:22:43
-07'00'

Water Boards

for Eileen M. White, P.E.
Executive Officer

Enclosures: Table 1, Summary of Facility Requirements
 Table 2, Summary of Facility Effluent Limits

Attachments: A: Site Location/Vicinity Map
 B: Site Map
 C: Schematic of Wastewater Treatment Process
 D: General Waste Discharge Requirements for Small Domestic
 Wastewater Treatment Systems, Order WQ 2014-0153-DWQ
 E: Monitoring and Reporting Program

cc (via email):

State Water Board, Waste Discharge Requirements Unit

DWQ-Winery@waterboards.ca.gov

Regional Water Board

Margaret Monahan, Margaret.Monahan@Waterboards.ca.gov

Napa County

Kim Withrow, Kim.Withrow@countyofnapa.org

Armeda Simpson-VanDam, armeda.vandam@countyofnapa.org

RSA+ Civil Engineers

Paul Warnock, PWarnock@RSACivil.com

Hugh Linn, HLinn@RSACivil.com

Heritage Systems, Inc.

Ashley Boudet, ABoudet@HeritageSystemsInc.com

Marke Haefke, MHaefke@HeritageSystemsInc.com

Grant Gieseke, grant@HeritageSystemsInc.com

Table 1: Summary of Facility Requirements.

Requirement	General Order Section(s)	General Order Page
<i>All Wastewater Systems</i>		
Prohibitions	A.1 – A.11	15
General	B.1.a – B.1.k	16
Setbacks	B.1.l	17
<i>Site-Specific</i>		
Septic Systems	B.2.a – B.2.e	20
Aerobic Treatment Units	B.3.a – B.3.g	21
Subsurface Disposal Systems	B.6.a – B.6.h	24
Sludge/Solids/Biosolids Disposal	B.8.a – B.8.f	26
<i>Reports/Documents Required to be Kept On-Site</i>		
Operations and Maintenance Plan		
Spill Prevention and Emergency Response Plan ¹	E.1.a	28
Sampling and Analysis Plan	E.1.b	29
Sludge Management Plan ¹	E.1.c	30
Copies of Notice, General Order, and Technical Reports	E.2.h	32

¹These plans can be included in the overall O&M Plan or kept as standalone plans.

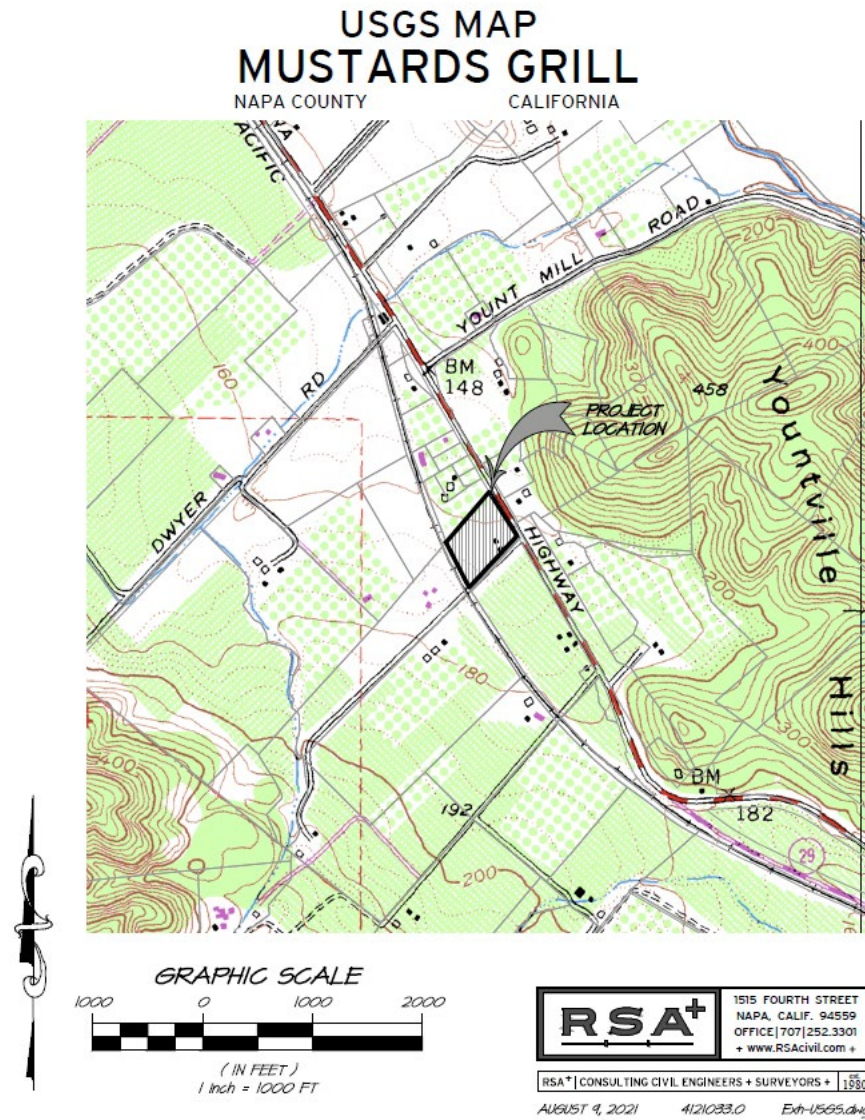
Table 2: Summary of Facility Effluent Limits.

Constituent		Numeric Limit	General Order Section(s)	General Order Page
Biological Oxygen Demand (BOD)	7-day Average	45 mg/L	D.1.a (Table 4)	28
	Monthly Average	30 mg/L		
Total Suspended Solids (TSS)	7-day Average	45 mg/L		
	Monthly Average	30 mg/L		
Total Nitrogen (TN)		50% reduction ^{1,2}	--	--

¹ The value represents the minimum percent reduction compared to the untreated wastewater value. Reduction shall be calculated on an annual basis. In no case shall the reduction result in an effluent limit lower than 10 mg/L total nitrogen.

² Based upon expected effluent quality as reported in the Report of Waste Discharge.

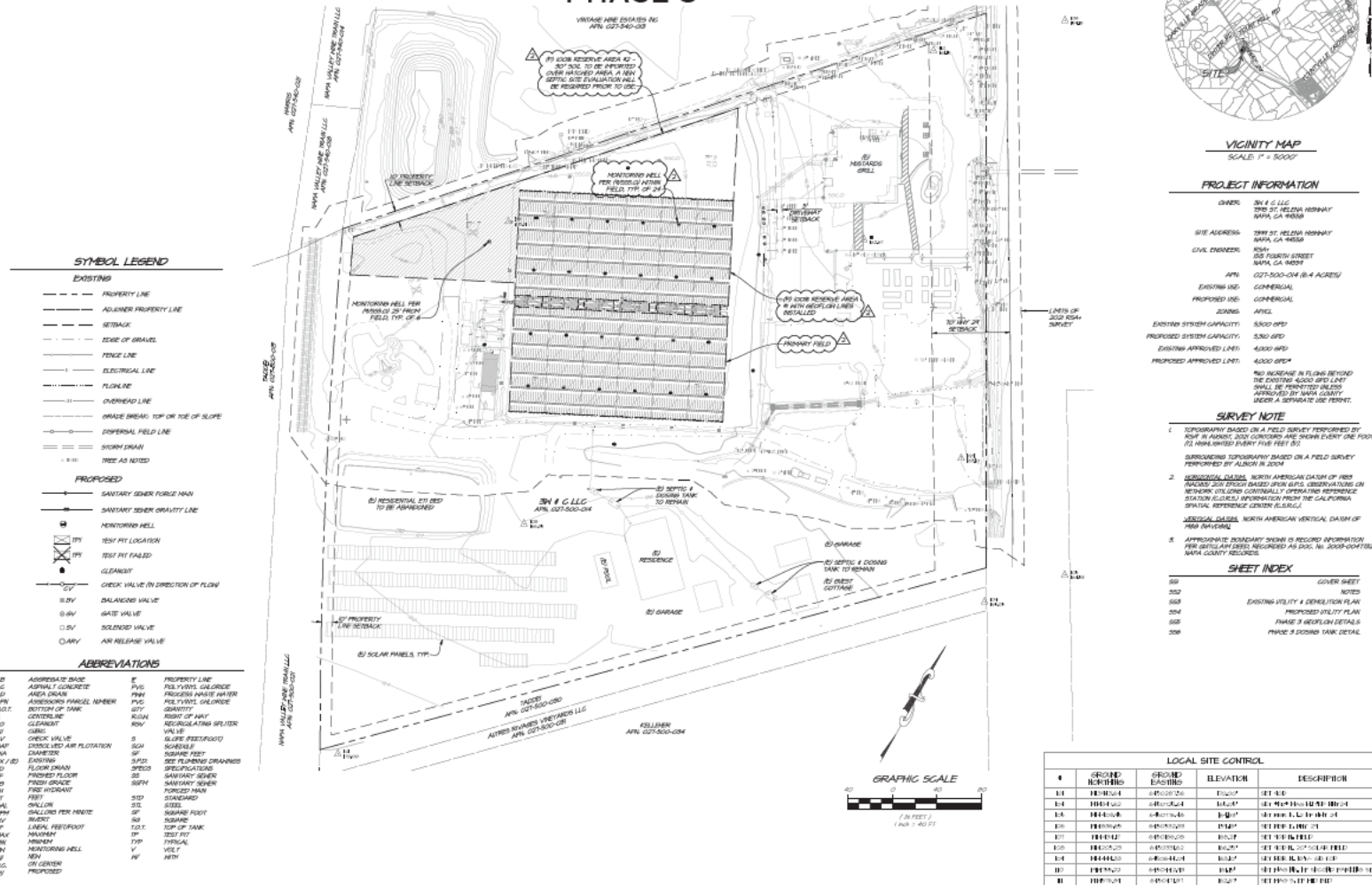
ATTACHMENT A: SITE LOCATION/ VICINITY MAP



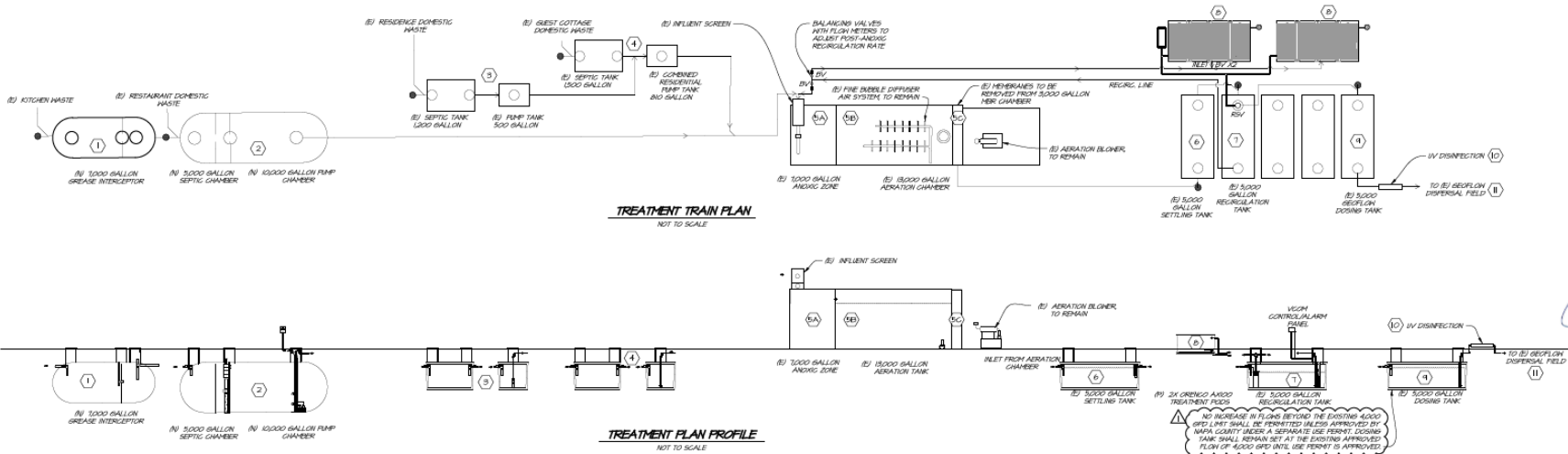
ATTACHMENT B: SITE MAP

MUSTARDS GRILL

ALTERNATIVE SEWAGE TREATMENT SYSTEM (ASTS) REPAIR PLANS PHASE 3



ATTACHMENT C: SCHEMATIC OF WASTEWATER TREATMENT PROCESS



Parameter	Primary Treatment				Combined Influent			Secondary Treatment			AX-100 Treatment			Effluent	
	1. Grease Interceptor	2. Restaurant Septic/Lift	3. Primary Residence	4. Guest House	Primary Treated Influent	Recirculated Influent	Combined Influent	5a. Anoxic	5b. Aeration	5c. MBR	6. Settling	7. Recirc	8. AX-100	9. Dosing Tank	10. Disinfection



**STATE WATER RESOURCES CONTROL BOARD
ORDER WQ 2014-0153-DWQ**

**GENERAL WASTE DISCHARGE REQUIREMENTS
FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS**

September 23, 2014



September 23, 2014

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STATE WATER RESOURCES CONTROL BOARD
ORDER WQ 20140-0153-DWQ
GENERAL WASTE DISCHARGE REQUIREMENTS
FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS

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General Order Attachment

<u>Document</u>	<u>Number</u>	<u>Attachment Title</u>	
Attachment	1	Nitrogen Effluent Limit Evaluation	 1-1

Information Sheet Attachments

<u>Document</u>	<u>Number</u>	<u>Attachment Title</u>	
Information Sheet		Information Sheet Summary	.. INFO-1
Information Sheet	A	Generalized Permit Application Process Summary	 A-1
Information Sheet	B1	Recommended Report of Waste Discharge Format	 B1-1
Information Sheet	B2	Safe Wastewater Disposal for Recreational Vehicles	 B2-1
Information Sheet	C	Model Monitoring and Reporting Program	 C-1

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ACRONYMS AND ABBREVIATIONS	
afy	acre feet per year
AGR	Agricultural Supply
Antidegradation Policy	State Water Board Resolution 68-16
APMP	Advanced Protection Management Program
AQUA	Aquaculture
Basin Plan	Water Quality Control Plan
BOD	Biochemical Oxygen Demand
BPTC	Best Practicable Treatment or Control
CalOES	California Office of Emergency Services
CDPH	California Department of Public Health
CEC	Constituents of Emerging Concern
CEQA	California Environmental Quality Act
C.F.R.	Code of Federal Regulations
DDW	State Water Board, Division of Drinking Water
E. coli	Escherichia coli
e.g.	Latin <i>exempli gratia</i> (for example)
FDS	Fixed Dissolved Solids
FEMA	Federal Emergency Management Agency
FRESH	Fresh Water Replenishment
General Order	General Waste Discharge Requirements Order
gpd	gallons per day
GWR	Groundwater Recharge
I/I	Inflow and Infiltration
IND	Industrial Service Supply
LAA	Land Application Area
MBR	Membrane Biological Reactor
MCL	Maximum Contaminant Level
mg/L	Milligrams per liter
MPI	Minutes Per Inch
MPN	Most Probable Number
MRP	Monitoring and Reporting Program
MUN	Municipal Supply
N	Nitrogen
NOA	Notice of Applicability
NPDES	National Pollutant Discharge Elimination System
NTU	Nephelometric Turbidity Unit
OWTS Policy	Onsite Wastewater Treatment System Policy
P	Phosphorus
pdf	Portable Document Format
Perc Rate	Percolation Rate
PROC	Industrial Process Supply
REC-1	Water Contact Recreation
Regional Water Board	Regional Water Quality Control Board

ACRONYMS AND ABBREVIATIONS	
RV	Recreational Vehicle
ROWD	Report of Waste Discharge
SAP	Sampling and Analysis Plan
SNMP	Salt and Nutrient Management Plan
State Water Board	State Water Resources Control Board
TBD	To Be Determined
TDS	Total Dissolved Solids
TKN	Total Kjeldahl Nitrogen
TMDL	Total Maximum Daily Load
TSS	Total Suspended Solids
USEPA	United States Environmental Protection Agency
Wat. Code	Water Code
WILD	Wildlife Habitat
WDRs	Waste Discharge Requirements
WQO 97-10-DWQ	Water Quality Order 97-10 Division of Water Quality
§ or §§	Section or Sections

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FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS

BACKGROUND INFORMATION

Findings:

The State Water Resources Control Board (State Water Board) finds that:

1. Water Code section 13260(a) requires that any person discharging waste or proposing to discharge waste within any region, other than to a community sewer system, that could affect the quality of the waters of the state, file a Report of Waste Discharge (ROWD) to obtain coverage under Waste Discharge Requirements (WDRs) or a waiver of WDRs. "Waste" is defined in Water Code section 13050(d).
2. Discharges to land from Small Domestic Wastewater Treatment Systems (hereafter Small Domestic Systems) have certain common characteristics, such as similar constituents, concentrations of constituents, disposal techniques, flow ranges, and they require the same or similar treatment standards. These types of discharges are appropriately regulated under a General Waste Discharge Requirements Order (General Order). State Water Board Water Quality Order 97-10-DWQ (WQO 97-10-DWQ) is a 1997 General Order addressing Small Domestic Systems. Once effective, this General Order will supersede WQO 97-10-DWQ which will no longer be available for additional enrollees.
3. For the purposes of this General Order, the term "wastewater system" shall mean the collection system, treatment equipment, pumping stations, treatment ponds, clarifiers, sand/media filters, disinfection systems, recycled water systems (including distribution systems), storage ponds, land application areas, and other systems associated with the collection, treatment, storage, and disposal of wastewater.
4. Only Small Domestic Systems, with a monthly average flow rate of 100,000 gallons per day (gpd) or less, that discharge to land are eligible for coverage under this General Order. Small Domestic Systems are typically located at individual residences, rural parks, schools, campgrounds, mobile home parks, roadside rest stops, small commercial or residential subdivisions, restaurants, resort hotels/lodges, small correctional facilities, temporary fire-fighting camps, and recreational vehicle (RV) dump locations, including RV parks. An owner and/or operator of such a wastewater system is hereafter referred to as Discharger in this General Order. A Small Domestic System that uses subsurface disposal may be regulated by a local agency rather than a Regional Water Board, consistent with the Water Quality Control Policy for Siting, Design, Operation, and Maintenance of Onsite Wastewater Treatment Systems Policy (OWTS Policy). Wastewater systems regulated by local agencies may continue that coverage unless directed by the local agency or the Regional Water Board Executive Officer to seek WDRs from the Regional Water Board.
5. Wastewater treatment technologies evolve over time. Septic tanks and gravity fed leach fields provide the lowest level of acceptable treatment. Other treatment may include aerobic treatment systems, sand/media filters, package treatment plants, constructed wetlands, activated sludge, membrane biological reactors, and disinfection systems. Similarly, other dispersal options for the treated effluent may include pressure dosing, drip irrigation, land application, mound/at grade systems, or

evapotranspiration systems. The level of treatment shall be based upon the wastewater quality and the receiving water quality at the wastewater disposal location. For flow rates that exceed 20,000 gallons per day (gpd), Attachment 1, *Nitrogen Effluent Limit Evaluation*, provides direction in evaluating a discharge and determining when nitrogen control is required. Seepage pits may be considered part of the disposal system if inadequate land exists for a leach field dispersal system, other site conditions require the use of seepage pits, and site conditions are favorable for the use of seepage pits (groundwater quality shall be maintained consistent with this General Order). The discussion of treatment and disposal alternatives is not intended to limit the selection of alternatives available to the wastewater system designer.

6. All WDRs must implement the applicable Regional Water Quality Control Board's (Regional Water Board's) Water Quality Control Plan (Basin Plan) for the region in which the discharge occurs; therefore this General Order requires Dischargers to comply with all applicable Basin Plan requirements, including any prohibitions and/or water quality objectives, governing the discharge. The Discharger must comply with any more stringent standards in the applicable Basin Plan. In the event of a conflict between the requirements of this General Order and the Basin Plan, the more stringent requirement prevails.
7. This General Order allows the production and use of recycled water (as defined in Water Code section 13050(n)) and requires all recycled water use to comply with the applicable requirements described in California Code of Regulations, title 22, division 4, chapter 3, (hereafter title 22). Compliance with title 22 water recycling criteria and title 17 sanitation requirements shall be determined by the State Water Board Division of Drinking Water (DDW) (formerly California Department of Public Health), which reviews title 22 Engineering Reports. This General Order also allows for the application of treated wastewater to land that does not meet the definition of beneficial use, and is therefore not subject to the title 22 requirements.
8. Wastewater and treated wastewater quality vary depending upon source water quality, the activities generating the wastewater, water conservation efforts, inflow and infiltration (I/I), and treatment technology. Typical domestic wastewater and treated wastewater characteristics are presented in Table 1. Published wastewater textbooks and/or United States Environmental Protection Agency (USEPA) wastewater publications may also be used to characterize wastewater characteristics.

Table 1: Summary of Domestic Wastewater Characteristics

<u>Constituent</u>	<u>Units^a</u>	Typical Domestic Wastewater	Septic Tank Influent	Septic Tank Effluent	Secondary Treatment Effluent	Equivalent to Secondary Treatment Effluent
Biochemical Oxygen Demand	mg/L	200-290 ^b	155-286 ^c	140-200 ^d	30-45 ^e	65 percent reduction ^f
Total Suspended Solids	mg/L	200-290 ^b	155-330 ^c	50-100 ^d	30-45 ^e	^p
Ammonia (as N)	mg/L	6-18 ^b	4-13 ^c	-- ^{g,o}	-- ^{g,h}	-- ^{g,h,i}
Total Nitrogen	mg/L	35-100 ^b	26-75 ^c	40-100 ^d	50% ^m	43-80% ^{k,h,i}

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FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS

- 3 -

<u>Constituent</u>	<u>Units</u> ^a	Typical Domestic Wastewater	Septic Tank Influent	Septic Tank Effluent	Secondary Treatment Effluent	Equivalent to Secondary Treatment Effluent
Nitrite and Nitrate (as N)	mg/L	<1 ^b	<1 ^c	-- ^{g,o}	-- ^{g,h}	-- ^{g,h,i}
Total Phosphorus (as P)	mg/L	6-12 ^b	6-12 ^c	5-15 ^d	51% ^m	50% ^{k,h,i}

^a. mg/L denotes milligrams per liter.

^b. Data from Table 4-3, USEPA Wastewater Treatment/Disposal for Small Communities, Manual, September 1992, EPA/625/R-92/005.

^c. Data from Table 3-7, USEPA Onsite Wastewater Treatment System Manual, June 2005, EPA/625/R-00/008.

^d. Data from Table 3-19, USEPA Onsite Wastewater Treatment Systems Manual, June 2005, EPA/625/R-00/008.

^e. Data from Exhibit 5-6, USEPA NPDES Permit Writers' Manual, December 1996, EPA-833-B-96-003.

^f. Data from Section 5.2.2, USEPA NPDES Permit Writers' Manual, December 1996, EPA-833-B-96-003.

^g. "--" denotes data not available.

^h. Value highly variable depending upon treatment technology.

ⁱ. No technology based limit established by USEPA.

^k. Percent reduction from influent, wastewater pond treatment. USEPA webpage <http://www.epa.gov/caddis/ssr_urb_ww1.html>, accessed August 29, 2014.

^m. Percent reduction from influent wastewater, activated sludge treatment. USEPA webpage <http://www.epa.gov/caddis/ssr_urb_ww1.html>, accessed August 29, 2014.

^o. Insignificant change expected in treatment.

^p. TSS limit not appropriate for land discharge.

9. Discharges from RV holding tanks or portable toilets may contain chemicals that can pollute groundwater quality. Some commercially available products used to control holding tank/portable toilet odors may contain harmful chemicals such as formaldehyde, zinc, or phenol. The harmful chemicals can kill the bacteria in the wastewater treatment system and cause wastewater to be inadequately treated. Inadequately treated wastewater may cause additional problems such as leachfield/seepage pit failure, surfacing wastewater, and potential exposure and health risks. Discharge of the harmful chemicals to groundwater that creates pollution may result in enforcement activities requiring groundwater remediation. The best and least expensive method to prevent groundwater pollution is to not use harmful chemicals by educating RV owners about the pollution hazard.

10. Total dissolved solids (TDS) consists of both volatile (organic) and fixed (inorganic) fractions. A varying concentration of volatile dissolved solids will exist in wastewater effluent depending upon the wastewater source and treatment technology. In a properly operated land application system, volatile dissolved solids in percolate are generally reduced to negligible concentrations (less than 2 mg/L) by filtration and biological degradation following percolation through five feet of soil.¹ However, fixed

¹ USEPA, Process Design Manual, Land Treatment of Municipal Wastewater, Section 4.2.1, 1981.

dissolved solids (FDS) do not degrade biologically. Elevated concentrations of FDS in land applied effluent can change soil chemistry and degrade groundwater quality.

11. Wastewater discharged to land in close proximity to a surface water body may impact surface water quality. Additional monitoring may be required by a Regional Water Board's Executive Officer to determine if the discharge has degraded surface water quality. The USEPA recommends *Escherichia coli* (E. coli) and enterococci bacteria, which exist in fecal material from humans and other warm-blooded animals, as the best indicators of health risk from water contact.² Because both bacteria are present in domestic wastewater, there is no need to monitor separately for them in wastewater effluent. The effectiveness of disinfection procedures are similar for bacteria, therefore total coliform organisms, which is a less expensive analysis, is appropriate to determine if wastewater effluent is effectively disinfected. Total coliform monitoring is required for recycled water use consistent with title 22.
12. Use of recycled water in lieu of potable water is encouraged by the State Water Board as described below:
 - a. The State Water Board's Strategic Plan Update 2008-2012 includes a priority to increase sustainable local water supplies available for meeting existing and future beneficial uses by 1,725,000 acre-feet per year (afy) in excess of 2002 levels by 2015.
 - b. The State Water Board's Policy for Water Quality Control for Recycled Water states the following goals (in part): 1) Increase the use of recycled water over the 2002 level by at least 1 million afy by 2020 and by at least 2 million afy by 2030. 2) Increase the amount of water conserved in urban and industrial uses by 20 percent compared to 2007. 3) Substitute as much recycled water for potable water as possible by 2030.
13. The Recycled Water Policy calls on local water and wastewater entities together with other stakeholders who contribute salt and nutrients to a groundwater basin or sub-basin, to fund and develop Salt and Nutrient Management Plans (SNMPs) to comprehensively address all sources of salts and nutrients. The State Water Board herein reasserts the need for comprehensive salt and nutrient management planning and directs that salinity and nutrient increases should be managed in a manner consistent with the Recycled Water Policy. It is the intent of the Recycled Water Policy that every groundwater basin/sub-basin in California ultimately has a consistent Salt and Nutrient Management Plan. The appropriate way to address salt and nutrient issues is through the development of regional or subregional SNMPs. Dischargers may be directed to perform or participate in SNMP planning activities as described in the Provisions of this General Order.

² USEPA Internet page accessed June 10, 2014 <<http://water.epa.gov/type/rsl/monitoring/vms511.cfm>>.

14. The Recycled Water Policy includes monitoring requirements for Constituents of Emerging Concern³ for the use of recycled water for groundwater recharge by surface and subsurface application methods. The monitoring requirements and criteria for evaluating monitoring results in the Recycled Water Policy are based on recommendations from a Science Advisory Panel.⁴ Because this General Order is limited to non-potable uses and does not authorize groundwater replenishment activities, monitoring for Constituents of Emerging Concern is not required.
15. The Recycled Water Policy requires permits for landscape irrigation with recycled water to include priority pollutant monitoring at the recycled water production facility. Annual monitoring is required for design production flows greater than one million gallons per day; a five year monitoring frequency is required for flows less than one million gallons per day. Priority pollutants are listed in Appendix A of 40 Code of Federal Regulations (C.F.R.) Part 423.
16. Beneficial uses for groundwater are determined by each Regional Water Board and are listed in their respective Basin Plans. Beneficial uses for groundwater are: municipal supply (MUN), industrial service supply (IND), industrial process supply (PROC), fresh water replenishment (FRESH), aquaculture (AQUA), wildlife habitat (WILD), water contact recreation (REC-1), agricultural supply (AGR), and groundwater recharge (GWR). Some beneficial uses only apply to certain geographic areas within regions.
17. Basin Plans establish groundwater quality objectives to protect beneficial uses. The objectives may be narrative, numerical, or both. This General Order requires the Discharger to comply with those objectives in receiving groundwater.

WASTEWATER DISPERSAL

18. Wastewater dispersal will occur by different methods. It may be percolated from ponds; applied to the surface by spray, flood, or drip methods; or discharged to a subsurface dispersal area such as a leachfield or seepage pit. The choice of disposal method will depend upon the amount of wastewater generated, the value of the wastewater for irrigation, and the receiving environment.
 - a. Wastewater discharged to a pond for treatment and/or storage can result in groundwater degradation or nuisance odors. Ponds can also be vulnerable to damage caused by burrowing animals.

³ For this order, Constituents of Emerging Concern are defined to be chemicals in personal care products, pharmaceuticals including antibiotics, antimicrobials; industrial, agricultural, and household chemicals; hormones; food additives; transformation products, inorganic constituents; and nanomaterials.

⁴ The Science Advisory Panel was convened in accordance with provision 10.b of the Recycled Water Policy. The panel's recommendations were presented in the report; *Monitoring Strategies for Chemicals of Emerging Concern in Recycled Water - Recommendations of a Science Advisory Panel*, dated June 25, 2010.

Wastewater percolated from a pond to the subsurface has the potential to degrade groundwater quality to an unacceptable extent. Reducing the amount of wastewater percolated by lining a pond with a synthetic or low permeability liner can control the percolation rate, but an alternative method of wastewater disposal may be required. Land application (discussed below) is often selected as the method to dispose of the wastewater from lined ponds.

Overloading a wastewater pond with Biochemical Oxygen Demand (BOD) constituents can result in nuisance odor generation. Source control of BOD constituents, additional pretreatment prior to discharge to the pond, or mechanical aeration of wastewater in the pond are typically used to prevent a pond from generating nuisance odors.

Burrowing animals can result in rapid failure of a containment berm. The population of such animals should be promptly controlled and repairs to the containment completed as soon as possible.

- b. When land application of wastewater is selected as a disposal method, adequate acreage must be available to allow application rates that will not create nuisance conditions (e.g. vectors, nuisance odors, off-site discharge) or degrade groundwater quality to an unacceptable extent.

Crops are often grown and harvested from a land application area (LAA) to take up wastewater constituents such as nitrogen and dissolved solids, as well as maintain roots which promote wastewater infiltration rates. When climatic conditions are favorable, double cropping an LAA can increase the uptake of wastewater constituents.

Hydraulic loading of an LAA must be controlled to prevent off-site wastewater discharge; if wastewater is not disinfected prior to land application, storm water that falls on the LAA must be contained to prevent the potential migration off-site of pathogenic organisms. LAAs are sometimes equipped with a tailwater control system that allows for reapplication of wastewater to the LAA or returning tailwater to a wastewater pond.

- c. Subsurface disposal areas may be constructed as leachfields or when conditions allow, seepage pits. If seepage pits are employed, they are often located at the end of a leachfield distribution pipe to maximize shallow distribution of wastewater.

If conditions are not favorable for traditional leachfield construction, an at-grade, or an above grade (mound) system may be used. Typically, at-grade and above grade systems are dosed using a dosing pump and pump controller. Dosed systems use relatively small diameter pipe to distribute the wastewater to zones within the dispersal area. Even in well operated systems, some suspended solids will be pumped into the distribution piping. Cleanouts or a flushing system on the distribution piping are required to remove the solids that will accumulate if the emitters are small enough diameter to prevent suspended solids from passing through the distribution equipment. Gravelless trench systems which do not use gravel, typically use distribution piping and a dosing

system, and should be constructed with cleanouts or a flushing system similar to at-grade and/or above grade systems when needed.

Subsurface disposal areas should be planted with shallow rooted plants to prevent erosion and provide for uptake of wastewater nutrients; trees and shrubs should be removed to prevent roots from damaging the leachfield. Similarly, burrowing animals can damage an at-grade or above grade (mound) disposal system and result in leakage. Burrowing animals should be promptly controlled and repairs to the disposal system completed as soon as possible.

19. Setbacks from wastewater treatment areas, dispersal areas, and/or LAAs from domestic wells, flowing and/or ephemeral streams, lakes/reservoirs, and property lines are provided in this General Order. Setbacks are included as a means of reducing pathogenic risks by coupling pathogen inactivation rates with groundwater travel time to a well or other potential exposure route (e.g. water contact activities). In general, a substantial unsaturated zone reduces pathogen survival compared to saturated soil conditions. Fine grained (silt or clay) soil particles reduce the rate of groundwater transport and therefore are generally less likely to transport pathogens; coarse grained soil particles or fracture flow groundwater conditions may be more likely to transport pathogens. Setbacks also provide attenuation of other wastewater constituents through physical, chemical, and biological processes. The setbacks provided in this General Order are based on the title 22 water recycling criteria, the California Well Standards, the OWTS Policy, the California Plumbing Code, and commonly imposed setbacks by regulatory agencies.
20. The OWTS Policy identified wastewater disposal as a potential contributing source of pathogens or nitrogen to an impaired surface water body.⁵ OWTS Policy Tier 3 addresses impaired surface water bodies and describes an Advanced Protection Management Program (APMP) as the minimum management program for wastewater systems subject to the OWTS Policy. In general, wastewater systems located within the geographic area⁶ of an APMP are not eligible for coverage under this General Order unless the Regional Water Board's Executive Officer determines the discharge is acceptable based on site-specific conditions, the level of wastewater treatment, and/or total maximum daily load (TMDL) implementation plan requirements.

⁵ Impaired surface water bodies are those identified on a list approved first by the State Water Board and then approved by USEPA pursuant to Section 303(d) of the Federal Clean Water Act.

⁶ The geographic area of an APMP is established (in order of hierarchy) by an approved TMDL, an approved local agency defined APMP, or 600 feet from the water body.

APPLICATION PROCESS

21. Dischargers seeking coverage under this General Order shall file an ROWD with the appropriate Regional Water Board. The application process is summarized in Attachment A. Some Regional Water Boards may provide procedures for electronic submittal of application documents. An ROWD consists of:
 - a. A completed Form 200, which is available at:
http://www.waterboards.ca.gov/publications_forms/forms/docs/form200.pdf .
 - b. An application fee that serves as the first annual fee. Fees are based on threat and complexity ratings, and the treatment technology employed. Threat and complexity ratings are defined in the fee schedule listed in California Code of Regulations, title 23, section 2200 and also available at:
<http://www.waterboards.ca.gov/resources/fees/docs/fy1112fee_schdl_wdr.pdf>.
 - c. A technical report that describes the wastewater generation, treatment, storage, and disposal. Submittal of the report in the recommended format provided in Attachment B1 will allow for an expedited review by Regional Water Board staff. (Some Regional Water Boards' staff may have different or additional technical report requirements in addition to Attachment B1. An applicant is advised to inquire with the Regional Water Board staff before performing investigations and/or preparing the technical report.)

Upon review of the ROWD, Regional Water Board staff will determine if coverage under this General Order is appropriate. The Regional Water Board's Executive Officer will issue a Notice of Applicability (NOA) when coverage under this General Order has been authorized. The NOA will contain the necessary site-specific monitoring and reporting requirements.

22. Dischargers covered by WQO 97-10-DWQ or another administrative mechanism may continue discharging under that authority until notified of the need to update their coverage by the State Water Board or Regional Water Board.
23. Although a Discharger may be eligible for coverage under this General Order, the appropriate Regional Water Board Executive Officer may determine that the discharge would be better regulated by a waiver of WDRs, individual WDRs, a different general order, an enforcement order, or a National Pollutant Discharge Elimination System (NPDES) Permit.

ANTIDegradation ANALYSIS

24. State Water Board Resolution 68-16, the *Statement of Policy with Respect to Maintaining High Quality of Waters in California* (hereafter the Antidegradation Policy) requires that disposal of waste into the waters of the state be regulated to achieve the highest water quality consistent with the maximum benefit to the people of the state. The quality of some waters is higher than established by adopted policies and that higher quality water shall be maintained to the maximum extent possible consistent with the Antidegradation Policy. The Antidegradation Policy requires the following:

- a. Higher quality water will be maintained until it has been demonstrated to the state that any change will be consistent with the maximum benefit to the people of the state, will not unreasonably affect present and anticipated beneficial use of the water, and will not result in water quality less than that prescribed in the policies.
 - b. Any activity that produces a waste and discharges to existing high quality waters will be required to meet WDRs that will result in the Best Practicable Treatment or Control (BPTC) of the discharge necessary to assure pollution or nuisance will not occur, and the highest water quality consistent with the maximum benefit to the people of the state will be maintained.
25. The Antidegradation Policy requires maintenance of high quality of waters of the state unless limited degradation is consistent with the maximum benefit to the people of the state. When issuing NOAs under this General Order, Executive Officers must assure that Dischargers implement BPTC as necessary to maintain the highest water quality consistent with the maximum benefit to the people of the state.
26. This General Order allows discharges to numerous groundwater bodies, each with its own chemical characteristics. There are not sufficient data to determine which receiving waters are high quality waters. To the extent a discharge covered under this General Order may be to high quality waters, this General Order authorizes limited degradation consistent with the Antidegradation Policy as described in the findings below.
27. This General Order limits a discharge flow rate to 100,000 gpd; therefore, only small Dischargers will be eligible for coverage. Wastewater systems with a flow rate greater than 20,000 gpd must evaluate the discharge with the method presented in Attachment 1 to determine if nitrogen effluent limits are appropriate. Discharge of domestic wastewater at lower flow rates inherently has less potential to significantly degrade water quality.
28. Limited degradation of groundwater by some waste constituents associated with domestic wastewater effluent, after effective source control, treatment, and control measures are implemented, is consistent with the maximum benefit to the people of the state. The technology, energy, water recycling, and waste management advantages of centralized wastewater treatment systems far exceed any benefits derived from reliance on numerous, concentrated individual wastewater systems, and the cumulative impact on water quality will be substantially less. The economic prosperity of communities and associated industry is of maximum benefit to the people of the state and provides sufficient justification for allowing the limited groundwater degradation that may occur pursuant to this General Order provided the terms of the applicable Basin Plan, and other applicable State Water Board and Regional Water Board policies are consistently met. The State Water Board recognizes variability in a small community's ability to construct wastewater treatment systems based on financial resources.
29. Constituents of concern that have the potential to degrade groundwater include salinity, nutrients, and pathogens (represented by coliform bacteria). In addition, excessive BOD loading of ponds or LAAs may result in nuisance odors or anaerobic

conditions, which are not favorable biological treatment conditions. This General Order includes effluent limits for nitrogen and BOD, and a process to determine how to apply the limits. Implementation of the process to determine the effluent limit that applies will result in the BPTC for the wastewater constituents. In addition, this General Order provides guidance on preparing a monitoring program that ensures the treatment is effective. Each of the wastewater constituents of concern are discussed below:

- a. Salinity is a measure of dissolved solids in water. Excessive salinity can reduce the beneficial uses of water. Salinity can be affected by the discharge of wastewater with elevated concentrations of TDS. TDS consists of both volatile (organic) and fixed (inorganic) fractions. In a well-operated land application system, volatile dissolved solids in percolate will be reduced to negligible concentrations. The best approach for addressing salinity is through source control activities. This General Order allows an Executive Officer to require participation in salt and nutrient management planning processes.
- b. Nitrogen is a nutrient normally present in domestic wastewater at a concentration that can degrade groundwater quality. The potential for degradation depends upon the wastewater treatment method and the environment into which the wastewater effluent is discharged. Nitrogen concentration reduction is not required in every situation, such as when wastewater treatment and application is performed in a way that is protective of the beneficial uses of water.

When needed, nitrogen concentrations can be reduced in a number of ways, such as nitrification, denitrification, and/or crop uptake and removal. However, the General Order requires that the effluent limit for nitrogen be determined based on procedures in Attachment 1, which provides additional criteria to determine when and how much nitrogen control is required. Effluent limits are determined based on the threat to groundwater quality. If nitrogen control is needed, a minimum of 50-percent reduction is required. In cases where a higher threat to groundwater exists, a total nitrogen concentration limit of 10 mg/L is required. By imposing the total nitrogen limit of 10 mg/L, the wastewater derived nitrogen cannot exceed the maximum contaminant level (MCL) for groundwater. Because natural systems are rarely 100-percent efficient, the nitrogen concentration limit will be protective of the existing and/or potential beneficial use of groundwater. Effluent limitations for nitrogen are contained in this General Order. To ensure the nitrogen control is effective, the model Monitoring and Reporting Program (MRP) provided as Information Sheet Attachment C includes monitoring that can be implemented to verify compliance with effluent limits.

- c. Pathogens and other microorganisms are present in domestic wastewater. Wastewater treatment processes will reduce the concentration of pathogens but disinfection is required to significantly reduce their presence. Coliform bacteria are used as a surrogate (indicator) because they are excreted by warm-blooded animals, are present in high numbers, survive in the environment similar to

pathogenic bacteria, and are easy to detect and quantify. Disinfection of wastewater is not required in every situation, such as when the wastewater application is performed in such a way that public contact is minimized through physical controls and/or notification.

When needed, disinfection can be performed in a number of ways. The title 22 water recycling criteria lists disinfection requirements for specific activities. To ensure the disinfection is effective, the model MRP provided as Information Sheet Attachment C includes monitoring that can be implemented to verify compliance with effluent limits.

30. Compliance with the General Order, the NOA, DDW requirements, and any mitigation measures will ensure compliance with the applicable Basin Plan.

TITLE 27 EXEMPTION

31. The wastewater treatment, storage, and disposal activities described in this General Order are exempt from the requirements of *Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste* in California Code of Regulations, title 27, division 2, Subdivision 1, section 20005, et seq. The activities are exempt from the requirements of title 27 so long as the activity meets, and continues to meet, all preconditions listed below. (Cal. Code Regs., tit. 27, § 20090.)
- a. Sewage—Discharges of domestic sewage or treated effluent which are regulated by WDRs issued pursuant to California Code of Regulations, title 23, division 3, chapter 9, or for which WDRs have been waived, and which are consistent with applicable water quality objectives, and treatment or storage facilities associated with municipal wastewater treatment plants, provided that residual sludge or solid waste from wastewater treatment facilities shall be discharged only in accordance with the applicable State Water Board promulgated provisions of this division. (Cal. Code Regs., tit. 27, § 20090(a).)
 - b. Wastewater—Discharges of wastewater to land, including but not limited to evaporation ponds, percolation ponds, or subsurface leach fields if the following conditions are met:
 - (1) the applicable Regional Water Board has issued WDRs, reclamation requirements, or waived such issuance;
 - (2) the discharge is in compliance with the applicable water quality control plan; and
 - (3) the wastewater does not need to be managed according to, California Code of Regulations, title 22, division 4.5, chapter 11, as a hazardous waste. (Cal. Code Regs., tit. 27, § 20090(b).)
 - c. Underground Injection—Discharges of waste to wells by injection pursuant to the Underground Injection Control Program established by the USEPA under the Safe Drinking Water Act, 42 US Code section 300(h), see Code of Federal Regulations title 40, Parts 144 to 146. (Cal. Code Regs., tit. 27, § 20090(c).)

- d. Soil Amendments—Use of nonhazardous decomposable waste as a soil amendment pursuant to applicable best management practices, provided that Regional Water Boards may issue waste discharge or reclamation requirements for such use. (Cal. Code Regs., tit. 27, § 20090(f).)
- e. Fully Enclosed Units—Waste treatment in fully enclosed facilities, such as tanks, or in concrete lined facilities of limited areal extent, such as oil water separators designed, constructed, and operated according to American Petroleum Institute specifications. (Cal. Code Regs., tit. 27, § 20090(i).)

Table 2: Summary of Wastewater System and California Code of Regulations, Title 27 Exemptions

Example of Wastewater System <u>Element/ Activity</u>	Potentially Applicable <u>Exemption(s)</u>
Wastewater collection, treatment, storage, and disposal systems.	Section 20090 (a) Sewage, domestic wastewater, and treated effluent
Applying wastewater to evaporation ponds, storage ponds, percolation ponds, rapid infiltration basins, leach fields, seepage pits, land application areas, spray fields, etc.	Section 20090 (b) Wastewater discharges to land
Disposal of wastewater in injection wells or seepage pits.	Section 20090 (c) Underground injection
Application of treated wastewater containing suspended solids to a land application area.	Section 20090 (f) Soil amendments, nonhazardous decomposable waste
Wastewater collection, flow equalization, and treatment in a septic tank, Imhoff tank, sand/media filter, package treatment tank, aeration basin, clarifier, sludge holding/thickening tank, pumping sumps, lined sludge drying beds, etc.	Section 20090 (i) Waste treatment in fully enclosed facilities.

CALIFORNIA ENVIRONMENTAL QUALITY ACT

- 32. This General Order is intended to cover both new and existing Small Domestic Systems.
 - a. The adoption of this General Order for existing Small Domestic Systems is categorically exempt from the California Environmental Quality Act (CEQA) pursuant to California Code of Regulations, title 14, section 15301 (ongoing or existing projects), section 15302 (replacement or reconstruction of existing utility systems), and section 15303 (new construction or conversion of small structures).

- b. For new or expanding Small Domestic Systems, the State Water Board considered the environmental impacts associated with the adoption of this General Order and prepared an Initial Study in accordance with California Code of Regulations, title 14 section 15063. Analysis in the Initial Study and early consultation with responsible and trustee agencies did not identify any significant impacts on the environment. Therefore, a Negative Declaration was prepared. The State Water Board adopted the Negative Declaration ([Resolution 2014-0054](#)) on September 23, 2014.
- c. New or expanding systems are subject to further CEQA evaluation on a site-specific basis by local agencies performing CEQA evaluations of proposed projects. The potential significant environmental impacts from discharges of domestic wastewater can be mitigated to less than significant impacts by compliance with this General Order, the NOA, and any mitigation measures adopted by local agencies.

OTHER REGULATORY ISSUES

- 33. Dischargers that meet the criteria for coverage under State Water Board Order No. 2006-0003-DWQ, *Statewide General Waste Discharge Requirements for Sanitary Sewer Systems*, or updated order, are required to obtain coverage.
- 34. Consistent with Water Code section 13241, the State Water Board, in establishing the requirements contained herein, considered factors including, but not limited to, the following:
 - a. Past, present, and probable future beneficial uses of water.
 - b. Environmental characteristics of the hydrographic unit under consideration, including the quality of water available thereto.
 - c. Water quality conditions that could reasonably be achieved through the coordinated control of all factors which affect water quality in the area.
 - d. Economic considerations.
 - e. The need for developing housing within the region(s).
 - f. The need to develop and use recycled water.
- 35. Water Code section 13263(i) states, The State Water Board or a Regional Water Board may prescribe general WDRs for a category of discharges if the State Water Board or that Regional Water Board finds or determines that all of the following criteria apply to the discharges in that category:
 - 1) The discharges are produced by the same or similar operations.
 - 2) The discharges involve the same or similar types of waste.
 - 3) The discharges require the same or similar treatment standards.
 - 4) The discharges are more appropriately regulated under general WDRs than individual WDRs.

Small Domestic Systems that will be regulated under this General Order are consistent with the criteria listed above and therefore a general order is appropriate. All discharges regulated under this order will be from similar operations and will be consistent with the description of domestic wastewater as defined in Finding 8. The discharges will use similar treatment methods (e.g. screening, settling, biological treatment, clarification, and application to land). Individual WDRs are not necessary because the discharges are similar and discharge requirements would be similar if individual WDRs were issued.

36. Technical and monitoring reports specified in this General Order are required. (Wat. Code, § 13267.) Failing to furnish the reports by the due date or falsifying information in the reports, are misdemeanors that may result in assessment of civil liabilities against the Discharger. Water Code section 13267 states, in part:

“In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports, and shall identify the evidence that supports requiring that person to provide the reports.”

The technical reports required by this General Order, the NOA, and the MRP are necessary to assure compliance with this General Order. The burden and cost of preparing the reports is reasonable and consistent with the interest of the state in maintaining water quality.

37. The BOD and Total Suspended Solids (TSS) effluent limitations contained in this General Order are technology based. USEPA has developed technology based effluent limits for secondary treatment for use in NPDES permits. However, pond treatment systems often cannot comply with the limits that apply to activated sludge treatment systems due to algae growth in the pond. In response, USEPA developed an equivalent to secondary treatment definition for alternative biological treatment technologies such as a trickling filter or waste stabilization pond. (40 C.F.R. §133.05). Although this General Order only authorizes discharges to land, some of the secondary treatment standards are appropriate to demonstrate that wastewater is adequately treated. For pond and/or trickling filter wastewater systems, the total suspended solids limit is not appropriate because application of algal solids to land is not a concern.

38. This General Order does not preempt or supersede the authority of municipalities, flood control agencies, or other local agencies to prohibit, restrict, or control discharges of waste subject to their jurisdiction.
39. The State Water Board has notified potential Dischargers and all other known interested parties of the intent to prescribe WDRs as described in this General Order.
40. The State Water Board, in a public meeting, has heard and considered all comments pertaining to the proposed discharge.

IT IS HEREBY ORDERED

IT IS HEREBY ORDERED that upon adoption of this General Order, WQO 97-10-DWQ is classified as in effect, but inactive for future Discharger enrollment.

Pursuant to Water Code section 13263 and 13267, the Discharger, its agents, successors, and assigns, in order to meet the provisions contained in division 7 of the Water Code and regulations adopted hereunder, shall comply with the following:

A. Prohibitions

1. The direct or indirect discharge of any wastewater to surface waters or surface water drainage courses is prohibited.
2. The use of cesspools, an excavation or device that allows wastewater infiltration into the soil without treatment, is prohibited.
3. The treatment, storage, and/or disposal of waste in or at the wastewater system shall not cause or contribute to a condition of pollution, contamination, or nuisance as defined in Water Code section 13050.
4. The discharge of wastewater other than domestic wastewater is prohibited.
5. Bypass or overflow of treated or untreated waste is prohibited.
6. The discharge of waste to land not owned, operated, or controlled by the Discharger is prohibited. An exception to this prohibition is when recycled water is used as described in a title 22 Engineering Report approved by DDW.
7. The discharge of waste classified as hazardous (Cal. Code Regs., tit. 23, § 2521(a)), or designated (Wat. Code, § 13173) is prohibited.
8. The discharge of waste in violation of, or not consistent with, the applicable Regional Water Board's Basin Plan is prohibited.
9. A physical connection between a recycled water system and a potable water system is prohibited.
10. The use of recycled water in a manner different than described in the DDW approved title 22 engineering report is prohibited.
11. Use of equipment used to convey recycled water (e.g. tanks, piping, valves,) also used for potable water supply, is prohibited.

B. Requirements by Wastewater System Type

1. All Wastewater Systems

- a. The Discharger shall not discharge wastewater in excess of the flow limit(s) specified in the NOA. In no case shall the flow rate of wastewater discharged to the headworks exceed 100,000 gpd as a monthly average. Headworks are defined as the facilities where wastewater enters a wastewater treatment plant. Headworks may include bar screens, comminutors, a wet well, and pumps. Dischargers that store wastewater and apply it to an LAA during irrigation season may land apply more than 100,000 gallons per day of treated wastewater to an LAA during the irrigation season as allowed by the NOA.
- b. Treatment and disposal of wastewater must demonstrate BPTC for domestic wastewater. BPTC shall be demonstrated by compliance with all of the following:
 - i. Compliance with this General Order.
 - ii. Compliance with effluent limitations included in this General Order.
 - iii. Compliance with the NOA, which will specify the following (at a minimum):
 1. Site-specific flow limit(s).
 2. Site-specific wastewater system treatment and disposal methods provided in Section B.2 through B.8 of this General Order.
 3. Applicable Basin Plan groundwater and/or surface water limitations in addition to those provided in Section C of this General Order.
 4. Applicable effluent limitations from Section D of this General Order. For flow rates greater than 20,000 gpd, the discharge must be evaluated as described in Attachment 1 to determine if nitrogen effluent limits are required.
 5. Requirements for operation of the wastewater treatment system and disinfection requirements provided by the DDW approved title 22 Engineering Report.
 6. Water quality related mitigation measures from an approved site-specific CEQA document (if one is prepared).
- c. Wastewater systems located within the geographic area⁷ of an APMP are not eligible for coverage under this General Order unless the Regional Water Board's Executive Officer determines the discharge is acceptable based on site-specific conditions, the level of wastewater treatment, and/or TMDL implementation plan requirements.

⁷ The geographic area of an APMP is established (in order of hierarchy) by an approved TMDL, an approved local agency defined APMP, or 600 feet from the water bodies listed on Table 5 or Table 6 of OWTS Policy Attachment 2.

- d. The siting, design, construction, operation, maintenance, and monitoring of the wastewater system shall comply with the requirements of the applicable Regional Water Board's Basin Plan.
- e. Nuisance odors shall not be perceivable beyond the property line of the wastewater treatment facility.
- f. Public contact with wastewater shall be deterred through such means as fences, signs, and other acceptable alternatives.
- g. For systems with a design flow rate greater than 3,500 gpd, the technical report required as part of the ROWD shall be prepared by a California licensed professional civil engineer. For systems with a design flow rate less than 3,500 gpd, the technical report shall be prepared by a California licensed professional engineer or other appropriately licensed professional (e.g., a California licensed professional geologist or California registered environmental health specialist).
- h. For new or expanding Small Domestic Systems within or nearby the boundaries of a centralized wastewater district or regional service area, the Discharger must demonstrate a good faith effort to connect to the centralized system when feasible and practicable, and provide evidence that connection to the system was not approved.
- i. A Regional Water Board Executive Officer may require additional investigations or monitoring to demonstrate beneficial uses of water are protected and antidegradation requirements are satisfied. Acceptable methods may include, but not be limited to, evaluation of the wastewater system's treatment performance, groundwater monitoring, or additional sampling to characterize the wastewater discharge.
- j. The Discharger shall comply with any water quality related mitigation measures adopted in a CEQA document addressing the facility.
- k. When producing or using recycled water, the Discharger shall comply with the provisions of the DDW approved title 22 Engineering Report.
- l. The Discharger shall comply with the setbacks described in Table 3. However, some existing sites may not comply with the setbacks provided herein. Such noncomplying sites may be permitted under this General Order if nuisance conditions do not result from the noncompliance. Expansion of a noncomplying wastewater system shall trigger further evaluation of the setbacks. In some cases, more than one setback standard exists. The following procedure shall be implemented when determining the appropriate setback:
 - i. When the setback requirement comes from title 22, approval of a variance must be obtained from DDW.

- ii. When the setback comes from the California Well Standards, a reduced setback may be allowed based on site-specific conditions; review the California Well Standards for clarification.
- iii. When the setback comes from the OWTS Policy, the Regional Water Board Executive Officer may allow a reduced setback based upon site-specific conditions (e.g. annular seal in a well, groundwater flow direction near water bodies, treatment/disinfection level of wastewater, etc.).
- iv. When the setback comes from the California Plumbing Code, the Regional Water Board Executive Officer may not reduce the setback.
- v. Setbacks that are not referenced to a requirement listed above are based on professional judgment and may be revised by the Regional Water Board Executive Officer based on site-specific conditions.

Table 3: Summary of Wastewater System Setbacks

Equipment or Activity	Domestic Well	Flowing Stream ^a	Ephemeral Stream Drainage ^b	Property Line	Lake or Reservoir ^d
Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System ^e	150 ft. ^y 100 ft. ^o 50 ft. ^c	50 ft. ^c	50 ft.	5 ft. ^c	200 ft. ^w 50 ft. ^c
Leach Field ^f	100 ft. ^{o,c}	100 ft. ^c	50 ft.	5 ft. ^c	200 ft. ^w 100 ft. ^c
Seepage Pit	150 ft. ^{o,c}	150 ft. ^c	50 ft.	8 ft. ^c	200 ft. ^w 150 ft. ^c
LAND APPLICATION AREA REQUIREMENTS					
LAA (disinfected tertiary recycled water) ^g	50 ft. ^m	25 ft.	50 ft.	25 ft.	200 ft.
LAA (disinfected sec-2.2 or sec-23 recycled water) ^h	100 ft. ^r	50 ft.	50 ft.	100 ft. ^x 50 ft. ^p	200 ft.
LAA (undisinfected secondary recycled water) ⁱ	150 ft. ^s	100 ft.	100 ft.	100 ft. ^x 50 ft. ^p	200 ft.
Spray Irrigation (disinfected tertiary recycled water) ^k	No spray irrigation of any recycled water, other than disinfected tertiary recycled water, shall take place within 100 feet of a residence or a place where public exposure could be similar to that of a park, playground, or school yard.				
WASTEWATER STORAGE AND/OR TREATMENT PONDS					
Impoundment (disinfected tertiary recycled water) ^g	100 ft. ^t	100 ft.	100 ft.	50 ft.	200 ft.
Impoundment (disinfected sec-2.2 or sec-23 recycled water) ^h	100 ft. ^r	100 ft.	100 ft.	50 ft.	200 ft.
Impoundment (undisinfected secondary recycled water) ⁱ	150 ft. ^s	150 ft.	150 ft.	50 ft.	200 ft.

LAA denotes Land Application Area. Sec denotes secondary.

^a A flowing stream shall be measured from the ordinary high water mark established by fluctuations of water elevation and indicated by characteristics such as shelving, changes in soil character, vegetation type, presence of litter or debris, or other appropriate means.

^b Ephemeral Stream Drainage denotes a surface water drainage feature that flows only after rain or snow-melt and does not have sufficient groundwater seepage (baseflow) to maintain a condition of flowing surface water. The drainage shall be measured from a line that defines the limit of the ordinary high water mark (described in "a" above). Irrigation canals are not considered ephemeral streams drainage

features. The ephemeral stream shall be a "losing stream" (discharging surface water to groundwater) at the proposed wastewater system site.

c Setback established by California Plumbing Code, Table K-1.

d Lake or reservoir boundary measured from the high water line.

e Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System addresses equipment located below ground or that impedes leak detection by routine visual inspection.

f Leach Field includes all subsurface dispersal systems, including mound systems except seepage pits.

g Disinfected tertiary recycled water is defined in California Code of Regulations, title 22, section 60301.230.

h Disinfected secondary-2.2 recycled water is defined in California Code of Regulations, title 22, section 60301.220. Disinfected secondary-23 recycled water is defined in California Code of Regulations, title 22, section 60301.225.

i Undisinfected secondary recycled water is defined in California Code of Regulations, title 22, section 60301.900.

k Additional restrictions for spray irrigation of recycled water are contained in California Code of Regulations, title 22, section 60310(f)

m Setback established by California Code of Regulations, title 22, section 60310(a). A reduced setback is allowed as described in California Code of Regulations, title 22, section 60310(a) if all the conditions in the section are met and compliance is documented in the ROWD and NOA.

o California Well Standards, part II, section 8. Site-specific conditions may allow reduced setback or require an increased setback. See discussion in Well Standards.

p Setback for drip or flood application methods. Spray irrigation is subject to additional setbacks and restrictions. (See footnote k.)

r Setback established by California Code of Regulations, title 22, section 60310(c).

s Setback established by California Code of Regulations, title 22, section 60310(d).

t Setback established by California Code of Regulations, title 22, section 60310(b).

w Setback established by the Onsite Wastewater Treatment System Policy, section 7.5.5.

x Setback established by California Code of Regulations, title 22, section 60310(f).

y Setback established by Onsite Wastewater Treatment System Policy, section 7.5.6.

2. Septic Systems

- a. Gauging and limited repairs may be performed by homeowners or contractors as allowed by the Business and Professions Code (Bus. & Prof. Code, section 7044 and/or section 7048). With certain exceptions, anyone performing construction work in California must be licensed by the California Contractors' State License Board. Septic tank and/or leach field service (repairs, pumping, etc.) shall be performed only by a California licensed General Engineering (A), Plumbing (C-36), or Sanitation System (C-42) contractor. The Discharger shall maintain a record of all septic service activities for a minimum of five years. At a minimum, the record shall include the date, nature of service, service company name, and service company state contractor license number.

Health and Safety Code sections 117400 - 117450 require septic tank pumping to be registered by the jurisdiction where work is performed. Such service providers may be exempt from the state contractor's licensing requirements if meeting the exceptions described in the Business & Professions Code section 7044 and/or 7048.

- b. Owners and/or operators of wastewater systems that accept wastes from RVs or other mobile waste systems must ensure that such wastes do not deleteriously affect the wastewater system or adversely affect beneficial uses of groundwater

with holding tank additives that may contain, among other chemicals, formaldehyde, zinc, and/or phenol.

Use of holding tank chemicals shall be discouraged by the wastewater system owner/operator. Education of visitors can be accomplished by providing an information sheet upon check-in. Information on holding tank chemicals is provided in Attachment B2. The sale or provision of such additives by the Discharger to operators of RVs served by the Discharger's wastewater facility may be determined to be evidence of noncompliance with this section.

- c. To the maximum extent possible, RV, portable toilet, or similar wastes shall not be discharged to a septic tank or functionally equivalent system (e.g. Imhoff tank) without subsequent additional treatment (e.g., aerated pond, recirculating sand filter, etc.) prior to disposal.
- d. Septic tanks shall be pumped when any one of the following conditions exists:
 - i. The combined thickness of sludge and scum exceeds one-third of the tank depth of the first compartment.
 - ii. The scum layer is within 3 inches of the outlet device.
 - iii. The sludge layer is within 8 inches of the outlet device.
- e. Septage is the liquid, solid, and semisolid material that results from wastewater treatment in a septic tank, which must be pumped, hauled, treated, and disposed of properly. (40 C.F.R. § 503.) Septage disposal shall only be to a legal disposal site that has been issued WDRs by a Regional Water Board allowing septage disposal. Septage shall be handled in such a manner as to prevent its reaching surface waters or watercourses.

3. Aerobic Treatment Units

- a. Within **90 days** of the issuance of an NOA, the Discharger shall submit a Sludge Management Plan consistent with the requirements of Provision E.1.c of this General Order. The Discharger must obtain written approval from the Regional Water Board's Executive Officer prior to any disposal of sludge. The Executive Officer shall be notified of any changes in an approved Sludge Management Plan at least **90 days** in advance of the proposed change.
- b. Modifications to a Sludge Management Plan deemed part of an emergency action shall be noticed to the Regional Water Board Executive Officer within **five days** of disposal with a rationale for the emergency modification.
- c. Gauging and limited repairs may be performed by homeowners or contractors as allowed by the Business and Professions Code (Bus. & Prof. Code, §§ 7044, 7048). With certain exceptions, anyone performing construction work in California must be licensed by the California Contractors' State License Board. Septic tank, aerobic treatment unit, and/or leach field service (repairs, pumping, etc.) shall be performed only by a California licensed General Engineering (A), Plumbing (C-36), or Sanitation System (C-42) contractor. The Discharger shall maintain a record of all service activities for a minimum of five years. At a minimum, the record shall

include the date, nature of service, service company name, and service company state contractor license number.

Health and Safety Code sections 117400 - 117450 require septic tank pumping to be registered by the jurisdiction where work is performed. Such service providers may be exempt from the state contractor's licensing requirements if meeting the exceptions described in the Business & Professions Code section 7044 and/or 7048.

- d. Owners and/or operators of wastewater systems that accept wastes from RVs or other mobile waste systems must ensure that such wastes do not deleteriously affect the wastewater system or adversely affect beneficial uses of groundwater with holding tank additives that may contain, among other chemicals, formaldehyde, zinc, and/or phenol.

Use of holding tank chemicals shall be discouraged by the wastewater system owner/operator. Education of visitors can be accomplished by providing an information sheet upon check-in. Information on holding tank chemicals is provided in Attachment B2. The sale or provision of such additives by the Discharger to operators of RVs served by the Discharger's wastewater facility may be determined to be evidence of noncompliance with this section.

- e. Aerobic treatment units shall be pumped when any one of the following conditions exists :
 - i. The combined thickness of sludge and scum exceeds one-third of the tank depth of the final settling tank or interferes with the operation of the system (mixed liquor⁸ aerator solids shall not exceed the manufacturer's recommendation).
 - ii. The scum layer is within 3 inches of the outlet device.
 - iii. The sludge layer is within 8 inches of the outlet device.
- f. Septic tanks (a septic tank may be used as a pretreatment step to minimize the amount of solids discharged to an aerobic treatment unit) shall be pumped when any one of the following conditions exists:
 - i. The combined thickness of sludge and scum exceeds one-third of the tank depth of the first compartment.
 - ii. The scum layer is within 3 inches of the outlet device.
 - iii. The sludge layer is within 8 inches of the outlet device.
- g. Septage is the liquid, solid, and semisolid material that results from wastewater treatment in a septic tank, which must be pumped, hauled, treated, and disposed

⁸ When the activated sludge in an aeration tank is mixed with primary effluent or raw wastewater and return sludge, this mixture is referred to as mixed liquor when it is in the aeration tank.

of properly. (40 C.F.R. § 503.) Septage disposal shall only be to a legal disposal site that has been issued WDRs by a Regional Water Board allowing septage disposal. Septage shall be handled in such a manner as to prevent its reaching surface waters or watercourses.

4. Activated Sludge Systems

- a. Within **90 days** of the issuance of an NOA, the Discharger shall submit a Sludge Management Plan consistent with the requirements of Provision E.1.c of this General Order. The Discharger must obtain written approval from the Regional Water Board's Executive Officer prior to any disposal of sludge. The Executive Officer shall be notified of any changes in an approved Sludge Management Plan at least **90 days** in advance of the proposed change.
- b. Modifications to a Sludge Management Plan deemed part of an emergency action shall be noticed to the Regional Water Board's Executive Officer within **five days** of disposal with a rationale for the emergency modification.

5. Pond Systems

- a. Sufficient freeboard shall be maintained at all times in ponds to provide adequate storage capacity and prevent wastewater spills. Freeboard shall be measured vertically from the lowest elevation of the pond berm to the pond water surface. If freeboard is less than one foot, the discharger shall immediately implement the contingency plan contained in the *Spill Prevention and Emergency Response Plan* (Provision E.1.a).
- b. Pond systems shall have sufficient capacity to accommodate wastewater, design seasonal precipitation, ancillary I/I, and wind driven waves. Design seasonal precipitation shall be based on the following precipitation criteria:
 - i. If wastewater spills do not occur, existing pond systems may continue to operate at their present size if they are covered under individual WDRs, a general order issued by a Regional Water Board, or by WQO 97-10-DWQ. If wastewater spills do occur, the Executive Officer may require the pond size requirement to be consistent with the specification defined in Pond Systems 5.b.ii (below).
 - ii. For new or expanding pond systems covered under this General Order, seasonal precipitation used in the pond sizing water balance calculations shall be based on the following:
 - a. The 100-year return annual total precipitation value distributed monthly in accordance with average (mean) precipitation values. The calculations shall demonstrate adequate capacity to maintain two feet of freeboard in the pond(s).
 - b. The Executive Officer may allow a lower standard for the return annual total precipitation value, with approval of a technical report describing how operation of the wastewater system will not result in wastewater spills. In no case shall the Executive Officer allow less than a 50-year

return annual total precipitation value. If the Discharger seeks relief from the 100-year return annual total precipitation value, the Discharger shall certify that the *Spill Prevention and Emergency Response Plan* (Provision E.1.a) has been prepared, and is adequate to respond to forecast conditions using the 100-year return annual total precipitation value distributed monthly in accordance with average (mean) precipitation values. The calculations shall demonstrate adequate capacity to maintain two feet of freeboard in the pond(s).

- c. All ponds shall be managed to mitigate breeding of mosquitoes including, but not limited to the following:
 - i. An erosion control program shall be implemented to ensure that small coves and irregularities are not created around the perimeter of the water surface.
 - ii. Weeds shall be minimized through control of water depth, a shoreline synthetic liner, harvesting, or herbicides.
 - iii. Dead algae, vegetation, and debris shall be removed from the water surface.
 - iv. Coordination with the local mosquito abatement or vector control district to supplement the measures described above in cases where other methods are infeasible.
- d. Objectionable odors shall not create nuisance conditions beyond the limits of the wastewater treatment facility. A dissolved oxygen concentration less than 1.0 mg/L in the upper one foot of any wastewater pond shall be evidence of the potential to generate objectionable odors.
- e. Burrowing animals active in areas that may compromise the integrity of a pond containment shall be promptly controlled and repairs to the containment completed as soon as possible.
- f. Prior to any removal, drying, treatment, or disposal of sludge for pond maintenance, the Discharger shall submit a Sludge Management Plan consistent with the requirements of Provision E.1.c and obtain written approval from the Regional Water Board's Executive Officer. The Executive Officer shall be notified of any changes in an approved Sludge Management Plan at least **90 days** in advance of the proposed change.

6. Subsurface Disposal Systems

- a. Wastewater shall not surface in any location of the disposal area.
- b. Subsurface disposal systems shall hold in reserve sufficient land area for possible future 100-percent replacement of the subsurface disposal system, or establish an equivalent contingency that is approved by the Regional Water Board's Executive Officer and described in the NOA. If less than 100-percent replacement area was previously permitted under existing individual WDRs, WQO 97-10-DWQ, or a local agency permit, the minimum reserve area previously permitted shall be maintained.

- c. No part of the disposal system(s) shall extend to a depth where waste may pollute groundwater.
- d. All new or rehabilitated disposal areas associated with effluent pressure distribution systems (pressure-dosed systems) shall be equipped with cleanouts or a flushing system to allow solids to be removed from distribution pipes and orifices when needed.
- e. Deep rooted plants such as trees or shrubs shall be removed as needed from a subsurface disposal system area to prevent damage to the dispersal system by roots.
- f. Burrowing animals active in areas that may result in wastewater leakage from an at-grade or above grade (mound) disposal system shall be promptly controlled and repairs to the disposal system completed as soon as possible.
- g. Subsurface disposal systems including leach fields and seepage pits, must comply with USEPA Underground Injection Control requirements when classified as a Class V well. Subsurface disposal systems with at least one of the following characteristics are classified as Class V wells:
 - i. The system has the capacity to serve 20 or more persons per day.
 - ii. The system receives wastewater other than domestic wastewater such as that generated by manufacturing, chemical processing, industrial fluid disposal, automotive repair, or recycling.
 - iii. The system receives sewage containing biological agents (such as wastewater from recreational vehicles or portable toilets).

Disposal systems that are classified as Class V wells must be registered with USEPA either by completing the online form at: <http://www.epa.gov/region09/water/groundwater/injection-wells-register.html> , or by completing and submitting Form 7520-16: Inventory of Injection Wells. Form 7520-16 is available at: <http://epa.gov/region09/water/groundwater/uic-pdfs/7520-16.pdf> .

- h. Limited repairs may be performed by homeowners or contractors as allowed by the Business and Professions Code (Bus. & Prof. Code, §§ 7044, 7048). With certain exceptions, anyone performing construction work in California must be licensed by the California Contractors' State License Board. Leach field repairs shall be performed only by a California licensed General Engineering (A), Plumbing (C-36), or Sanitation System (C-42) contractor. The Discharger shall maintain a record of all repair activities for a minimum of five years. At a minimum, the record shall include the date, nature of repair, service company name, and service company state contractor license number.

7. Land Application and/or Recycled Water Systems

- a. Wastewater shall not be applied to an LAA within 24 hours of forecasted precipitation with a greater than 50-percent probability of occurring, during precipitation events, or when the LAA surface soil is saturated.
- b. Spray irrigation with treated wastewater is prohibited when wind speed (including gusts) exceeds 30 miles per hour. Wind speed may be measured onsite or at a nearby weather station operated by a governmental organization.
- c. Discharge of wastewater from an LAA is prohibited.
- d. If undisinfected wastewater is applied to an LAA, storm water runoff from the LAA is prohibited.
- e. If storm water is allowed to runoff from an LAA (during the time of year wastewater is not applied), all applied wastewater shall meet disinfection requirements at a level equivalent to disinfected secondary-23 recycled water. (Cal. Code Regs., title 22, § 60301.225.) Land application of more highly treated water is acceptable. Alternatively, a Discharger may submit a technical report, for Executive Officer approval, describing how the LAA will be operated to prevent pathogens from migrating off the LAA with stormwater.
- f. If recycled water is applied, it shall comply with the title 22 water recycling criteria, this General Order, the NOA, a title 22 Engineering Report, and any DDW approval conditions.
- g. Public contact with wastewater/recycled water shall be precluded through use of fences, signs, and/or other appropriate means. All public use areas where recycled water is used shall be posted with signs that are visible, in a size no less than 4 inches by 8 inches and include the following wording, "Recycled Water – Do Not Drink." (Cal. Code Regs., tit. 22, § 60310(g).)
- h. Land application areas shall be managed to mitigate breeding of mosquitoes including, but not limited to the following:
 - i. There shall be no standing water 48 hours after application of wastewater.
 - ii. Tailwater ditches must be maintained essentially free of emergent, marginal, or floating vegetation.
 - iii. Low-pressure and unpressurized pipelines and ditches accessible to mosquitoes shall not be used to store wastewater or recycled water.
 - iv. Coordination with the local mosquito abatement or vector control district to supplement the measures described above in cases where other methods are infeasible.

8. Sludge/Solids/Biosolids Disposal

- a. Sludge means the solid, semisolid, and liquid residues removed during primary, secondary, or other wastewater treatment processes. Solid waste refers to grit and screenings generated during preliminary treatment. Residual sludge means

sludge that will not be subject to further treatment at the wastewater system. Biosolids refers to sludge that has undergone sufficient treatment and testing to qualify for reuse pursuant to the USEPA Part 503 Biosolids Rule. (40 C.F.R. § 503.)

- b. Sludge and solid waste shall be removed from screens, sumps, tanks, and ponds as needed to ensure optimal plant operation.
- c. Treatment and storage of sludge shall be confined to the wastewater system property, and shall be conducted in a manner that precludes infiltration of waste constituents into soil in a mass or at concentrations that will violate the groundwater limitations of this General Order.
- d. Any storage of residual sludge, solid waste, or biosolids at the wastewater system shall be temporary, and the waste shall be controlled and contained in a manner that minimizes leachate formation and precludes infiltration of waste constituents into soils in a mass or at concentrations that will violate the groundwater limitations of this General Order.
- e. Residual sludge, and solid waste shall be disposed of in a manner approved by the appropriate Regional Water Board's Executive Officer and consistent with the Consolidated Requirements for Treatment, Storage, Processing, or Disposal of Solid Waste. (Cal. Code Regs., tit. 27 div. 2.) Removal for further treatment, disposal, or reuse at disposal sites operated in accordance with valid WDRs issued by the State Water Board or Regional Water Board will satisfy this specification.
- f. Use and disposal of biosolids shall comply with the USEPA Part 503 Biosolids Rule. (40 C.F.R. § 503.)

C. Groundwater and Surface Water Limitations

1. The discharge shall not

- a. Pollute groundwater or surface waters.
- b. Adversely affect beneficial uses of groundwater or cause an exceedance of any applicable Basin Plan water quality objectives for groundwater or surface water.

D. Effluent Limitations

1. The discharge shall not:

- a. Exceed any of the applicable effluent limitations presented in Table 4. Effluent limitation selection is a two-step process. Step one is based upon the treatment technology employed; step two applies only to systems with a flow rate greater than 20,000 gpd and is based upon an evaluation of the need for a nitrogen effluent limit (as described in Attachment 1). Low and high threat are defined in Attachment 1. The limits presented below are average monthly limits unless otherwise specified.

Table 4: Effluent Limitations for Wastewater Treatment Systems

Step 1 - Effluent Limitations Based on Technology Performance		
Activated Sludge, MBR, or similar (not including residential aerobic treatment units)		
Constituent	Units	Limit
BOD	mg/L	30 (monthly average), 45 (7-day average)
TSS	mg/L	30 (monthly average), 45 (7-day average)
Wastewater Pond or Trickling Filter ¹ (not including residential recirculating sand filters)		
Constituent	Units	Limit
BOD	mg/L	90 ²
TSS	--	Not Applicable

Step 2 - Effluent Limits Based on Low/High Threat Situation (flow rate >20,000 gpd)		
Constituent	Units	Limit
Total N	mg/L	--
Low Threat	mg/L	50 % ³
High Threat	mg/L	10

BOD denotes biochemical oxygen demand; TSS denotes total suspended solids; MBR denotes membrane biological reactor. Residential denotes a single family home, property caretaker's home, a home with an associated residence (e.g. mother in law unit), or similar, with a flow rate less than 400 gpd. "--" denotes not applicable.

1. Limit applies when treated wastewater is applied to an LAA or to a subsurface disposal system.
2. The limit is based on a 65-percent reduction of incoming BOD. An incoming BOD of 250 mg/L was used to calculate the value.
3. The value represents the minimum percent reduction compared to the untreated wastewater value. Reduction shall be calculated on an annual basis. In no case shall the reduction result in an effluent limit lower than 10 mg/L total nitrogen.

E. Provisions

1. Technical Report Preparation Requirements

- a. **Within 90 days** of the issuance of an NOA, aside from residential septic tanks serving four or fewer residences, the Discharger shall prepare and implement a *Spill Prevention and Emergency Response Plan* (Response Plan) that describes operation and maintenance activities to prevent accidental releases of wastewater, and to effectively respond to such releases, minimizing the environmental impact. At a minimum, the Response Plan shall address the following:
 - i. Operation and Control of Wastewater Treatment - A description of the wastewater treatment equipment, operational controls, flow measurement and calibration procedures, and treatment system schematic including valve/gate locations.

- ii. Sludge Handling - A description of the sludge handling equipment, operational controls, and disposal procedures.
- iii. Collection System Maintenance - A description of collection system cleaning and maintenance, equipment tests, and alarm functionality tests to minimize the potential for wastewater spills originating in the collection system or headworks. For collection systems subject to State Water Board Order No. 2006-0003-DWQ, reports prepared to comply with the State Water Board Order No. 2006-0003-DWQ satisfy this requirement.
- iv. Emergency Response - A description of emergency response procedures including for emergencies such as power outage, severe weather, flooding, or inadequate freeboard (for systems with wastewater or recycled water ponds). An equipment and telephone list for contractors/consultants, emergency personnel, and equipment vendors.
- v. Notification Procedures - Coordination procedures with fire, police, Governor's Office of Emergency Services (CalOES), Regional Water Board, and local county health department personnel.

The Response Plan shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request.

- b. **Within 90 days** of the issuance of an NOA containing an MRP, the Discharger shall prepare and implement a written sampling and analysis plan (SAP) sufficient to assure compliance with the terms of this General Order and the NOA. Anyone performing sampling on behalf of the Discharger shall be familiar with the SAP. SAPs shall address the need for sample filtration and how filtration will be accomplished. When sampling groundwater or liquid waste, the chemical constituents available to migrate shall be considered. In general, dissolved waste constituents can migrate through soil to groundwater or surface water. In cases where the waste only threatens groundwater, samples shall be filtered prior to chemical preservation, digestion, or analysis for some analytes. If overland flow of liquid waste to surface water is possible, the total constituent concentrations may be available for movement and analyses shall be conducted on unfiltered samples.

At a minimum, the SAP shall describe the following:

- i. Sample chain-of-custody procedures and documentation.
- ii. Sampling locations.
- iii. Sampling frequencies.
- iv. Sample handling/preservation procedures.
- v. Analytical methods.
- vi. Sample containers, preservatives, and holding times.
- vii. For groundwater monitoring, well purging and field methods.

The SAP shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request or as required by the NOA.

- c. **Within 90 days** of the issuance of an NOA directing preparation, the Discharger shall submit and implement a Sludge Management Plan. At a minimum, the plan shall describe the following:
- i. Estimate the amount of sludge and scum that will be generated.
 - ii. Describe how sludge, scum, and supernatant will be stored and disposed of to protect groundwater quality.
 - iii. If sludge will be subject to further treatment, describe the treatment and storage requirements.
 - iv. Describe cleaning of digesters or storage vessels and the treatment and disposal of the residuals. If drying of residuals is planned, describe how that will be performed to prevent nuisance odors, prevent vectors, and protect groundwater quality.

The Sludge Management Plan shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request or as required by the NOA.

- d. If directed by the Regional Water Board Executive Officer pursuant to Water Code section 13267, a discharger shall prepare and submit a Salt and Nutrient Management Plan, to ensure that the overall impact of treated wastewater and/or water recycling projects does not degrade groundwater resources. Unless otherwise directed by the Regional Water Board Executive Officer, in lieu of developing an individual Salt and Nutrient Management Plan the discharger shall participate in a Regional Water Board's existing salt and nutrient management planning effort to meet the requirements of this provision.

2. For All Wastewater Systems:

- a. Bypass (the intentional diversion of waste streams from any portion of a treatment facility) is prohibited. The Regional Water Board and/or the Executive Officer may take enforcement action against the Discharger for bypass unless:
- i. Unavoidable and/or Unscheduled Bypass
 1. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage. (Severe property damage means substantial physical damage to property, damage to the treatment facilities that causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production), and

2. There were no feasible alternatives to bypass, such as the use of auxiliary treatment facilities or retention of untreated waste. This condition is not satisfied if adequate backup equipment or wastewater storage facilities should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that would otherwise occur during normal periods of equipment downtime or preventive maintenance; or
- ii. Scheduled Bypass
 1. Bypass is required for essential maintenance to assure efficient operation,
 2. Neither effluent nor groundwater limitations are exceeded,
 3. The Discharger notifies the Regional Water Board's Executive Officer **10 days** in advance, and
 4. The prohibition against discharge to surface water is not violated.
- b. A Discharger that wishes to establish the affirmative defense of an upset (see definition in Provision E.5.a) in an action brought for noncompliance shall demonstrate, through properly signed, contemporaneous operating logs, or other evidence, that all of the following is true:
 - i. An upset occurred and the cause(s) can be identified.
 - ii. The permitted facility was being properly operated at the time of the upset.
 - iii. The Discharger submitted notice of the upset as required in Provision E.3.a.
 - iv. The Discharger complied with any remedial measures required by this General Order, the NOA, or direction from the Regional Water Board's Executive Officer. In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof.
- c. A Discharger whose wastewater flow rate has been increasing, or is projected to increase, shall estimate when the flow rate will reach hydraulic and treatment capacities of its treatment, collection, and disposal facilities. The projections shall be made in January, based on the last 3 years average dry weather flow rates, peak wet weather flow rates, and total annual flow rates, as appropriate. When any projection shows that capacity of any part of the facilities may be exceeded in 4 years, the Discharger shall notify the Regional Water Board's Executive Officer by March 1st. Providing the notification in an annual report is acceptable.
- d. The requirements prescribed herein do not authorize the commission of any act causing damage to the property of another, or protect the Discharger from liabilities under federal, state, or local laws. This General Order does not convey any property rights or exclusive privileges and does not create a vested right to continue to discharge wastewater.

- e. This General Order does not relieve the Discharger from responsibility to obtain other necessary local, state, or federal permits to construct facilities necessary for compliance with this General Order, nor does this General Order prevent imposition of additional standards, requirements, or conditions by any other agency.
- f. The prohibitions, requirements, limitations, and provisions of this General Order are severable. If any provision of this General Order is held invalid, the remainder of this General Order shall not be affected.
- g. To the maximum extent possible, the wastewater system shall be sited and/or designed to prevent flood or surface water from inundating wastewater ponds or otherwise render the wastewater system inoperable. For design purposes, the most recent Federal Emergency Management Agency (FEMA) approved 100-year base flood elevations shall be used.
- h. The Discharger shall ensure that all site operating personnel are familiar with the contents of the wastewater system NOA, this General Order, and the title 22 Engineering Report (for recycled water uses when applicable). A copy of this General Order, the NOA, and technical reports required by this General Order (not including previously submitted monitoring reports) shall be kept at the wastewater treatment facility for reference by operating personnel.
- i. Access to the wastewater system shall be limited to authorized persons.
- j. The Discharger shall comply with all of the conditions of this General Order. Any noncompliance with this General Order constitutes a violation of the Porter-Cologne Water Quality Control Act and/or appropriate Regional Water Board's Basin Plan and may be grounds for an enforcement action.
- k. Wastewater facilities shall be supervised and operated by persons possessing a wastewater treatment operator certificate of the appropriate grade. (Cal. Code Regs., tit. 23, div. 3, ch. 26.) The definition of wastewater treatment plant in the wastewater treatment plant classification, operator certification, and contract operator registration regulations excludes treatment systems that use subsurface disposal.
- l. The State Water Board will review this General Order periodically and will revise requirements when necessary.
- m. After notice and opportunity for a hearing, coverage of this General Order may be terminated or modified for cause including, but not limited to, any of the following:
 - i. Violation of any of the terms or conditions contained in this General Order.
 - ii. Obtaining this General Order by misrepresentation, or failure to disclose fully all relevant facts.
 - iii. A change in any condition that results in either a temporary or permanent need to reduce or eliminate the authorized discharge.

- iv. A material change in the character, location, or volume of discharge.
- n. Before making a material change in the character, location, or volume of discharge, the Discharger shall notify the Regional Water Board Executive Officer. A material change includes, but is not limited to, any of the following:
 - i. An increase in area or depth used for waste disposal beyond that specified in the NOA.
 - ii. A significant change in disposal method, location, or volume (e.g., change from land application to percolation pond).

The Regional Water Board's Executive Officer may require that an ROWD be submitted.

- o. At least **90 days** prior to termination or expiration of any lease, contract, or agreement involving disposal or recycling areas or off-site reuse of effluent, used to justify the capacity authorized herein and assure compliance with this General Order, the Discharger shall notify the Regional Water Board's Executive Officer in writing of the situation and of what measures have been taken or are being taken to assure full compliance with this General Order and the NOA.
- p. Except for material determined to be confidential in accordance with California law, all reports prepared in accordance with terms of this General Order shall be available for public inspection at the offices of the Regional Water Board. Data on waste discharges, water quality, geology, and hydrogeology are not confidential.
- q. The Discharger shall take all reasonable steps to minimize any adverse impact to waters of the state resulting from noncompliance with this General Order. Such steps shall include accelerated or additional monitoring as necessary to determine the nature and impact of the noncompliance.
- r. The Discharger shall maintain in good working order, and operate as efficiently as possible any facility, control system, or monitoring device installed to achieve compliance with this General Order and the NOA.
- s. The Discharger shall permit representatives of the Regional Water Board and/or the State Water Board, upon presentation of credentials, to:
 - i. Enter premises where wastes are treated, stored, or disposed of, and facilities in which any records are kept.
 - ii. Copy any records required under terms and conditions of this General Order.
 - iii. Inspect at reasonable hours, monitoring equipment required by this General Order.
 - iv. Sample, photograph, and/or video record any discharge, waste material, waste treatment system, or monitoring device.

- t. For any electrically operated equipment at the site, the failure of which would cause loss of control or containment of waste materials, or violation of this General Order, the Discharger shall employ safeguards to prevent loss of control over wastes. Such safeguards may include alternate power sources, standby generators, retention capacity, operating procedures, or other means.
- u. The fact that it would have been necessary to halt or reduce the permitted activity to maintain compliance with this General Order shall not be a defense for the Discharger's violations of the General Order.
- v. The discharge shall remain within the disposal area designated in the NOA at all times. (With the exception of activities allowed in an approved title 22 Engineering Report.)
- w. In the event of any change in control or ownership of the facility or wastewater disposal areas, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which shall be immediately forwarded to the Regional Water Board's Executive Officer.
- x. The Discharger shall pay an annual fee to the State Water Board in accordance with the fee schedule for each fiscal year. (Cal. Code Regs., tit. 23, § 2200.) Fees are based on threat to water quality and complexity ratings, will be determined based on information in the ROWD, and are subject to revision by the State Water Board. Annual invoices are issued by the State Water Board for the state fiscal year (July 1 to June 30).

3. General Reporting Requirements:

- a. If the Discharger does not comply, or will be unable to comply, with a limit related to effluent quality, pond freeboard, flow rate, the title 22 engineering report requirements, or bypass or overflow issues, the Discharger shall notify the Regional Water Board staff by telephone. Current phone numbers for Regional Water Board offices may be found on the NOA or on the Internet at:

http://www.waterboards.ca.gov/about_us/contact_us/docs/rwqcbcs_directory.pdf

Notification shall occur as soon as the Discharger or its agents have knowledge of such noncompliance or potential for noncompliance, and the Discharger shall confirm this notification in writing within **10 days**. The written notification shall state the date, time, nature, cause of noncompliance, immediate response action, and a schedule for corrective actions.

- b. In the event of a wastewater containment failure, the Discharger shall immediately notify CalOES. Notification shall be provided as soon as possible and when the notice can be provided without substantially impeding cleanup or other emergency measures. (Wat. Code, § 13271.) A written report to the Regional Water Board's Executive Officer shall be submitted within **10 days** of the failure describing the cause of the failure and how a recurrence will be prevented. Such a failure shall be promptly corrected in accordance with the requirements of this General Order.

- c. All reports submitted in response to this General Order, including monitoring reports, shall be signed by a person identified below:
- i. For a private residence: by the property owner of the residence.
 - ii. For a corporation: by a principal executive officer of at least the level of senior vice-president.
 - iii. For a partnership or sole proprietorship: by a general partner or the proprietor.
 - iv. For a municipality, state, federal, or other public agency: by either a principal executive officer or ranking elected or appointed official.
 - v. A duly authorized representative of a person described above if all of the following are completed:
 - 1) The authorization is made in writing by a person described above.
 - 2) The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity, such as the position of plant manager, operator of a waste management unit, superintendent, or position of equivalent responsibility. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.)
 - 3) The written authorization is submitted to the Regional Water Board.

Any person signing a document under this section shall make the following certification:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

- d. The Discharger shall mail a copy of each monitoring report and any other reports required by this General Order to the appropriate Regional Water Board or provide electronic submittals of reports or data as specified by the Regional Water Board. Contact and mail address information is available on the NOA or at:

http://www.waterboards.ca.gov/about_us/contact_us/docs/rwqcbcs_directory.pdf

4. Monitoring Requirements

- a. The Discharger shall comply with the MRP issued with the NOA, and any future revisions, as specified by the appropriate Regional Water Board's Executive Officer. A model MRP is provided as Attachment C. However, the Executive Officer may modify or replace the MRP for site-specific treatment and disposal conditions when issuing the NOA, or revise the MRP when deemed necessary.

- b. Unless otherwise approved by the Regional Water Board's Executive Officer, all analyses shall be conducted at a laboratory certified for the analyses by the DDW Environmental Laboratory Accreditation Program. If a certified laboratory is not available to the Discharger, analyses performed by a noncertified laboratory will be accepted provided an acceptable Quality Assurance/Quality Control Program is instituted by the laboratory. A manual containing the steps followed in this program must be kept in the laboratory and shall be available for inspection by Regional Water Board staff. The Quality Assurance/Quality Control Program must conform to USEPA guidelines or to procedures approved by the Regional Water Board.
- c. The results of any monitoring done more frequently than required by an MRP shall be reported in the next regularly scheduled monitoring report. Values obtained through additional monitoring shall be used in calculations as appropriate.
- d. Treated wastewater samples shall be collected downstream of all treatment works where a sample representative of the discharge can be obtained prior to disposal. In some cases, it may be necessary to collect samples for different analyses from different sampling locations (e.g. immediately downstream of a disinfection system for pathogens).
- e. The Discharger shall furnish, within a reasonable time, any information the Regional Water Board's staff may request to determine whether cause exists for modifying, revoking, reissuing, or terminating the Discharger's coverage under this General Order. The Discharger shall also furnish to the Regional Water Board's staff upon request, copies of records required to be kept by this General Order.
- f. All noncompliance issues shall be reported with the next regularly scheduled monitoring report in addition to any other reporting requirements.
- g. The Discharger shall retain records of all monitoring information, including all calibration and maintenance records, all original strip chart recordings of continuous monitoring instrumentation, copies of all reports required by this General Order, and records of all data used to complete the application for this General Order. Records shall be maintained for a minimum of **3 years** from the date of the sample, measurement, report, or application. This period may be extended during the course of any unresolved litigation regarding this discharge or when requested by the Regional Water Board's Executive Officer.
- h. All monitoring and analysis instruments and devices used by the Discharger to fulfill the prescribed MRP shall be properly maintained and calibrated as recommended by the manufacturer to ensure their continued accuracy.
- i. The Discharger shall construct all groundwater monitoring wells to meet or exceed the standards stated in Department of Water Resources' Bulletins 74-81, 74-90, and subsequent revisions unless deviation is approved by the Regional Water Board's staff or local well construction enforcing agency, and shall comply with the reporting provisions for wells. (Wat. Code, § 13751.)

5. Definitions

- a. Upset means an exceptional incident in which there is unintentional and temporary noncompliance with effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper action.
- b. The monthly average flow rate is the total discharge by volume during a calendar month divided by the number of days in the month that the facility was discharging. This number shall be reported in gpd or million gallons per day.
- c. The monthly average concentration is the arithmetic mean of measurements recorded during a calendar month. If only one sample is collected in a calendar month, then that sample measurement is the monthly average concentration.
- d. The daily maximum concentration is the highest measurement recorded for any grab or composite sample collected during a day in a calendar month.
- e. The 7-day median total coliform organism value shall be calculated as the median concentration of the results for the last 7 calendar days. If only one sample is collected within a 7-day period, then that one sample becomes the 7-day median value.
- f. A grab sample is an individual sample collected in less than 15 minutes.
- g. Unless otherwise specified, a composite sample is a combination of individual samples collected over the specified sampling period. The method of compositing shall be reported with the results.
- h. A time-weighted sample is collected at equal time intervals, with a maximum interval of one hour.
- i. A flow-weighted sample is collected at varying time intervals (average interval one hour or less) so that each sample represents an equal portion of the cumulative flow. The duration of the sampling period shall be specified in the MRP.
- j. A day is the mean solar day of 24 hours beginning at mean midnight. All references to day in this General Order are calendar days.

CERTIFICATION

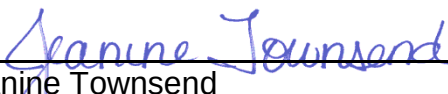
I, Jeanine Townsend, Clerk to the Board, do hereby certify that this General Order with all attachments is a full, true, and correct copy of a General Order adopted by the State Water Board, on September 23, 2014.

AYE: Chair Felicia Marcus
Vice Chair Frances Spivy-Weber
Board Member Tam M. Doduc
Board Member Steven Moore
Board Member Dorene D'Adamo

NAY: None

ABSENT: None

ABSTAIN: None



Jeanine Townsend
Clerk to the Board

ATTACHMENT 1
NITROGEN EFFLUENT LIMIT EVALUATION
ORDER WQ 2014-0153-DWQ
GENERAL WASTE DISCHARGE REQUIREMENTS
FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS

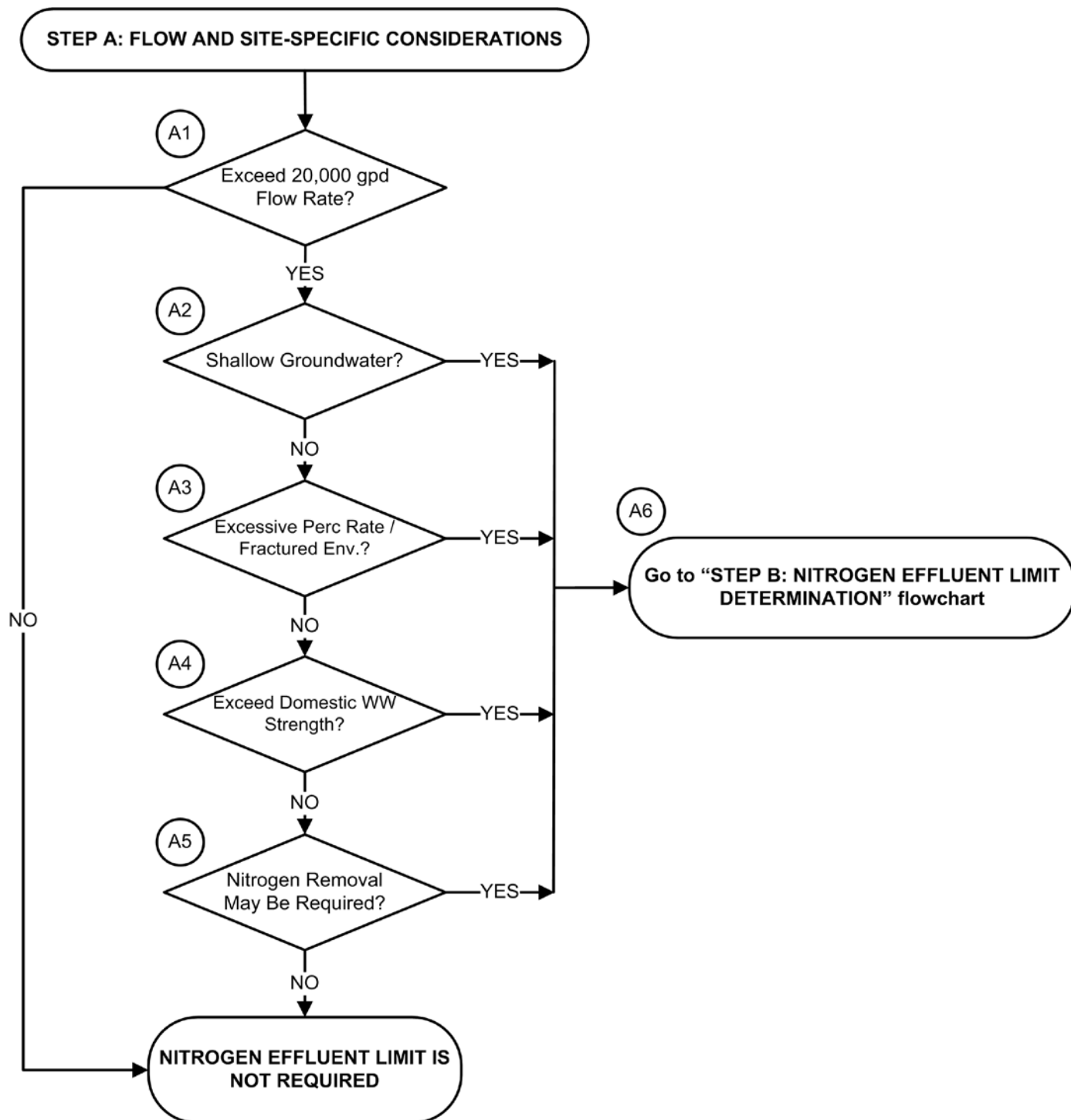
Introduction

The nitrogen effluent limit will only be imposed where required to protect beneficial uses of groundwater and surface water and shall not be selected as a default to add water quality protection where the added expense of nitrogen control is not required. It is the discharger's responsibility to provide adequate information to allow the evaluation of the need for additional treatment.

Each of the five site-specific considerations listed below shall be considered when evaluating a discharge and the need for nitrogen control. The site-specific conditions are further discussed on the explanation sheets. If each of the site-specific considerations is favorable (as discussed individually below), the facility is not required to meet an effluent limit for nitrogen.

The attached flow charts provide a method to evaluate the discharge and the receiving environment to determine the applicability of a nitrogen effluent limit. Evaluation of the need for a nitrogen effluent limit is a two-step process. In the first step, applicability of a nitrogen effluent limit is determined based on the flow rate and site-specific characteristics of the receiving environment; in the second step effluent limits are selected based on further evaluation of level of threat related to the site-specific characteristics of the discharge and the receiving environment.

To begin the evaluation start at "Step A: Flow and Site-Specific Considerations," on the following page.



Step A – Flow and Site-Specific Considerations

The following considerations shall be evaluated to determine if a nitrogen effluent limit is appropriate.

- A1 *Exceed 20,000 gpd Flow Rate?* The General Order allows a flow rate up to 100,000 gpd. However, discharges with flow rates less than 20,000 gpd are not required to meet a nitrogen effluent limit.
- A2 *Shallow Groundwater?* Shallow groundwater conditions are defined by the OWTS Policy Table 2, *Minimum Depth to Groundwater and Minimum Soil Depth from the Bottom of the Dispersal System* (reproduced as Table 5 below).

Table 5: Minimum Depth to Groundwater and Minimum Soil Depth from the Bottom of Dispersal System

<u>Percolation Rate</u> ^a	<u>Depth to Groundwater</u> ^b
Perc Rate ≤ 1 MPI	Additional Treatment Required
1 MPI ≤ Perc Rate ≤ 5 MPI	20 Feet
5 MPI ≤ Perc Rate ≤ 30 MPI	8 Feet
30 MPI ≤ Perc Rate ≤ 120 MPI	5 Feet
Perc Rate ≥ 120 MPI	Engineered Disposal Required

^a Perc Rate denotes percolation rate. MPI denotes minutes per inch.

^b The minimum depth to groundwater is measured from the base of the infiltration surface to the seasonally high groundwater table or first saturated interval.

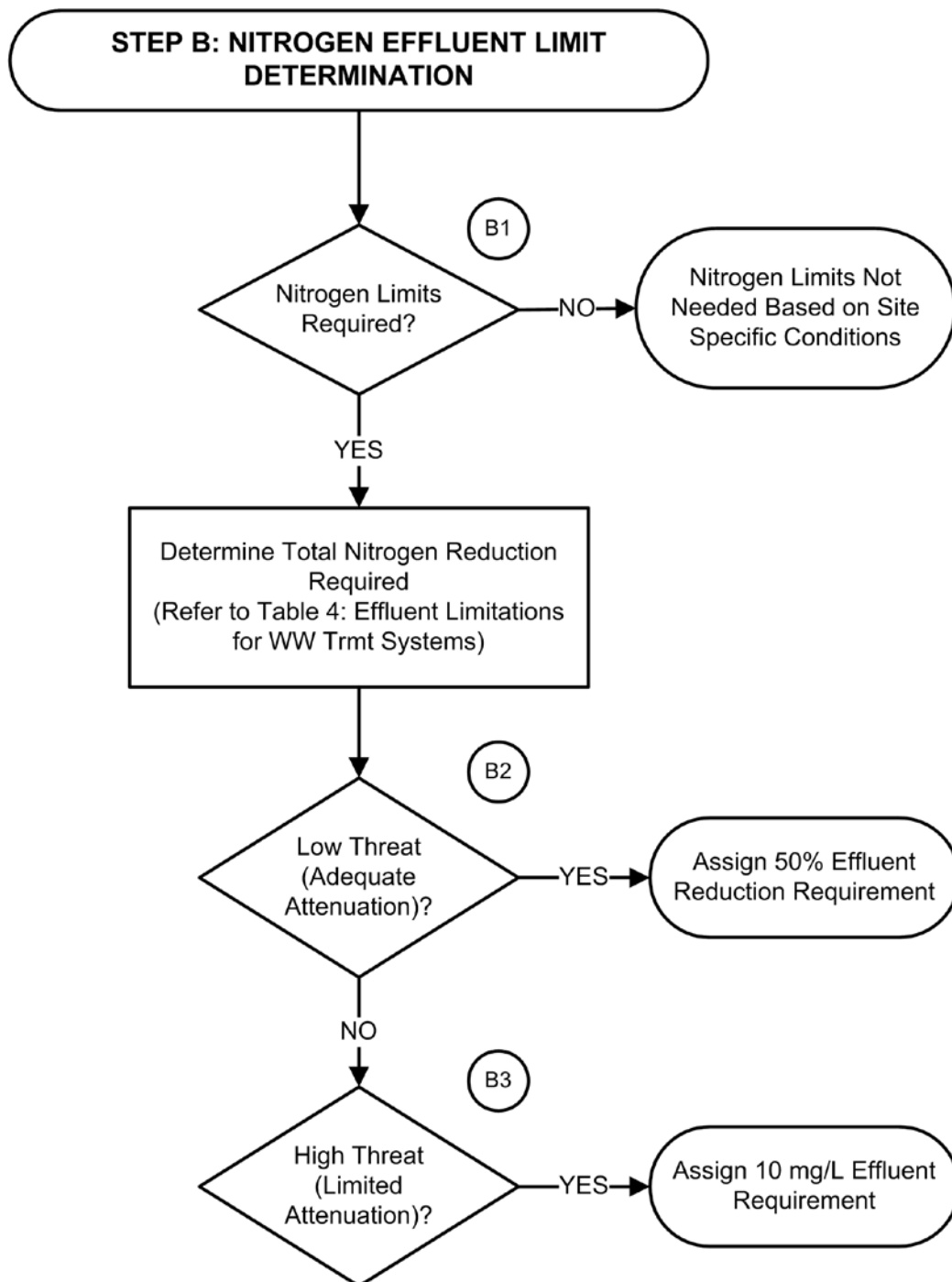
- A3 *Excessive Percolation Rate / Fractured Environment?* An excessive percolation rate is defined as a combination of percolation rate and depth to groundwater that does not comply with the conditions presented in Table 5.

A fractured environment is defined as less permeable rock with porosity resulting from fractures that allows groundwater to flow through the fractures and has either of the following: a) No unconsolidated soil cover, or b) Unconsolidated soil cover that possesses an excessive percolation rate (that does not comply with the conditions defined in Table 5).

- A4 *Exceed Domestic Wastewater Strength?* Typical domestic wastewater strength is presented in Finding 8 of the General Order. Alternative domestic wastewater strengths may be based upon other per capita flow rate assumptions. The data presented in the General Order may be used; alternative characterizations from textbook and/or governmental organizations (e.g. U.S. Environmental Protection Agency) may be acceptable at the discretion of Regional Water Quality Control Board (Regional Water Board) staff.

Some domestic wastewater streams (domestic wastewater originating in factory or warehouse situations) may exceed the typical municipal wastewater strengths due to a lack of diluting flows from showers, dishwashers, etc. Such flows are not excluded from coverage by the General Order; however, the discharge shall be evaluated to determine if nitrogen effluent limits are appropriate.

- A5 *Nitrogen Removal May Be Required?* If the Regional Water Board Basin Plan or groundwater studies indicate that nitrogen is a constituent of concern, then nitrogen reduction may be required. The appropriate limit shall be based on site conditions as evaluated in Step B.
- A6 *Go to "NITROGEN EFFLUENT LIMIT DETERMINATION" flowchart:* If the preliminary evaluation (Step A) indicates a nitrogen effluent limit may be required, proceed to the Nitrogen Effluent Limit Determination flowchart to determine if an effluent limit for nitrogen is required.



Step B – Nitrogen Effluent Limit Evaluation

If a Regional Water Board's Basin Plan addresses the area where the site is located, the nitrogen control measures shall be consistent with the Basin Plan.

If the Step A evaluation indicated additional treatment for nitrogen control may be necessary, continue the evaluation at "Step B, Nitrogen Effluent Limit Determination."

- B1 *Nitrogen Limits Required?* The initial evaluation of the need for nitrogen control (discussed in Item A5) shall include comparison of the wastewater effluent quality to groundwater quality and the potential for the wastewater discharge to cause or contribute to a condition of pollution or nuisance. The benefits of nitrogen control should be balanced with the cost of implementing nitrogen control.

Measures implemented to protect groundwater quality (e.g. equipping a pond with a synthetic or low permeability liner to reduce infiltration, using supplemental water to reduce LAA loading rates, or agronomic application of nitrogen) should be considered when determining the need for nitrogen effluent limits.

- B2 *Low-Threat (Adequate Attenuation)?* In low-threat situations, the 50 percent nitrogen removal (in effluent prior to discharge) is appropriate. Low-threat situations are those where additional nitrogen removal will occur in the dispersal area (e.g. land application crop uptake, denitrification, shallow dispersal area, etc.) or where adequate attenuation exists based on other conditions such as depth to groundwater.

- B3 *High-Threat (Limited Attenuation)?* In high-threat situations, the 10 milligrams per liter (mg/L) effluent limit is appropriate. High-threat situations are those where limited nitrogen removal will occur in the dispersal area or in limited attenuation situations (e.g. shallow depth to groundwater, fractured aquifer, potential for groundwater to migrate to surface water bodies with limited attenuation, etc.).

INFORMATION SHEET SUMMARY
 STATE WATER RESOURCES CONTROL BOARD
 ORDER WQ 2014-0153-DWQ
 GENERAL WASTE DISCHARGE REQUIREMENTS
 FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS

The attachments to this Information Sheet will help Dischargers understand the process of obtaining coverage under these *General Waste Discharge Requirements for Discharges to Land by Small Domestic Systems* (General Order). The attachments describe the permitting process and the information needed by Regional Water Quality Control Board (Regional Water Board) staff to prepare a Notice of Applicability (NOA), which provides the Discharger coverage under the General Order. Although not required, organization of the technical report described in Attachment B1 in the format presented in the attachment will allow streamlined review of the facility information and may reduce the time required to prepare an NOA. Some Regional Water Boards have implemented procedures for electronic submittal of technical reports and monitoring data. The Dischargers shall comply with those submittal requirements when applicable.

The Discharger is encouraged to contact the Regional Water Board staff early in the process to discuss their conceptual wastewater plan. Attachment A shows the generalized permitting process; it is recommended each of the items in the box labeled "Contact Regional Water Board to Discuss" be listed on a meeting agenda so that they are adequately discussed.

The *Conceptual Wastewater Plan* listed on Attachment A shall be complete enough for a meaningful discussion with the Regional Water Board staff so that any significant issues can be identified early in the process. However, the details of the *Conceptual Wastewater Plan* are unlikely to be finalized at this stage of the process. Determinations regarding the *Conceptual Wastewater Plan* may require additional investigation by the Discharger before the Regional Water Board staff can provide definitive answers to questions about the *Conceptual Wastewater Plan*.

Questions the Discharger may have regarding any of the attachments (such as the report requirements described in Attachment B1) should also be discussed at the meeting. At the conclusion of the meeting, the Discharger should understand how their system will be evaluated using the General Order Attachment 1, *Nitrogen Effluent Limit Evaluation*, and if any additional investigations are required to provide a complete Report of Waste Discharge.

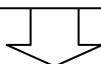
The attachments included in this Information Sheet consist of the following:

<u>Name</u>	<u>Title</u>
Attachment A	Generalized Permit Application Process Summary
Attachment B1	Recommended Report of Waste Discharge Format
Attachment B2	Safe Wastewater Disposal for Recreational Vehicles
Attachment C	Model Monitoring and Reporting Program

ATTACHMENT A - INFORMATION SHEET
 GENERALIZED PERMIT APPLICATION PROCESS SUMMARY
 STATE WATER RESOURCES CONTROL BOARD
 ORDER WQ 2014-0153-DWQ
 GENERAL WASTE DISCHARGE REQUIREMENTS
 FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS

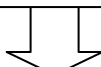
The Discharger shall perform the following:

- Determine availability of regional collection system
- Determine need to submit a Report of Waste Discharge (ROWD)
- Review Nitrogen Effluent Limit Evaluation (Attachment 1)
- Develop a Conceptual Wastewater Plan



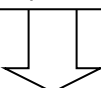
Contact Regional Water Board to discuss:

- Wastewater characterization/treatment/disposal plan
- Water balance precipitation value
- Threat and Complexity/Application Fee
- Storm water runoff/wastewater disinfection needed?
- Review Nitrogen Effluent Limit Evaluation (Attachment 1)
- Title 22 Engineering Report needed?
- Groundwater monitoring needed?
- Sanitary Sewer Overflow General Order Applicability
- Operator Certification Required?
- California Environmental Quality Act status
- Electronic ROWD application/monitoring report procedures



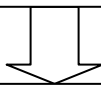
Submit Report of Waste Discharge
 (electronic submittal if requested by Regional Water Board)

- Completed Form 200
- Application fee payment
- Technical Report (prepared consistent with the guidance in Attachment B1, or as directed by Regional Water Board staff).



Regional Water Board ROWD Review

- If the ROWD is complete, a notice of applicability (NOA) will be prepared.
- If incomplete, a Notice of Incomplete ROWD will be transmitted to the Discharger.



NOA Issued

- The NOA authorizes the wastewater discharge consistent with the ROWD, NOA, General Order, and title 22 Engineering Report (if applicable).
- The NOA will specify compliance criteria, monitoring requirements, and reporting requirements. In some cases, electronic reporting may be required.

ATTACHMENT B1 – INFORMATION SHEET
 RECOMMENDED REPORT OF WASTE DISCHARGE FORMAT
 STATE WATER RESOURCES CONTROL BOARD
 ORDER WQ 2014-0153-DWQ
 GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC
 WASTEWATER TREATMENT SYSTEMS
 GENERAL INFORMATION FOR DISCHARGER

The information presented in the Report of Waste Discharge (ROWD) is relied upon by staff to prepare the Notice of Applicability (NOA) for coverage by this General Waste Discharge Requirements for Order (General Order). The Discharger shall ensure that the information presented in the ROWD is accurate. Misstatements, errors, or omissions that exist in the ROWD may be included in the NOA and become enforceable.

Waste Discharge Requirements (WDRs) are generally updated at 10 or 15 year intervals depending on the waste's potential to impact water quality. The ROWD shall state realistic growth projections. Underestimating growth may result in additional or more frequent permitting requirements. Overestimating growth will result in the need for the Discharger to prepare more treatment, storage, and disposal capacity than might otherwise be immediately required.

The ROWD outline presented below is intended to provide general guidance for Dischargers and consultants. Submitting an ROWD consistent with the format will help the Discharger include all of the information that Regional Water Quality Control Board (Regional Water Board) staff need and will expedite review of the document and speed the permitting process. Contacting your Regional Water Board representative to discuss the project before preparing the ROWD is recommended.

1. BACKGROUND

1.1. Wastewater system description

- 1.1.1. Briefly, describe what the wastewater system is and how wastewater is generated.
- 1.1.2. Provide a site location map and a site plan.
- 1.1.3. Provide information on the location of wastewater system buildings, wastewater treatment system components, groundwater wells, and surface water bodies.
- 1.1.4. Provide the Assessor's Parcel Number(s), section number(s), and Township and Range.
- 1.1.5. Describe the water supply to the residence(s), business(es), and/or other facilities being served by the wastewater system.

1.2. Service area description

- 1.2.1. Describe the proximity of the wastewater system to an existing regional collection system; if nearby, discuss why connection to the regional system cannot be accomplished. If located within a regional system service area, or in close proximity to a collection system, provide written documentation that a good faith effort to connect to the regional system was made and that the request was not approved.

1.2.2. Wastewater collection system (describe the following). For collection systems subject to State Water Board Order No. 2006-0003-DWQ, reports prepared to comply with the State Water Board Order No. 2006-0003-DWQ satisfies this requirement and may be submitted as part of the ROWD technical report.

1.2.2.1. Age and condition of collection system.

1.2.2.2. Piping construction and layout (show on map).

1.2.2.3. Lift stations and backup pumping systems.

1.2.2.4. Failure warning system.

1.2.2.5. Inflow and infiltration (I/I) estimates (and any control that is necessary).

1.2.2.6. Maintenance of collection system and spill response.

1.2.3. Storm water collection system

1.2.3.1. Storm water collection area (show on map).

1.2.3.2. Storm water disposal area in relation to wastewater disposal area.

1.2.3.3. Storm water disposal permit (if needed).

2. WASTEWATER CHARACTERIZATION AND TREATMENT

2.1. Domestic wastewater characterization (untreated wastewater).

2.1.1. Describe the generation of wastewater (retirees, families, recreational vehicle [RV], institution, etc.).⁹ If RV waste is allowed, describe educational and institutional controls in place to minimize the potential for deleterious RV waste constituents to be discharged to the wastewater system.

2.1.2. Domestic wastewater flow rate (describe how determined). Describe any special events or seasonal variations that cause high wastewater flow rates or other sources of wastewater (e.g. swimming pool filter, potable water treatment backwash water, well attended festivals, etc.).

2.1.3. Characterize domestic wastewater for Biochemical Oxygen Demand (BOD), Total Suspended Solids (TSS), electrical conductivity, nitrogen, sodium, chloride, and specific constituents of concern as needed based on site activities. Characterize wastewater for holding tank chemicals identified in the General Order (and others as appropriate) if RV waste is discharged to the system.

2.2. Wastewater treatment system

2.2.1. Provide a wastewater treatment schematic.

⁹ Recreational vehicle (RV) holding tank connections, RV waste dump stations, etc. create special conditions for treatment and monitoring. Please refer to the General Order for more information.

- 2.2.2. Describe wastewater pretreatment components.
 - 2.2.2.1. Domestic wastewater pretreatment systems (e.g. septic tank effluent pump system, grease traps, etc.).
 - 2.2.2.2. Describe storage, treatment, and disposal of pretreatment residuals.
- 2.2.3. Describe preliminary treatment activities (e.g., screening, comminution, grit removal).
 - 2.2.3.1. Describe storage, treatment, and disposal of preliminary treatment residuals.
- 2.2.4. Describe primary treatment activities (remove settleable/flotable matter)
 - 2.2.4.1. Describe storage, treatment, and disposal of primary treatment residuals.
- 2.2.5. Describe treatment technology (e.g., activated sludge, membrane biological reactor, aerated lagoon, oxidation ditch, Imhoff tank, septic tank, etc.) include engineered design capacity in description.
 - 2.2.5.1. Describe storage, treatment, and disposal of treatment residuals (e.g. sludge, septage, etc.).
- 2.2.6. Size and location of treatment equipment (e.g. septic tank volume, package treatment plant, membrane biological reactor, pond size include acreage and storage capacity, pond liners, and number and horsepower of aerators, etc.).
- 2.2.7. Disinfection system equipment
- 2.2.8. Storage facilities
 - 2.2.8.1. If wastewater will be stored prior to disposal, describe the size and location of wastewater storage ponds, include a map showing all the ponds and describe them as lined or not. Describe the materials, age, and condition of any liners.
- 2.2.9. Predicted wastewater effluent quality
 - 2.2.9.1. Characterize the wastewater for TSS, BOD, total coliform organisms (if needed), and specific constituents of concern as needed. If RV waste is discharged to the system, characterize for holding tank chemicals identified in the General Order (and others as appropriate).
- 2.2.10. Treated effluent disposal method
 - 2.2.10.1. Describe how treated wastewater will be dispersed (land application area, leach field, percolation pond).
 - 2.2.10.2. Describe the proposed disposal area (and the 100-percent replacement area when needed, such as for a leach field disposal system) include acreage, surrounding land use, depth to groundwater, and the proximity of drainage ways, surface waters, and municipal, industrial, or agricultural wells.

- 2.2.10.2.1. If land application is proposed, describe how storm water that falls on the land application area (LAA) is handled. If storm water is allowed to run off the LAA, contact your Regional Water Board representative to discuss wastewater disinfection requirements.
- 2.2.10.2.2. Provide a water balance that demonstrates adequate storage/disposal capacity. Identify the safety factors used in the calculations. Please contact your Regional Water Board representative to determine the precipitation values to be included in the water balance. Typically, the 100-year return annual total precipitation value, distributed monthly in accordance with average (mean) precipitation values monthly is required. Some exemptions for existing ponds or sites that develop an acceptable *Spill Prevention and Emergency Response Plan* may apply. Rainfall depth duration frequency data is available on the Department of Water Resources Internet web page at:
<<http://www.water.ca.gov/floodmgmt/hafoo/hb/csm/engineering/>>
- 2.2.10.2.3. Support the assumptions and calculations in the water balance with adequate information. Information may include published infiltration values, site-specific percolation tests, application rates, or other sources. Cite the information source used; if a site-specific investigation, provide a copy of the report.
- 2.2.10.2.4. The use of subsurface disposal including leach fields and/or seepage pits serving more than 20 people, or systems that accept non-sanitary waste (generated by manufacturing, contains biocidal agents such as RV or portable toilets, etc.) must comply with the United States Environmental Protection Agency Underground Injection Control requirements. Please refer to General Order Requirement B.6.g and <http://www.epa.gov/region9/water/groundwater/uic.html> to determine if federal requirements apply to the proposed project. If registration is required, documentation of registration shall be provided in the ROWD.

2.3. Recycled Water Projects

- 2.3.1. If treated wastewater will be applied for beneficial uses (such as those described in title 22 water recycling criteria), provide a title 22 Engineering Report and the State Water Board Division of Drinking Water (DDW) (formerly the California Department of Public Health (CDPH) review/approval letter. Guidance for preparation of a title 22 Engineering Report is available on the Internet at:
<http://www.cdph.ca.gov/certlic/drinkingwater/Documents/Recharge/ERGUIDE2001.PDF>

2.3.1.1. Describe how any DDW requirements will be implemented in the project.

2.3.1.2. If needed, describe the disinfection requirements for the planned reuse.

2.4. Operation and Maintenance

2.4.1. Describe routine operation and maintenance procedures

2.4.2. Treatment operator training and qualifications requirements

2.4.3. Contingency plans for repairs/spills/treatment issues

3. GROUNDWATER QUALITY

3.1. Depending upon the threat to groundwater quality, groundwater monitoring may be required. Please contact your Regional Water Board representative to determine if groundwater monitoring is required.

4. CALIFORNIA ENVIRONMENTAL QUALITY ACT (CEQA)

4.1. Some existing Small Domestic Systems will be determined to be categorically exempt from the California Environmental Quality Act (CEQA) under Title 14, section 15301 (ongoing or existing projects), section 15302 (replacement or reconstruction of existing utility systems), and section 15303 (new construction or conversion of small structures). The potential for categorical exemptions shall be examined and discussed with the Regional Water Board representative prior to submitting an ROWD.

4.2. New or expanding Small Domestic Systems will likely require CEQA evaluation that should be performed by local agencies. The CEQA evaluation shall be submitted with the ROWD. At a minimum, the evaluation shall include the Initial Study, a list of any adopted mitigation measures related to water quality, and the Notice of Determination.

4.2.1. The ROWD must include a description of how any water quality related mitigation measures will be implemented.

5. ADDITIONAL TECHNICAL REPORTS

5.1. If required by the General Order, a *Sludge Management Plan* shall be submitted with the ROWD.

5.1.1. Estimate the amount of sludge and scum that will be generated.

5.1.1.1. Describe how sludge, scum, and supernatant will be stored and disposed of to protect groundwater quality.

5.1.1.2. If sludge will be subject to further treatment, describe the treatment and storage requirements.

5.1.1.3. Describe cleaning of digesters or storage vessels and the treatment and disposal of the residuals. If drying of residuals is planned, describe how that will be performed to prevent nuisance odors, prevent vectors, and protect groundwater quality.

ATTACHMENT B2 – INFORMATION SHEET
SAFE WASTEWATER DISPOSAL FOR RECREATIONAL VEHICLES
STATE WATER RESOURCES CONTROL BOARD
ORDER WQ 2014-0153-DWQ
GENERAL WASTE DISCHARGE REQUIREMENTS
FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS



United States
Environmental
Protection Agency

Region 9 Ground Water
Office (WTR-9)

EPA 909-F-99-002
JULY 1999

ALERT FOR RV, BOAT AND MOBILE HOME OWNERS AND PARK OPERATORS ABOUT SAFE WASTEWATER DISPOSAL

DO NOT USE CHEMICALS WHICH HARM SEPTIC SYSTEMS

Formaldehyde: active ingredient in some deodorizers, also called Formalin. Formaldehyde is an EPA-recognized probable carcinogen (i.e., causes cancer).

Para-dichlorobenzene: Known carcinogen and drinking water contaminant. Common ingredient in mothballs, urinal cakes and bowl fresheners.

OTHER CHEMICALS TO BEWARE OF INCLUDE heavy metals (such as Zinc), benzene, toluene, xylene, ethylene glycol (anti-freeze), methylene chloride, 1,1,1-trichloroethane (TCA), trichloroethylene (TCE) and perchloroethylene (PCE). Strong acids and bases, such as sulfuric acid or caustic soda, can destroy biological activity and damage tanks and pipes.

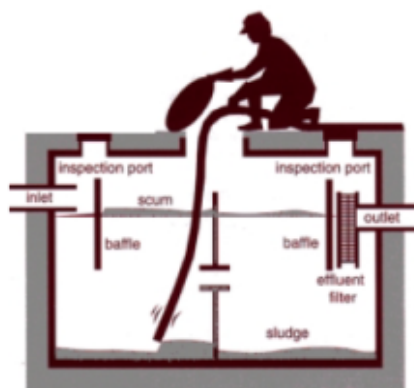
\$ A healthy, well-maintained and appropriately sized septic tank will generally require less pumping over its service life, saving time and money.

If you spend any time in a recreational vehicle (RV) or boat, you probably know of the problem of odors from sewage holding tanks. There are a number of commercial products available to control those odors. Some of those products contain chemicals which may pollute water resources. If you use those chemicals and then empty your holding tank into a septic system (or other onsite wastewater treatment system) or dispose of holding tank waste illegally, you may be creating health and environmental hazards. These chemicals and their by-products may pass through onsite wastewater treatment systems, flowing to soil, ground water, and possibly nearby surface waters. They may also corrode treatment system parts, creating a safety hazard.

How septic systems work. A typical septic system contains two major components: a septic tank and an absorption field, also known as a drainfield or leachfield. These systems use natural processes to treat wastewater onsite, as opposed to offsite at a municipal wastewater treatment plant. The purpose of the septic tank is to separate solids from the liquid waste, and to promote partial breakdown of contaminants by microorganisms (bacteria) naturally present in wastewater. The leachfield also treats the wastewater through physical, biological and chemical processes in the soil.

Mixing chemicals with waste in sewage holding tanks or septic systems may produce toxic fumes, corrode pipelines and tanks, and pollute soil and ground water when discharged.

When chemicals, such as formaldehyde, are added to septic systems, they can cause bacteria in the system to die. When this happens, the septic system cannot treat waste adequately. Solids that are allowed to pass from the septic tank, due to inadequate or incomplete treatment, may clog the leachfield. Furthermore, clogged systems may send inadequately or incompletely treated sewage to the surface, threatening the health of people or pets who come into contact with it. Or it may percolate to ground water, where the chemicals and untreated wastewater could contaminate nearby drinking water wells, rivers and streams. Please **read labels carefully** to identify any hazardous ingredients.



* NATIONAL SMALL FLOWS CLEARINGHOUSE

The restoration of contaminated ground water is extremely costly and can take years. To prevent problems, RV and mobile home parks, as well as dump station operators, may take measures to control hazardous chemical disposal into their waste treatment systems. If they do not, and their system causes contamination, they may be forced to **close the dump station or the park** until the problem can be corrected.

**REPORT SEWAGE SPILLS
and other health hazards to the local
health department.
Keep People and Pets Away!**

PARK OPERATORS:

The United States Department of Health, Education and Welfare said in 1957 that "... there are no known chemicals, yeasts, bacteria, enzymes or other substances capable of



eliminating or reducing the solids and scum in a septic tank" and according to EPA, this is still true. No products have been verified by EPA to eliminate the need for routine maintenance, and some may actually accelerate system failure by allowing solids to clog the dispersal system; while the products may claim to "remove" sludge, they may just "move" sludge. Tanks should be checked routinely (see photo) for solids and scum buildup.

Sludge Removal (pumpouts) may be needed more often for RV, Mobile Home and Boat waste systems than for single-family septic systems, especially if your tanks are undersized and/or your residents are conservative with water. Oversizing your tanks, or adding additional tanks, may allow greater waste stabilization. Consult a wastewater professional.



**RVers CAN HELP...
Here's How:**

- Minimize your need of holding tank deodorizers by using rest stop facilities when you can.

- If you must use a holding tank deodorizer, read the label carefully. **Biodegradable** (enzyme and citrus-based) products are available.

Whichever product you choose, follow label directions and add no more than recommended amounts.

- Some products that claim to be flushable, such as some types of cat litter, may clog hoses and septic tanks; use toilets for waste and toilet paper only.

- Ask questions of your park manager about drinking water and wastewater management. Sanitation costs can be minimal, but not free.

- Educate other RVers. Don't be shy about health.

FREE HOTLINES!

Septic System Care: The National Small Flows Clearinghouse, (800) 624-8301, EST, or www.nslc.wvu.edu
The Safe Drinking Water Act Hotline, US EPA: (800) 426-4791, EST, or www.epa.gov/ogwdw

U.S. EPA, Region 9, WTR-9
Ground Water Office
75 Hawthorne Street
San Francisco, CA 94105-3109
OFFICIAL BUSINESS - PENALTY FOR PRIVATE USE \$300

ATTACHMENT C – INFORMATION SHEET
MODEL MONITORING AND REPORTING PROGRAM
STATE WATER RESOURCES CONTROL BOARD
ORDER WQ 2014-0153-DWQ
GENERAL WASTE DISCHARGE REQUIREMENTS
FOR SMALL DOMESTIC WASTEWATER SYSTEMS

This Monitoring and Reporting Program (MRP) describes requirements for monitoring a wastewater treatment system. This MRP is issued pursuant to Water Code section 13267. The Discharger shall not implement any changes to this MRP unless and until a revised MRP is issued by the Regional Water Quality Control Board (Regional Water Board) Executive Officer.

The State Water Resources Control Board (State Water Board) and Regional Water Boards are transitioning to the paperless office system. In some regions, Dischargers will be directed to submit reports (both technical and monitoring reports) to the State Water Board's GeoTracker database over the Internet in portable document format (pdf). In addition, analytical data shall be uploaded to the GeoTracker database under a site-specific global identification number. Information on the GeoTracker database is provided on the Internet at:

<http://www.waterboards.ca.gov/ust/electronic_submittal/index.shtml>

Water Code section 13267 states, in part:

“In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports, and shall identify the evidence that supports requiring that person to provide the reports.”

Water Code section 13268 states, in part:

“(a) Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of section 13267, or failing or refusing to furnish a statement of compliance as required by subdivision (b) of section 13399.2, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in accordance with subdivision (b).

(b)(1) Civil liability may be administratively imposed by a regional board in accordance with article 2.5 (commencing with section 13323) of chapter 5 for a violation of subdivision (a) in an amount which shall not exceed one thousand dollars (\$1,000) for each day in which the violation occurs.”

The Discharger owns and operates the wastewater system that is subject to the Notice of Applicability (NOA) of Water Quality Order 2014-0153-DWQ. The reports are necessary to ensure that the Discharger complies with the NOA and General Order. Pursuant to Water Code section 13267, the Discharger shall implement this MRP and shall submit the monitoring reports described herein.

All samples shall be representative of the volume and nature of the discharge or matrix of material sampled. The name of the sampler, sample type (grab or composite), time, date, location, bottle type, and any preservative used for each sample shall be recorded on the sample chain of custody form. The chain of custody form must also contain all custody information including date, time, and to whom samples were relinquished. If composite samples are collected, the basis for sampling (time or flow weighted) shall be approved by Regional Water Board staff.

Field test instruments (such as those used to test pH, dissolved oxygen, and electrical conductivity) may be used provided that they are used by a State Water Board California Environmental Laboratory Accreditation Program certified laboratory, or:

1. The user is trained in proper use and maintenance of the instruments;
2. The instruments are field calibrated prior to monitoring events at the frequency recommended by the manufacturer;
3. Instruments are serviced and/or calibrated by the manufacturer at the recommended frequency; and
4. Field calibration reports are maintained and available for at least three years.

SEPTIC TANK MONITORING

Monitoring of septic tank shall include the following:

<u>Parameter</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Flow Rate	gpd	Metered ^a	Continuous	Annually

gpd denotes gallons per day.

^a. Flow rate may be metered or estimated based on potable water supply meter readings or other approved method.

Septic tanks shall be inspected and/or pumped at least as frequently as described below. Inspections of sludge and scum depth are not required if the tanks are pumped at least annually.

<u>Parameter</u>	<u>Units</u>	<u>Measurement Type</u>	<u>Inspection/Reporting Frequency</u>
Sludge depth and scum thickness in each compartment of each tank	Feet	Staff Gauge	Annually
Distance between bottom of scum layer and bottom of outlet device	Inches	Staff Gauge	Annually
Distance between top of sludge layer and bottom of outlet device	Inches	Staff Gauge	Annually
Effluent filter condition (if equipped, clean as needed)	NA	NA	Annually

NA denotes not applicable.

Septic tanks shall be pumped when any one of the following conditions exists:

1. The combined thickness of sludge and scum exceeds one-third of the tank depth of the first compartment.
2. The scum layer is within 3 inches of the outlet device.
3. The sludge layer is within 8 inches of the outlet device.

If a septic tank is pumped during the year, the pumping report shall be submitted with the annual report. All pumping reports shall be submitted with the next regularly scheduled monitoring report. At a minimum, the record shall include the date, nature of service, service company name, and service company license number.

AEROBIC TREATMENT UNIT MONITORING ¹⁰

Influent Monitoring

Influent samples shall be taken from a location that provides representative samples of the wastewater quality. At a minimum, influent monitoring shall consist of the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Total Nitrogen ^a	mg/L	Grab	Monthly	Quarterly

mg/L denotes milligrams per liter.

a. When needed for 50% reduction effluent limit calculations. .

¹⁰ Determine the need for monitoring based on the flow rate and Attachment 1. Biochemical oxygen demand limits apply with flow rates above 400 gpd; nitrogen limits may apply at flow rates above 20,000 gpd. (See General Order Section D, Effluent Limits and Attachment 1, Nitrogen Effluent Limit Evaluation.)

Effluent Monitoring

Samples of effluent shall be taken at an area that represents the effluent quality distributed to the disposal area. At a minimum, effluent monitoring shall consist of the following:

<u>Parameter</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Flow Rate	gpd	Metered ^a	Continuous	Quarterly
Biochemical Oxygen Demand	mg/L	Grab	Monthly	Quarterly
Total Nitrogen ^b	mg/L	Grab	Monthly	Quarterly

gpd denotes gallons per day. mg/L denotes milligrams per liter.

- a. Flow rate may be metered or estimated based on potable water supply meter readings or other approved method. Flow rates may be measured as influent or effluent flow.
- b. Include nitrogen monitoring when a nitrogen effluent limit is imposed.

Aerobic treatment units may be integrated in a treatment train and all components shall be inspected to verify operational status. It is highly recommended that a service agreement with a qualified service provider/vendor be required by the Regional Water Board's Executive Officer. Because aerobic treatment units generate more biosolids than septic systems (similar to the activated sludge process), systems shall be inspected and/or pumped at least as frequently as described below. Depending upon the amount of solids removed from the aerobic treatment unit, less frequent inspections may be allowed by the Regional Water Board's Executive Officer. Inspections of sludge and scum depth are not required if the tanks are pumped at least annually.

<u>Parameter</u>	<u>Units</u>	<u>Measurement Type</u>	<u>Inspection/Reporting Frequency</u>
Sludge depth and scum thickness in each compartment of each tank	Feet	Staff Gauge	Quarterly
Distance between bottom of scum layer and bottom of outlet device	Inches	Staff Gauge	Quarterly
Distance between top of sludge layer and bottom of outlet device	Inches	Staff Gauge	Quarterly
Effluent filter condition (if equipped, clean as needed)	NA	NA	Quarterly

NA denotes not applicable.

Aerobic treatment units shall be pumped when any one of the following conditions exists:

1. The combined thickness of sludge and scum exceeds one-third of the tank depth of the final settling tank or interferes with the operation of the system (mixed liquor aerator solids shall not exceed the manufacturer's recommendation).
2. The scum layer is within 3 inches of the outlet device.
3. The sludge layer is within 8 inches of the outlet device.

All pumping reports shall be submitted with the next regularly scheduled monitoring report. At a minimum, the record shall include the date, nature of service, service company name, and service company license number.

ACTIVATED SLUDGE MONITORING ¹¹

Influent Monitoring

Influent samples shall be taken from a location that provides representative samples of the wastewater quality. At a minimum, influent monitoring shall consist of the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Total Nitrogen ^a	mg/L	Grab	Monthly	Quarterly

mg/L denotes milligrams per liter.

a. When needed for 50% reduction effluent limit calculation.

Effluent Monitoring

Samples of effluent shall be taken at an area that represents the effluent quality distributed to the disposal area. At a minimum, effluent monitoring shall consist of the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Flow Rate ^a	gpd	Meter	Continuous	Quarterly
Biochemical Oxygen Demand	mg/L	Grab	Monthly	Quarterly
Total Suspended Solids	mg/L	Grab	Monthly	Quarterly
Total Nitrogen ^b	mg/L	Grab	Monthly	Quarterly

gpd denotes gallons per day.

a. At a minimum, the total flow shall be measured monthly to calculate the average daily flow for the month. Flow rates may be measured on influent or effluent flow.

b. Include nitrogen monitoring when a nitrogen effluent limit is imposed.

¹¹ Determine the need for monitoring based on the flow rate and Attachment 1. Biochemical oxygen demand limits apply with flow rates above 400 gpd; nitrogen limits may apply at flow rates above 20,000 gpd. (See General Order Section D, Effluent Limits and Attachment 1, Nitrogen Effluent Limit Evaluation.)

POND SYSTEM MONITORING ¹²

Influent Monitoring

Influent samples shall be taken from a location that provides representative samples of the wastewater and flow rate. At a minimum, influent monitoring shall consist of the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Flow Rate ^a	gpd	Meter	Continuous	Quarterly
Total Nitrogen ^b	mg/L	Grab	Monthly	Quarterly

gpd denotes gallons per day. mg/L denotes milligrams per liter.

- a. At a minimum, the total flow shall be measured monthly to calculate the average daily flow for the month. If wastewater is stored and applied to land, flow rate measurement may also be needed on the effluent flow.
- b. When needed for 50% reduction effluent limit calculation.

Wastewater Pond Monitoring

All wastewater and treated wastewater storage ponds (lined and unlined) shall be monitored as specified below:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Dissolved Oxygen	mg/L	Grab	Monthly	Quarterly
Freeboard	0.1 feet	Measurement	Monthly	Quarterly
Odors	--	Observation	Monthly	Quarterly
Berm condition	--	Observation	Monthly	Quarterly

mg/L denotes milligrams per liter.

Effluent Monitoring

Effluent samples shall be taken from a location that provides representative samples of the wastewater. At a minimum, effluent monitoring shall consist of the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Biochemical Oxygen Demand	mg/L	Grab	Monthly	Quarterly

¹² Determine the need for monitoring based on the flow rate and Attachment 1. Biochemical oxygen demand limits apply with flow rates above 400 gpd; nitrogen limits may apply at flow rates above 20,000 gpd. (See General Order Section D, Effluent Limits and Attachment 1, Nitrogen Effluent Limit Evaluation.)

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Total Nitrogen ^a	mg/L	Grab	Monthly	Quarterly

mg/L denotes milligrams per liter.

a. Include nitrogen monitoring when a nitrogen effluent limit is imposed.

DISINFECTION SYSTEM MONITORING

If disinfection is performed, samples shall be collected from immediately downstream of the disinfection system. Depending upon the level of disinfection and wastewater disposal, monitoring requirements vary. Disinfection monitoring shall be customized to the site-specific conditions from the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Total Coliform Organisms	MPN/100 mL	Grab	TBD ^a	Quarterly
Turbidity	NTU	Grab/Meter	TBD ^a	Quarterly

MPN/100 mL denotes most probable number per 100 mL sample. NTU denotes nephelometric turbidity unit.

a. TBD (to be determined) shall be specified in the NOA or as required by California Code of Regulations, title 22 section 60321.

RECREATIONAL VEHICLE DISCHARGE MONITORING

Any wastewater system that has accepted recreational vehicle, portable toilet, or similar waste in the previous 12 months shall perform the following additional monitoring. Samples shall be collected to characterize effluent that is stored in wastewater ponds or that will be applied to a disposal area. Wastewater shall be monitored as specified below:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sample Frequency</u>	<u>Reporting Frequency</u>
Zinc	mg/L	Grab	Quarterly	Quarterly
Phenol	mg/L	Grab	Quarterly	Quarterly
Formaldehyde	mg/L	Grab	Quarterly	Quarterly

mg/L denotes milligrams per liter.

SUBSURFACE DISPOSAL AREA

Subsurface disposal areas may be configured many different ways (e.g. traditional leach field, pressure-dosed, drip system, mound/at grade, gravel less, etc.). In general, monitoring shall be sufficient to determine if wastewater is evenly applied, the disposal area is not saturated, burrowing animals and/or deep rooted plants are not present, and odors are not present. Inspection of dosing pump controllers, automatic distribution valves, etc. is required to maintain optimum treatment in the disposal area (and any sand or media filter if present). Monitoring shall include, at a minimum, the following:

<u>Constituent</u>	<u>Inspection Frequency</u>	<u>Reporting Frequency</u>
Pump Controllers, Automatic Valves, etc. ^a	Quarterly	Quarterly
Nuisance Odor Condition	Quarterly	Quarterly
Saturated Soil Conditions ^b	Quarterly	Quarterly
Plant Growth ^c	Quarterly	Quarterly
Vectors or Animal Burrowing ^d	Quarterly	Quarterly
Seepage Pit Condition ^e	Quarterly	Quarterly

- a. All pump controllers and automatic distribution valves shall be inspected for proper operation as recommended by the manufacturer.
- b. Inspect a disposal area for saturated conditions. If a mound system is used, inspect perimeter base for signs of wastewater seepage or saturated soil conditions.
- c. Shallow-rooted plants are generally desirable, deep-rooted plants such as trees shall be removed as necessary.
- d. Evidence of animals burrowing shall be immediately investigated and burrowing animal populations controlled as necessary.
- e. Seepage pits shall be inspected to ensure they are allowing wastewater to infiltrate as designed. Visual inspection of the water level in the seepage pit is adequate.

RECYCLED WATER MONITORING

If recycled water is used for irrigation of landscape areas,¹³ priority pollutant monitoring is required at the production facility. Sampling shall be consistent with the following:

<u>Constituent</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Priority Pollutants	5 years	The next annual report.

mgd denotes million gallons per day.

LAND APPLICATION AREA MONITORING

The Discharger shall monitor LAAs when wastewater and/or supplemental irrigation water is applied. If wastewater/supplemental irrigation water is not applied during a reporting period, the monitoring report shall so state. LAA monitoring shall include the following:

¹³ Landscape areas are defined as parks; greenbelts, playgrounds; school yards; athletic fields; golf courses; cemeteries; residential landscaping; common areas; commercial landscaping (except eating areas); industrial landscaping (except eating areas); freeway, highway, and street landscaping

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Supplemental Irrigation	gpd	Meter ^a	Monthly	Quarterly
Wastewater Flow ^a	gpd	Meter ^a	Monthly	Quarterly
Local Rainfall	Inches	Weather Station ^b	Monthly	Quarterly
Acreage Applied ^c	Acres	Calculated	Monthly	Quarterly
Application Rate	gal/acre/mo	Calculated	Monthly	Quarterly
Soil Erosion Evidence	--	observation	Monthly	Quarterly
Containment Berm Condition	--	observation	Monthly	Quarterly
Soil Saturation/Ponding	--	observation	Monthly	Quarterly
Nuisance Odors/Vectors	--	observation	Monthly	Quarterly
Discharge Off-Site	--	observation	Monthly	Quarterly

gpd denotes gallons per day.

- a. Meter requires meter reading, a pump run time meter, or other approved method.
- b. Weather station may be site-specific station or nearby governmental weather reporting station.
- c. Acreage applied denotes the acreage to which wastewater is applied.
- d. Application rate may also be reported as inch/acre/month.

SOLIDS DISPOSAL MONITORING

The Discharger shall report the handling and disposal of all solids (e.g., screenings, grit, sludge, biosolids, etc.) generated at the wastewater system. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste. These records shall be submitted as part of the annual monitoring report.

GROUNDWATER MONITORING

The Discharger shall monitor groundwater quality if required by the NOA. Consistent with the Business and Professions Code, groundwater monitoring reports, well construction workplans, etc. shall be prepared under the supervision of a California licensed civil engineer or geologist. Prior to construction of any groundwater monitoring wells, the Discharger shall submit plans and specifications to the Regional Water Board's staff for review and approval. Once installed, all monitoring wells designated as part of the monitoring network shall be sampled and analyzed according to the schedule below.

The data from routine groundwater monitoring events shall be submitted quarterly. Analysis of the data and groundwater flow directions shall be performed at least annually and shall be performed under the supervision of a California licensed professional (as described above). The Discharger may request a reduced monitoring and reporting schedule once adequate data has been collected to characterize the site. (Typically two years of quarterly sampling is required for adequate characterization.)

Prior to sampling, groundwater elevations shall be measured and the wells shall be purged of at least three well volumes and until pH and electrical conductivity have stabilized. No-purge, low-flow, or other sampling techniques are acceptable if they are described in an approved Sampling and Analysis Plan. Depth to groundwater shall be measured to the nearest 0.01 feet. Groundwater elevations shall be calculated. Samples shall be collected using approved USEPA methods. Groundwater monitoring shall include, at a minimum, the following:

<u>Constituent</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sampling/Reporting Frequency</u> ^{c,d}
Groundwater Elevation ^a	0.01 Feet	Calculated	Quarterly
Depth to Groundwater	0.01 Feet	Measurement	Quarterly
Gradient	Feet/Feet	Calculated	Quarterly
Gradient Direction	degrees	Calculated	Quarterly
pH	Std. Units	Grab	Quarterly
Total Dissolved Solids	mg/L	Grab	Quarterly
Nitrate as Nitrogen	mg/L	Grab	Quarterly
Sodium	mg/L	Grab	Quarterly
Chloride	mg/L	Grab	Quarterly
Total Coliform Organisms ^b	MPN/100 mL	Grab	Quarterly
Zinc ^c	mg/L	Grab	Quarterly
Phenol ^c	mg/L	Grab	Quarterly
Formaldehyde ^c	mg/L	Grab	Quarterly

MPN/100 mL denotes most probable number per 100 mL sample. Std. Units denotes standard units. mg/L denotes milligrams per liter.

- a. Groundwater elevation shall be based on depth to water using a surveyed measuring point elevation on the well and a surveyed reference elevation.
- b. Using a minimum of 15 tubes or three dilutions.
- c. Monitoring of the constituents zinc, phenol, and formaldehyde are required only when recreational vehicles were allowed to discharge to the wastewater system in the previous 12 months.
- d. Analysis of data by a California licensed professional is required at least annually,

SURFACE WATER MONITORING

Because of the difficulty in monitoring bacteria in surface water, sample collection procedures must be described in a *Sampling and Analysis Plan*. Natural bacteria levels can vary significantly, and may be correlated with rainfall. When possible, surface water bacteria samples should be collected under dry weather conditions. It is critical when monitoring bacteria that all containers and surfaces a sample contacts are sterile. Sample containers must be autoclaved or manufactured to maintain sterility; use of screw top bottles, Whirl-pak[®] bags, or similar containers is acceptable. The sample hold time for bacteria samples is typically no more than six hours. Monitoring shall include, at a minimum, the following:

<u>Constituent</u>	<u>Units</u>	<u>Weather (Rain/Dry)</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
<i>Escherichia coli</i> (E. coli) ^a	MPN/100 mL	Observation	Quarterly	Quarterly
Enterococci ^b	MPN/100 mL	Observation	Quarterly	Quarterly

MPN/100 mL denotes most probable number per 100 mL sample

a. Analysis by USEPA Method 1603 or equivalent.

b. Analysis by USEPA Method 1600 or equivalent.

REPORTING

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., effluent, solids, etc.), and reported analytical or visual inspection results are readily discernible. The data shall be summarized to clearly illustrate compliance with the General Order and NOA as applicable. The results of any monitoring done more frequently than required at the locations specified in the MRP shall be reported in the next regularly scheduled monitoring report and shall be included in calculations as appropriate.

During the life of this General Order, the State Water Board or Regional Water Board may require the Discharger to electronically submit monitoring reports using the State Water Board's California Integrated Water Quality System (CIWQS) program Internet web site or alternative database. Electronic submittal procedures will be provided when directed to begin electronic submittals. Until directed to electronically submit monitoring reports, the Discharger shall submit hard copy monitoring reports.

A. Quarterly Monitoring Reports

Quarterly reports shall be submitted to the Regional Water Board on the **first day of the second month after the quarter ends** (e.g. the January-March Quarterly Report is due by May 1st). The reports shall bear the certification and signature of the Discharger's authorized representative. At a minimum, the quarterly reports shall include:

1. Results of all required monitoring.
2. A comparison of monitoring data to the discharge specifications, applicable effluent limits, disclosure of any violations of the NOA and/or General Order, and an explanation of any violation of those requirements. (Data shall be presented in tabular format.)
3. If requested by staff, copies of laboratory analytical report(s) and chain of custody form(s).

B. Annual Report

Annual Reports shall be submitted to the Regional Water Board by **March 1st following the monitoring year**. The Annual Report shall include the following:

1. Tabular and graphical summaries of all monitoring data collected during the year.

2. An evaluation of the performance of the wastewater treatment facility, including discussion of capacity issues, nuisance conditions, system problems, and a forecast of the flows anticipated in the next year. A flow rate evaluation as described in the General Order (Provision E.2.c) shall also be submitted.
3. If disinfection with ultraviolet light is performed, describe disinfection system maintenance activities performed in the calendar year. The description shall address inspections performed, lamp bulb replacement, lamp sleeve cleaning, and manufacturer recommended maintenance activities.
4. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into compliance with the NOA and/or General Order.
5. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.
6. The name and contact information for the wastewater operator responsible for operation, maintenance, and system monitoring.
7. A groundwater monitoring report prepared by a California licensed professional. This report may be prepared separately from the rest of the Annual Report. The report shall contain an analysis of groundwater data collected during the year. The analysis shall include a description of the sample events, copies of the field logs, purge method and volume, groundwater elevation and trend, a groundwater elevation map for each sample event, summary tables showing results for parameters measured, comparison of groundwater quality parameters to standards in the NOA, chain-of-custody forms, calibration logs for field equipment used, and a general evaluation of any impacts the wastewater discharge is having on groundwater quality.

A letter transmitting the monitoring reports shall accompany each report. The letter shall report violations found during the reporting period, and actions taken or planned to correct the violations and prevent future violations. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of the those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

The Discharger shall implement the above monitoring program as of the date of this MRP.

Ordered by:

NAME, Executive Officer

DATE

September 23, 2014



**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
SAN FRANCISCO BAY REGION**

MONITORING AND REPORTING PROGRAM for:

Facility: Mustards Grill Wastewater Treatment System, Napa County

Permit Type: Waste Discharge Requirements, General Order Enrollment

Order: State Water Resources Control Board General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems, Order WQ 2014-0153-DWQ

Case No.: CIWQS Place Number 614538; GeoTracker Global ID Number WDR100052312

Effective Date: July 10, 2024

1. MONITORING AND REPORTING PROGRAM PURPOSE

This Monitoring and Reporting Program (MRP) describes requirements for monitoring Mustards Grill (Facility). The monitoring requirements and practices described in the MRP are, generally, *minimum* levels of monitoring. Additional monitoring, other than as specified here, is acceptable, such as in response to treatment changes or investigations of uncertainties. Other additional monitoring conducted shall be explained in the monitoring reports, and the data shall be made available to the Regional Water Board upon request.

The Facility is the wastewater collection, treatment, and discharge systems serving domestic wastewater (sewage) generated from the Mustards Grill restaurant as kitchen wastewater from food preparation and service, and sanitary wastewater from employee and customer restroom use and a single-family residence and a guest cottage onsite. In this MRP, the Facility is also referred to as the wastewater system.

The land uses, wastewater system, and discharges are described in the Facility Report of Waste Discharge (ROWD) and the Notice of Applicability letter dated July 10, 2024.

The property, land uses, and the wastewater system are owned by 3W & C LLC and operated by Mustards Grill and Heritage Systems, Inc. (collectively Discharger).

The wastewater treatment plant shall be operated and maintained by qualified and state-certified wastewater operators, in accordance with the requirements of Water Code sections 13627 and 13628, and 23 CCR sections 3670 through 3719.

2. MONITORING AND REPORTING PROGRAM BASIS

Monitoring and reporting responsibilities of waste dischargers are specified in Water Code sections 13267(b), 13268, and 13383. This MRP is issued pursuant to Water Code section 13267.

Water Code section 13267 states, in part:

“... the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region ... that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports, and shall identify the evidence that supports requiring that person to provide the reports.”

Water Code section 13268 states, in part:

“(a) Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of section 13267, or failing or refusing to furnish a statement of compliance as required by subdivision (b) of section 13399.2, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in accordance with subdivision (b).

(b)(1) Civil liability may be administratively imposed by a regional board in accordance with article 2.5 (commencing with section 13323) of chapter 5 for a violation of subdivision (a) in an amount which shall not exceed one thousand dollars (\$1,000) for each day in which the violation occurs.”

The Discharger and Facility are subject to the Notice and this MRP, which require technical and monitoring reports. The reports are necessary to document compliance with the waste discharge requirements of the General Order, the Notice, and the MRP, and the burden imposed in their preparation bears a reasonable relationship to the need for the reports and the benefits to be obtained from them. More specifically, the monitoring data are needed to evaluate the performance of the wastewater treatment and disposal system to assure protection of public health and the environment. Inconsistently treated wastewater could expose people to pathogens or other harmful constituents and could adversely affect beneficial uses. Pursuant to Water Code section 13267, the Discharger shall implement this MRP and shall submit the monitoring reports described herein.

3. MONITORING AND REPORTING PROGRAM CHANGES

- A.** The Regional Water Board Executive Officer may authorize changes to the monitoring and reporting practices specified in this MRP, in consideration of acceptable alternate means of monitoring, and the total inventory of monitoring data. Factors to be considered include: data quality, adequate characterization of the identified water or wastewater system process, consistency of system performance, compliance with waste discharge requirements, and acceptable means for providing equivalent and adequate monitoring of the identified water or wastewater system process.
- B.** Requests for changes to monitoring or reporting practices must be submitted to the Regional Water Board in writing, with a complete description of proposed changes and alternate means of monitoring.
- C.** The Discharger shall not implement changes to authorized monitoring and reporting practices until applicable changes are authorized in writing by the Executive Officer.

4. DEFINITION OF TERMS

The following are definitions and explanations of selected important terms and monitoring requirements used in this MRP to specify applicable required monitoring practices for the wastewater system.

4.1. Flow Measurement

Flow measurement is the accurate measurement of the flow volume over a given period of time using a properly calibrated and maintained flow measuring device. Flow determination from a properly calibrated and maintained automated recording device, such as a mechanical flow meter or pump dose event counter for a calibrated and documented pump, is acceptable.

4.2. Flow Monitoring and Reporting

Flows shall be monitored continuously and reported as total flow for that monitoring station for each day, and each calendar month, and in annual reports as the total for the calendar year.

4.3. Monitoring Frequency Terms

Terms used for sampling frequency and/or monitoring periods are described in Table 1.

Table 1: Descriptions of frequency and period terms used in this MRP.

Term	Description
Continuous	Continuous monitoring.
Daily	One time each calendar day.
Weekly	One time per calendar week, with sampling intervals of at least five days.
2x/Month	Two times per calendar month, with sampling intervals of at least ten days.
Monthly	One time per calendar month, with sampling intervals of at least three weeks.
Quarterly	One time per calendar quarter, at intervals of about three months.
Annually	One time per calendar year.
2x/year	Two times per calendar year, representative of the wet and dry seasons (wet season is defined as November to April; dry season is defined as May through October).

4.4. Description of Monitoring Stations

- A. Monitoring Station Definitions.** Stations to be used for sampling and observations in accordance with this MRP shall be specified in the Sampling and Analysis Plan and described in each monitoring report submitted in response to this MRP. The station description shall include a description of the water, wastewater, point of the wastewater system, or land area where specified monitoring is to be conducted.
- B. Monitoring Station Changes.** Changes to the monitoring stations defined in this MRP may be authorized by the Executive Officer in order to accommodate

changes in the wastewater system or system operations or to provide improved monitoring. Requests for changes to the monitoring stations must be submitted to the Regional Water Board in writing, with a detailed explanation of the purpose of the proposed station changes. Proposed changes to monitoring stations must be approved in writing from the Executive Officer prior to implementation.

- C. Site Plan Showing All Monitoring Stations.** The Discharger shall develop a legible plan view drawing that clearly depicts the locations of all major components of the wastewater system, all monitoring stations identified in this MRP, and relevant land use features such as buildings, access roads, property boundaries, and surface water drainage systems. A copy of this drawing shall be included with all reports submitted in response to this MRP.

4.5. Nitrogen Monitoring

The nitrogen content of the wastewater shall be monitored and assessed based on the parameter Total Nitrogen, which is the sum of analytical test results for Total Kjeldahl Nitrogen, Nitrate Nitrogen, and Nitrite Nitrogen. All data for all forms of nitrogen shall be reported as "Nitrogen", in values of milligrams nitrogen per liter (mg-N/L).

5. SAMPLING

- A.** All samples shall be representative of the volume and nature of the discharge or matrix of material sampled.
- B.** For all samples, the following information shall be recorded in chain-of-custody form(s): Name of the sampler, time, date, location, sample type (grab or composite), sample container, and any preservatives used.
- C.** The chain of custody form must also contain all custody information including date, time of custody transfers, and to whom samples were relinquished.

6. FIELD INSTRUMENTS

Field test instruments (such as those used to test pH, dissolved oxygen, and electrical conductivity) may be used if they are used by a State Water Resources Control Board California Environmental Laboratory Accreditation Program certified laboratory, or:

- A.** The user is trained in proper use and maintenance of the instruments;
- B.** The instruments are field calibrated as recommended by the manufacturer; prior to monitoring events;
- C.** Instruments are serviced and/or calibrated as recommended by the manufacturer or authorized service provider; and
- D.** Calibration reports are maintained and available for at least three years.

7. MONITORING REQUIREMENTS

7.1. Wastewater Flow Monitoring

- A. Flows shall be monitored to determine the total daily flow in the system, and also the distribution of effluent flow to the subsurface drip dispersal area.
- B. Flows shall be measured using in-line flow meters and/or flow calculation based on pump event counts, dose volume, and pump run-time data.
- C. Flows shall be reported as total volume for each day and each month.

7.2. Treatment System Monitoring

To characterize influent wastewater quality, representative monitoring of wet and dry season conditions shall be conducted over one year for the constituents specified in this MRP. If changes to the influent water quality occur that could result in a significant and continued change in the effluent concentrations, an updated characterization shall be conducted and submitted to the Regional Water Board as a part of the Discharger's annual report. An additional characterization may be required by the Regional Water Board's Executive Officer if deemed necessary.

Influent samples shall be taken from a point in the wastewater system where all wastewater tributary to the treatment system is present, and prior to treatment.

Effluent samples shall be taken at a point in the wastewater system where all treatment by the treatment system is complete and sampling provides representative characterization of the treated wastewater to be discharged to land. This should be after disinfection is complete.

SEPTIC TANK MONITORING

Parameter	Units	Sample Type	Sampling Frequency	Reporting Frequency
Flow Rate	gpd ¹	Metered ²	Continuous	Annually

¹ gpd = gallons per day.

² Flow rate may be metered or estimated based on potable water supply meter readings or other approved method.

Septic tanks and grease interceptors shall be inspected and/or pumped at least as frequently as described below. Inspections of sludge and scum depth are not required if the tanks are pumped at least annually.

Parameter	Units	Measurement Type	Inspection/Reporting Frequency
Sludge depth and scum thickness in each compartment of each tank	Feet	Staff Gauge	Annually
Distance between bottom of scum layer and bottom of outlet device	Inches	Staff Gauge	Annually
Distance between top of sludge layer and bottom of outlet device	Inches	Staff Gauge	Annually
Effluent filter condition (if equipped, clean as needed)	NA ¹	NA ¹	Annually

¹ NA denotes not applicable.

Septic tanks shall be pumped when any one of the following conditions exists:

1. The combined thickness of sludge and scum exceeds one-third of the tank depth of the first compartment.
2. The scum layer is within 3 inches of the outlet device.
3. The sludge layer is within 8 inches of the outlet device.

If a septic tank is pumped during the year, the pumping report shall be submitted with the annual report. All pumping reports shall also be submitted with the next regularly scheduled monitoring report. At a minimum, the record shall include the date, nature of service, service company name, and service company license number.

SECONDARY TREATMENT UNIT MONITORING

Influent Monitoring

Influent samples shall be taken from a location that provides representative samples of the wastewater quality. At a minimum, influent monitoring shall consist of the following:

Constituent	Units	Sample Type	Sample Frequency	Reporting Frequency
Total Nitrogen	mg/L ¹	Grab	Monthly	Quarterly

¹mg/L = milligrams per liter

Effluent Monitoring

Samples of effluent shall be taken at an area that represents the effluent quality distributed to the disposal area. At a minimum, effluent monitoring shall consist of the following:

Parameter	Units ¹	Sample Type	Sampling Frequency	Reporting Frequency
Flow Rate	gpd	Metered ²	Continuous	Quarterly
Biochemical Oxygen Demand	mg/L	Grab	Monthly	Quarterly
Total Nitrogen	mg/L	Grab	Monthly	Quarterly

¹ gpd = gallons per day; mg/L = milligrams per liter.

² Flow rate may be metered or other approved method. Flow rates may be measured as influent or effluent flow.

All secondary treatment components shall be inspected to verify operational status. Because aerobic treatment units generate more biosolids than septic systems (similar to the activated sludge process), systems shall be inspected and/or pumped at least as frequently as described below. Depending upon the amount of solids removed from the aerobic treatment unit, less frequent inspections may be allowed by the Regional Water Board's Executive Officer. Inspections of sludge and scum depth are not required if the tanks are pumped at least annually.

Parameter	Units	Measurement Type	Inspection/Reporting Frequency
Sludge depth and scum thickness in each compartment of each tank	Feet	Staff Gauge	Quarterly
Distance between bottom of scum layer and bottom of outlet device	Inches	Staff Gauge	Quarterly
Distance between top of sludge layer and bottom of outlet device	Inches	Staff Gauge	Quarterly
Effluent filter condition (if equipped, clean as needed)	—	—	Quarterly

Aerobic treatment units shall be pumped when any one of the following conditions exist:

1. The combined thickness of sludge and scum exceeds one-third of the tank depth of the final settling tank or interferes with the operation of the system (mixed liquor aerator solids shall not exceed the manufacturer's recommendation).
2. The scum layer is within 3 inches of the outlet device.
3. The sludge layer is within 8 inches of the outlet device.

All pumping reports shall be submitted with the next regularly scheduled monitoring report. At a minimum, the record shall include the date, nature of service, service company name, and service company license number.

AdvanTex® Treatment System Monitoring

Standard Monitoring Protocol

All components of the recirculating filter treatment system shall be inspected for proper operation by a qualified service provider, as often as necessary to assure continued long-term proper operation and performance.

Filter Unit Inspection and Service

The AdvanTex® recirculating treatment units shall be inspected and serviced in accordance with manufacturer's recommendations, which shall be documented in a technical document reviewed and approved by the manufacturer, describing the operations and maintenance procedures for the treatment units. Inspections shall include observation of conditions and assessment for proper functioning of containment tanks, pumps, valves, vents, textile filter units (also called "pods") and control systems. These inspection and service events shall ordinarily be conducted semiannually, but may occur more frequently as needed.

Inspections and Maintenance Events

The Discharger shall maintain records of all inspections and maintenance activities sufficient to document proper operation, maintenance and status of the wastewater system. Major changes such as equipment replacement shall be reported with the next regularly scheduled monitoring report.

Recirculating Filter Operations

This information shall include measurements and/or calculated parameters sufficient to characterize the performance settings of the recirculating filter units, such as recirculation ratio, volume recirculated (gallons per day), number of pump events per day, and or other data explaining the filter treatment unit current operational and performance settings.

DISINFECTION SYSTEM MONITORING

Samples shall be collected from immediately downstream of the disinfection system. Disinfection monitoring shall include, at a minimum, the following:

Constituent	Units	Sample Type	Sample Frequency	Reporting Frequency
Total Coliform Organisms	MPN/100 mL ¹	Grab	Monthly	Quarterly
Turbidity	NTU ¹	Grab/Meter	Monthly	Quarterly

¹ MPN/100 mL denotes most probable number per 100 mL sample. NTU denotes nephelometric turbidity unit.

SUBSURFACE DISPOSAL AREA

Monitoring shall be sufficient to determine if wastewater is evenly applied, the disposal area is not saturated, burrowing animals and/or deep rooted plants are not present, and odors are not present. Inspection of dosing pump, Geoflow Headworks, Hydrotek valve system, and VCOM Control Panel is required to maintain optimum treatment in the disposal area. The 30 groundwater monitoring wells within the dispersal field shall be monitored in accordance with section 13(g)(2) and 13(l) of the Napa County Alternate Sewage Treatment System Monitoring Program. Monitoring shall include, at a minimum, the following:

Constituent	Units	Sample Type	Inspection Frequency	Reporting Frequency
Pump Controllers, Automatic Valves, etc. ¹	—	—	Quarterly	Quarterly
Nuisance Odor Condition	—	—	Quarterly	Quarterly
Saturated Soil Conditions ²	—	—	Quarterly	Quarterly
Plant Growth ³	—	—	Quarterly	Quarterly
Vectors or Animal Burrowing ⁴	—	—	Quarterly	Quarterly

Constituent	Units	Sample Type	Inspection Frequency	Reporting Frequency
Depth to Groundwater	0.01 Feet	Measurement	Semiannually	Semiannually
Total Coliform Organisms ⁵	MPN/100 mL ⁶	Grab	Semiannually	Semiannually
Fecal Coliform Organisms ⁵	MPN/100 mL ⁶	Grab	Semiannually	Semiannually

¹ All pump controllers and automatic distribution valves shall be inspected for proper operation as recommended by the manufacturer.

² Inspect a disposal area for saturated conditions. If a mound system is used, inspect perimeter base for signs of wastewater seepage or saturated soil conditions.

³ Shallow-rooted plants are generally desirable, deep-rooted plants such as trees shall be removed as necessary.

⁴ Evidence of animals burrowing shall be immediately investigated and burrowing animal populations controlled as necessary.

⁵ If groundwater is observed within 24 inches of the system installation depth, samples shall be collected from all dispersal field monitoring wells for total and fecal coliform organisms.

⁶ MPN/100 mL denotes most probable number per 100 mL sample. mg/L denotes milligrams per liter.

SOLIDS DISPOSAL MONITORING

The Discharger shall report the handling and disposal of all solids (e.g., screenings, grit, sludge, biosolids, etc.) generated at the wastewater system. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste. These records shall be submitted as part of the annual monitoring report.

VISUAL MONITORING

In addition to Subsurface Disposal Area Monitoring outlined above, the Discharger shall conduct quarterly visual observations of the Facility and close vicinity to evaluate climate change and groundwater rise. Visual observations shall include at a minimum, the following: Identification of saturated soil conditions, ponding, and runoff.

8. REPORTING REQUIREMENTS

8.1. Monitoring Reports

The Discharger shall routinely submit to the Regional Water Board monitoring reports documenting the wastewater system operation and performance, and compliance with

the waste discharge requirements and evaluation criteria, in accordance with the following:

1. Report Schedule

- a. **Quarterly monitoring reports** shall be submitted to the Regional Water Board by the last day of the month following the monitoring period.
- b. **Annual monitoring reports** shall be submitted to the Regional Water Board by March 1 of the year following the monitoring period.

2. Letter of Transmittal

A letter of transmittal shall accompany each monitoring report submitted. The transmittal letter shall include the following:

- a. Identification of:
 - i. The discharge facility by name and address;
 - ii. The monitoring period being reported; and
 - iii. The name and telephone number of a person familiar with the report and wastewater system, for follow-up questions or discussions.
- b. Discussion of wastewater system operations and observations, and any unusual conditions or problems found during the reporting period. If any observation indicates a violation of waste discharge requirements or exceedance of evaluation criteria, then the following information shall be recorded and reported:
 - i. Date and time of occurrence;
 - ii. Location of occurrence. On a scaled plan drawing of the facility and/or site, show the location of the problem and, if applicable, affected land areas;
 - iii. Description of the observed problem; and,
 - iv. Corrective actions taken or planned to correct the problem, such as operation or facility modifications.

If a report describing corrective actions and/or a time schedule for implementation of actions was previously submitted, reference to the report is satisfactory.

- c. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of the individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant

penalties for submitting false information, including the possibility of fine and imprisonment.”

3. Results of Analyses and Observations

The report shall include the following:

a. Monitoring Results

Tabulations of the results from all required analyses, measurements and observations specified in this MRP, including identification of:

- i. Date of sampling or observation;
- ii. Location of sampling or observation (sample station);
- iii. Parameter of analysis; and
- iv. The result of the analysis, measurement or observation.

b. Data Presentation

In reporting monitoring data, the data shall be arranged in tabular form so that the data are clearly discernible. The data shall be summarized in such a manner to illustrate clearly whether the discharge is in compliance with the General Order and this MRP.

c. Sample Analysis Data

For all sample analyses, include the following:

- i. Date of analysis
- ii. Individual or contract laboratory conducting the analysis;
- iii. Analytical procedure or method used, and test method detection level; and
- iv. Copies of laboratory analysis result reports for any sample analyses conducted by a contract laboratory.

d. Report Additional Monitoring Results

If the Discharger monitors any parameter at the locations designated herein more frequently than is required by the General Order or this MRP, the results of such monitoring shall be included in the monitoring reports, and in any calculations of values.

e. Reporting Results Below Detection Limits

For all analytical characterizations (laboratory tests) for which results are identified as below limits of detection of the test procedure, data reporting shall include the limit of detection. In other words, reporting a sample test result as only “ND” or “not detected” or similar is not acceptable; the actual numeric value of the detection limit must also be reported. It is acceptable to use notations of non- detection - “ND” or similar - in data tables,

provided that the corresponding limit of detection is clearly identified elsewhere in the table or as a footnote of the table.

4. *Identification of Sampling and Observation Stations*

A scaled and legible Facility Site Plan showing locations of all sampling and observation stations shall accompany all reports submitted in response to this MRP.

5. *Annual Monitoring Reports*

The annual monitoring report shall include tabular and graphical summaries of the monitoring data obtained during the period being reported (calendar year). In addition, the report shall include a discussion of wastewater system performance and record of compliance with General Order and this MRP. If non-compliance is identified, the report shall also include discussion of corrective actions taken or planned to bring the discharge into full compliance. The Annual Report shall also include the following:

- Describe disinfection system maintenance activities performed in the calendar year. The description shall address inspections performed, lamp bulb replacement, lamp sleeve cleaning, and manufacturer recommended maintenance activities.

6. *Electronic Reporting*

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., influent, effluent, etc.), and reported analytical results for each sample are readily discernible. The data shall be summarized in such a manner to clearly illustrate compliance with the General Order and indicate temporal trends, as applicable.

GeoTracker Electronic Reporting Requirements:

- a. Upon request, the Discharger shall submit monitoring data in spreadsheet form and arrange in tabular form so that the date, sample type (e.g., influent, effluent, etc.), and reported analytical results for each sample are readily discernible. The data shall be summarized in such a manner to clearly illustrate compliance with the General Order and indicate temporal trends, as applicable.
- b. The Discharger shall submit all reports and analytical data to the State Water Board GeoTracker database via the site-specific GeoTracker Global ID: WDR100052312.
- c. In order to submit reports electronically, create a secure GeoTracker Electronic Submittal of Information (ESI) account and log in, which will be connected to the Global ID provided in the Notice. The Discharger can request a username and password [online](#), which is accessible from the 'Getting Started' section on the GeoTracker [ESI webpage](#).

Log into the [GeoTracker ESI system](#) to upload reports and enter data.¹

d. Additional GeoTracker support information can be found at the following:

- i. 'Guides/Resources' document link in the "Tools" on the GeoTracker ESI account
- ii. Resources on the GeoTracker ESI website, such as the [Beginner's Guide](#)
- iii. Notice Appendix 2 contains additional GeoTracker Resources
- iv. General GeoTracker Help Desk contact information:

Phone: 1-866-480-1028

Email: geotracker@waterboards.ca.gov

8.2. "As-Built" Plans of Completed Wastewater System

1. "As-Built" Plans

The Discharger shall submit a report to the Regional Water Board providing complete plan-view design drawings of the completed wastewater system and all of its components. This report shall be submitted no later than **30 calendar days** after finalization of the as-built plans.

2. Treatment System Commencement Progress Report

The Discharger shall submit a notification report to the Regional Water Board following commencement of the operation of the treatment system under normal operation. This report shall be submitted no later than **15 calendar days** after the treatment system is operational and after influent flow first exceeds 10,000 gpd.

8.3. Increased Monitoring Frequency

If any monitoring indicates a violation of waste discharge requirements or unstable wastewater system operation or performance, or if any specified samplings or analyses are not completed as required, then the monitoring for the parameter(s) and monitoring station(s) in concern shall immediately and henceforth be conducted at twice the frequency identified in this MRP. This increased monitoring frequency shall be maintained for at least two sampling events and until such time as the results of monitoring indicate violations are no longer occurring or the problem has been corrected and the wastewater system has returned to stable operation and performance.

8.4. Reports of Violations

In the event the Discharger violates or threatens to violate the conditions of the waste discharge requirements, the Discharger or Discharger's agent(s) **shall notify the Regional Water Board office by email and telephone** as soon as the Discharger or Discharger's agent has knowledge of the incident. Written notification

¹ GeoTracker password request: <https://geotracker.waterboards.ca.gov/esi/password1.asp>
GeoTracker ESI webpage,
https://www.waterboards.ca.gov/water_issues/programs/ust/electronic_submittal/
GeoTracker login, <https://geotracker.waterboards.ca.gov/esi/login.asp>

shall be submitted **within 10 business days** of the date of the incident, unless directed otherwise by Water Board staff.

The written notification shall include pertinent information explaining reasons for the non-compliance and shall indicate what steps were taken to correct the problem and the dates thereof, and what steps are being taken to prevent the problem from recurring.

Contact Information

San Francisco Bay Regional Water Quality Control Board

Contact: Margaret Monahan

Email: Margaret.Monahan@waterboards.ca.gov;
WDR.Monitoring@waterboards.ca.gov

Phone: (510) 622-2377

Mail: 1515 Clay Street, Suite 1400
Oakland, CA 94612

MONITORING PROGRAM CERTIFICATION

The Discharger shall implement this Monitoring and Reporting Program as of the effective date given below.

I, Eileen White, Executive Officer, hereby certify that this Monitoring and Reporting Program:

1. Has been developed in accordance with the procedure set forth in the Board's Resolution No. 73-16 in order to obtain data and document compliance with waste discharge requirements for the subject wastewater system.
2. May be reviewed at any time subsequent to the effective date upon written notice from the Executive Officer or request from the Discharger, and revisions will be ordered by the Executive Officer.
3. Is effective on July 10, 2024.



for Eileen M. White, P.E.
Executive Officer